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IN THE FOURTH JUDICIAL DISTRICT COURT - PROVO

IN AND FOR PROVO COUNTY, STATE OF UTAH

_____	)	
STATE OF UTAH,	)	Case No. 251403576
	)	
Plaintiff,	)	
	)	
v.	)	TRANSCRIPT OF:
	)	PRELIMINARY HEARING - DAY
TYLER JAMES ROBINSON,	)	FOUR
	)	
Defendant.	)	
_____	)	

BEFORE THE HONORABLE TONY GRAF

FOURTH DISTRICT COURT
137 NORTH FREEDOM BOULEVARD
PROVO, UT 84601

JULY 9, 2026

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Certified Court Reporter for the State of Utah

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1 July 9, 2026

2 **P R O C E E D I N G S**

3 (Proceedings commenced at 9:29 a.m.)

4 THE COURT: Good morning. Thank you for the parties'
5 patience. Court is now in session. Calling Case No.
6 251403567, State of Utah vs. Tyler James Robinson.

7 Counsel, please enter your appearances.

8 MR. GRUNANDER: Chad Grunander, Ryan McBride, Lauren
9 Hunt, David Sturgill, Chris Ballard for the state. County
10 Attorney Jeff Gray also present.

11 THE COURT: Good morning.

12 MS. NESTER: Good morning, your Honor. Kathy Nester,
13 Richard Novak, Michael Burt, and Staci Visser here for
14 Mr. Robinson, who's seated at counsel table.

15 THE COURT: Good morning.

16 MS. NESTER: Good morning.

17 THE COURT: Good morning, Mr. Robinson.

18 And for the record, the Court also recognizes the
19 presence of Ms. Erika Kirk. Good morning, Ms. Kirk.

20 All right. As you've probably come to expect, I do
21 need to read the following as it relates to today's preliminary
22 hearing. The Court is mindful of the safety and well-being of
23 all parties, counsel, witnesses, court staff, and members of
24 the public who may be present. The Court is also mindful of
25 its duty to protect and uphold the constitutional rights of

1 both Mr. Robinson and Ms. Kirk. To serve those important
2 interests, the Court reminds all persons who will be in
3 attendance that portable electronic devices will not be
4 permitted in the courtroom or on the fourth floor. This
5 prohibition does not apply to legal counsel and court staff for
6 the defense or the state or the media in this matter or the
7 equipment permitted under any electronic -- controlling
8 electronic media coverage order and includes the counsel for
9 the victim representative, Ms. Kirk.

10 I do ask the parties, the attorneys, if you will join
11 me in turning off your ringer to ensure that we do not have any
12 interruptions. I am turning off my ringer and I invite you to
13 do the same.

14 Every person who is in attendance today and every day
15 will be afforded the dignity and respect due to them. And
16 pursuant to the standing decorum order by the Court, all
17 spectators shall be quiet, civil, and orderly. Spectators
18 shall not engage in any distracting, disruptive, provocative,
19 disrespectful, uncivil, or threatening behavior of any kind.
20 Spectators shall not make any audible comments of any kind,
21 shall not shake or nod their heads, shall not otherwise make
22 any gestures during the hearing. Spectators shall not wear or
23 display pins, buttons, signs, clothing, or photographs
24 expressing support for or against any person related to this
25 case or the status of this case as a capital offense.

1 All right. As we begin this morning, I wish to --
2 I've taken a lot of time to think about the comments made by
3 the parties yesterday, and I -- and there were additional
4 briefings and a motion filed last night, and the Court took the
5 necessary time to readdress it and look at it and be prepared
6 for this morning's proceedings. While I recognize especially
7 how precious our time is, I also recognize that I need to be
8 prepared for everything that's before me. And I took the time
9 this morning to review what was filed since we adjourned
10 yesterday until we came back on record.

11 One of the motions filed last night was filed by
12 Ms. Erika Kirk's attorney, and I wish to address that. And I
13 realize that the parties may not have had a chance -- for
14 defense or prosecution -- had a chance to respond to that. And
15 before I address that, I wish to turn the time to you if you
16 need the benefit of the record as it relates to what was filed
17 by the attorney for victim representative Erika Kirk.

18 To the state.

19 MR. BALLARD: Good morning, your Honor. Christopher
20 Ballard on behalf of the state.

21 We have reviewed that filing, and we believe that it
22 fully accords with our position in our filing this morning,
23 that publishing exhibits to the courtroom is entirely
24 appropriate and indeed honors the victim representatives' right
25 to be present in this -- at this hearing.

1 THE COURT: Thank you, Mr. Ballard.

2 To defense. Mr. Novak.

3 MR. NOVAK: Thank you, your Honor. I read the -- I
4 read the pleading. I believe that every order that this Court
5 has made to date complies with and respects the victim's rights
6 under the Utah Constitution. I think that the rulings that the
7 Court has made the last few days do so. And I don't believe
8 that the issues that are presently before the Court going
9 forward with the hearing with respect to exhibits and what I'll
10 just call the "16 series" interfere with any of the enumerated
11 rights set forth in the Utah Constitution concerning the rights
12 of a victim representative in any criminal proceeding.

13 So that's our position. And I want to also be very
14 mindful of timing issues because we spent a lot of time arguing
15 without the Court having the benefit of the briefing yesterday,
16 but we have witnesses we have to get to, including a defense
17 witness who is not available after tonight. So I could of
18 course, as your Honor knows, say much more, but the Court has
19 all the briefing, and I think we should move forward.

20 THE COURT: Thank you. And as it relates to
21 transparency and publication, does the news media wish to be
22 heard on this issue?

23 MR. JUDD: Only briefly, your Honor. I've also
24 reviewed the submission from yesterday. The Court has always
25 set this three-step process, and I think taking each of those

1 stages -- admissibility, publication to the courtroom, and
2 coverage by the in-court cameras are three separate inquiries.

3 Of course the media believes -- the media will be the
4 party who stands here at this lectern and says we believe we
5 should see as much as possible, maximalist in that way, while
6 recognizing the importance of protecting all the rights,
7 including fair trial rights. But the idea of publishing
8 something -- of keeping something off of the cameras at the
9 rear of the courtroom but publishing it to those who are
10 present here also is a meaningful step towards transparency.

11 And to the extent that the Court is not comfortable
12 with placing something on the video feed, the media does
13 believe that allowing the media representatives who are here
14 and members of the public who are here to view that, even if
15 those watching on a live stream cannot, is a meaningful victory
16 for transparency, and we of course support that.

17 THE COURT: Thank you. All right.

18 MR. GRUNANDER: Your Honor, the state would like to
19 be heard on the briefing briefly.

20 THE COURT: For?

21 MR. GRUNANDER: The briefing that was submitted last
22 night.

23 THE COURT: All right. So I want to address the
24 motion filed by the attorney for the victim representative, and
25 then we'll transition to that. I'm just trying to do it

1 incrementally so we can get it all addressed.

2 So in regards to that -- and I appreciate the
3 position of the parties. It is important for me to hear all
4 sides. Article 1, Section 28 of the Utah Constitution
5 recognizes important rights afforded to victims and victims'
6 representatives, including the right to be treated with
7 fairness, respect, and dignity and the right to be present and
8 heard at critical stages of the proceedings. The Court
9 acknowledges the concerns raised in the motion regarding
10 transparency and the ability to meaningfully observe the
11 evidence presented during this hearing. At the same time, the
12 Court has an independent obligation to manage these proceedings
13 in a manner that safeguards the rights of all parties. That
14 includes honoring the rights of victims and victims'
15 representatives while preserving the defendant's constitutional
16 rights, including the right to a fair and impartial process.

17 The Court has considered the request that exhibits be
18 displayed in realtime to the courtroom. After careful
19 consideration, the Court determines that not all exhibits will
20 be visually displayed to the gallery and notes that it will use
21 a tiered method as described, first whether it will be admitted
22 to the Court for consideration as it relates to probable cause;
23 second, whether it will be displayed only to the gallery; and
24 third, if it will be published through the camera to the public
25 at large.

1 This ruling is not intended to diminish the
2 significance of the victim representative's rights or concerns.
3 Rather, it reflects the Court's responsibility to regulate the
4 presentation of evidence in a manner consistent with the
5 integrity of the proceedings and the fair trial rights
6 implicated in this manner. The manner in which evidence is
7 displayed remains in the Court's discretion. That discretion
8 must be exercised in a manner that is appropriate and
9 appropriately balances Ms. Robinson's constitutional rights --
10 I'm sorry -- Mr. Robinson's constitutional rights, Ms. Kirk's
11 rights as a victim representative, and the Court's obligation
12 to conduct the proceedings that are fair, orderly, and
13 appropriately transparent. Transparency is an important
14 principle, but it must be maintained in a manner consistent
15 with the constitutional rights and protections afforded to all
16 parties.

17 The Court does not make a blanket ruling as it
18 relates to any exhibit. And as previously stated, each exhibit
19 will be afforded its own due in weighing whether it shall be
20 published to the courtroom or beyond or not. And that
21 concludes the Court's ruling on that motion.

22 All right. Counsel, the last matter as it relates to
23 the briefing, I'll hear that. And there was a slight edit
24 to -- and I'm not sure when the state wishes to publish State's
25 Exhibit 16. So turning to the state. Do you wish to be heard

1 about your -- the motions filed last night prior to the
2 publication of Exhibit 16? Again, it's your -- it's your
3 choice on how you move forward. I just want to see which order
4 you want to go.

5 MR. BALLARD: We do want to be heard on the briefing
6 from last night, and specifically about Exhibit 16. I'm
7 understanding that your Honor has an additional edit to that?
8 Is that correct?

9 THE COURT: I do. And there might be value in
10 hearing that, so that may or may not change your positions. So
11 let me just put that on the record, and then I'll hear from
12 you. I just want to make sure you're able to be afforded
13 everything.

14 So as it relates to the edits, last night, I believe
15 it was between 6 minutes and 57 seconds and 20 minutes and 29
16 seconds, which is not to be played, and then 32 minutes and 55
17 seconds to 35 minutes and 47 seconds, which is not to be
18 played. And I believe that what I received reflects that. And
19 does that -- is that the understanding of the parties?

20 MR. GRUNANDER: Yes.

21 THE COURT: All right. The state has said yes.

22 To the defense? I'm not saying if you agree with it.
23 I'm just saying does it reflect the time stamps?

24 MR. NOVAK: May I have a moment?

25 THE COURT: Absolutely.

1 MR. NOVAK: Go ahead, Judge -- your Honor. And then
2 let's just see what the Court is referring to.

3 THE COURT: Well, I'm asking, did you receive a copy
4 of the edited video?

5 MR. NOVAK: Okay. So I'll answer that question
6 directly. The state sent us a copy of the edited video. The
7 redactions of the audio were exactly as the Court ordered, but
8 we noticed that the video which followed ended up being
9 inconsistent with redactions of the audio, so I brought that to
10 the state's attention last night. I believe that they
11 ultimately forwarded to the Court what I'll call Version 2 of
12 the redactions, which redacts the video that would have made
13 the audio redactions sort of superfluous or ineffective. So
14 that's sort of where we are. But I -- we may be not
15 communicating with each other about the same issue. I'm not
16 sure.

17 THE COURT: Well, I just want to make sure that in
18 regards to what was to be cut out comports with those time
19 stamps I just gave.

20 MR. NOVAK: It does. Plus the parties believe that
21 additional video needed to be cut out to match the Court's
22 intentions with respect to the audio.

23 THE COURT: Right. And that's -- and this is where
24 I'm going to next. Mr. Ballard?

25 MR. BALLARD: Yes, your Honor. I think we're on the

1 same page. We did, in conjunction with discussions with the
2 defense, prepare -- first of all, we prepared the redacted
3 video as your Honor ordered. Then after discussing with the
4 defense, we prepared a second version that still maintained the
5 audio redactions as the Court ordered, but we took out the
6 video portions that the defense brought to our attention.

7 THE COURT: All right. And I didn't see that, but
8 here -- and this is the Court's own independent finding after
9 spending significant time last night reviewing it. So I'm
10 requesting video-only redaction between 20 minutes and 29
11 seconds and 25 minutes and 23 seconds. And so what I looked at
12 was what was on screen. So any video showing anything other
13 than Mr. McBride and Lance Twiggs was to be redacted with the
14 exception of the screenshots of the images pulled from the
15 surveillance video and the FBI bulletin, which I believe was
16 also briefly displayed.

17 MR. NOVAK: I think we're all on the same page based
18 on what the Court just said.

19 MR. BALLARD: Your Honor, I think we have just a one
20 second difference. Our time stamp is 25:22 of the additional
21 edited version, but I think it still omits the video portion
22 that we're discussing.

23 THE COURT: All right. Well, it's a good day when we
24 are literally on the same page. I'm glad that within one
25 second, we are all in agreeance -- agreement about this. So

1 the Court -- and it sounds like you're one step ahead of the
2 Court. I was going to say that if you had it, you simply turn
3 off the monitor for that section. But if you've already made
4 that change, then all the better.

5 There are two additional changes as well. And this
6 is very short, and so I'll leave it to the state if you wish to
7 just in realtime pause and fast-forward or wish to redact it.
8 I'll leave it to you. So the additional requested audio and
9 visual redactions, so this is not to be played whatsoever, is
10 27 minutes 18 seconds to 27 minutes and 25 seconds. And the
11 second is 28 minutes and 11 seconds to 28 minutes and 18
12 seconds.

13 MR. BALLARD: Your Honor, just to make sure that
14 we've got that correct, the additional redactions would be 27
15 minutes and 18 seconds to 27 minutes and 25 seconds?

16 THE COURT: Correct. For the first one.

17 MR. BALLARD: And then 28 minutes and 11 seconds to
18 28 minutes and 18 seconds.

19 THE COURT: Yes.

20 MR. BALLARD: And, your Honor, while we're talking
21 about additional redactions -- let me approach. When your
22 Honor made his ruling yesterday afternoon, it wasn't entirely
23 clear the basis for these redactions that the Court proposed.
24 The state's understanding was that those additional redactions
25 were based on the potential that the video 1102 would be

1 showing duplicative evidence -- would be displaying evidence
2 that would be duplicative of future exhibits, and then also
3 potentially a concern about admissions by the defendant.

4 Portions that the Court has ordered to be redacted do
5 not have any of those concerns as far as the state's view of
6 that evidence, and I'd like to be able to point the Court to
7 those -- we've got two brief portions that we believe don't
8 implicate those concerns and should not be redacted.

9 THE COURT: All right.

10 MR. BALLARD: Does your Honor have the transcript?

11 THE COURT: I do.

12 MR. BALLARD: In front of you? Okay.

13 First of all, at the very, very bottom of page 10,
14 beginning with the words "was he." And then over to page 11,
15 down to time stamp 16:46. That portion is not cumulative of
16 additional exhibits, and it contains nothing that could be
17 classified as an admission by the defendant. That's the first
18 portion.

19 THE COURT: So going back to page 10, I don't see
20 "was he" at the bottom. Where are you? How many lines from
21 the bottom up are you?

22 MR. BALLARD: May I approach, your Honor?

23 THE COURT: You may. Oh, I see. Right here. Okay.
24 Now I see what you're saying. I missed that. I was looking at
25 the beginning of the line, but I see your point.

1 Okay. So from "was he" on page 10 until --

2 MR. BALLARD: 16 -- the time stamp 16:46 on page 11.

3 THE COURT: Okay.

4 MR. BALLARD: That's the first portion. And then the
5 second portion that we would ask not to be redacted is the
6 small portion of page 19. And it begins -- let's see. It
7 would be the fifth paragraph down, Mr. McBride stating, "Okay,"
8 and then ending at time stamp 33:40. Again, that's not
9 cumulative of any anticipated exhibit and nor does it refer to
10 any admission by the defendant.

11 THE COURT: Thank you.

12 MR. NOVAK: May I be heard?

13 THE COURT: Yes.

14 MR. NOVAK: Thank you, your Honor. With respect to
15 the first of the two portions that Mr. Ballard referenced, I
16 want to be totally transparent with the Court of course that
17 that was not a section that we asked the government to agree to
18 redact. That is a section that the Court independently
19 determined was appropriate for redaction under the various
20 principles that the Court has enunciated. So I just want to be
21 transparent about that.

22 THE COURT: Thank you.

23 MR. NOVAK: The second portion that Mr. Ballard
24 addressed, which is on page 19, we did suggest -- and it is in
25 our highlighted redacted transcript, and the Court agreed with

1 us. This is not relevant. This is not admissible under 403.
2 I don't -- I don't understand how this questioning by
3 Mr. McBride and the answers to these questions by Mr. Twiggs --
4 and now I'm going to quote the Utah Rule of Evidence -- has any
5 tendency in reason to make a fact of consequence more or less
6 true. That's the relevance question.

7 So I understand that the Court has said, "I can make
8 determinations of which portions of this transcript to rely
9 upon." But from my perspective, what the state is asking the
10 Court to do is to broadcast a portion of the transcript, which
11 we are saying is not relevant and, to the extent it has any
12 relevance, it is significantly outweighed by undue prejudice.

13 I am not Mr. Twiggs' representative, but I think as a
14 witness who has counsel, there might be something that
15 Mr. Twiggs' counsel would want to say about this as well. I
16 don't know what it would be, but my firmly held belief is it
17 would be consistent with what I'm saying, which is that it is
18 neither relevant nor probative of anything of significance,
19 especially in compared to the undue prejudice. Thank you, your
20 Honor.

21 THE COURT: Thank you, Mr. Novak.

22 Mr. Ballard.

23 MR. BALLARD: Thank you, your Honor. As Mr. Novak
24 recognized, Mr. Twiggs was represented during this statement.
25 He -- his counsel knew that this was being prepared to -- to be

1 produced in court. And his counsel made no objections to this
2 part of -- of the interview. And this is critically relevant.
3 It provides important foundation, foundational information
4 about Mr. Twiggs and identifying information about him, and
5 then also it's very relevant to the enhancement that we have
6 charged.

7 THE COURT: All right. Thank you. Anything further
8 before the Court rules on these two requests? All right.

9 In reviewing the first section, again citing to page
10 10 -- and I know it's -- to anyone listening, this may not make
11 sense when I'm saying "page 10," but it's roughly just a few
12 seconds after 15:39 on the video, starting with "was he," and
13 ending at 16:46 with the last word "asking." After hearing and
14 considering what has been argued, the Court agrees that this --
15 in applying the balancing test as it relates to transparency to
16 ensure the Court is taking a very narrow approach in what is or
17 is not published to the public, that this is permissible. It
18 doesn't run afoul of the issues that the Court addressed
19 previously that the Court is trying to avoid by publishing
20 portions.

21 And in addition to that, independently of the Court's
22 decision-making, it appears that the parties also agree as it
23 relates to the first requested edit to unredact, to allow in.
24 So I am ruling that that may be played and published through
25 all mediums, in the courtroom and via video.

1 Turning to the second section. This is page 19. It
2 is roughly right after 33:27, going to just before 33:40.

3 MR. BALLARD: Sorry, your Honor. Just to clarify,
4 what we asked was just before 33:07.

5 THE COURT: 33:07?

6 MR. BALLARD: Yeah. Yes. Right after 32:55 where
7 Mr. McBride states, "Okay."

8 THE COURT: I see. Thank you. Let me just take a
9 quick second to review this.

10 In relation to that request from right after 32:55,
11 starting with "okay" -- is that the spot you're talking about,
12 Mr. Ballard?

13 MR. BALLARD: Yes, your Honor.

14 THE COURT: All right. And specifically to 33:27,
15 the Court stands by its original ruling. That is not -- there
16 are several reasons why the Court -- the Court's ruling isn't
17 whether it's relevant or not; it's whether it should be
18 published or not.

19 And, again, as previously stated, the entirety of
20 Exhibit 16, the Court is receiving without any redactions or
21 edits. The Court is considering it as it weighs probable
22 cause. However, for publication, the Court finds that the
23 requested section from roughly after 32:55 starting with
24 "okay," ending at 33:27 is -- the Court finds that there are
25 interests served by not publishing this to the courtroom or to

1 be broadcast.

2 I note the -- and I -- and I recognize Mr. Novak's
3 statement as it relates to what Mr. Twiggs' counsel may or may
4 not assert, but the Court finds independently that this -- this
5 portion shall not be transmitted into the courtroom because of
6 certain statements made in there that do not serve the interest
7 of justice for publication.

8 However, the Court finds from 33:27, starting at
9 "okay," until just before 33:40 -- I'm sorry -- up to 33:40 may
10 be published. Did that notation make sense?

11 MR. BALLARD: It did to the state, your Honor.

12 THE COURT: All right. To defense?

13 MR. NOVAK: Understood.

14 THE COURT: And so this is the appropriate balancing
15 of being transparent while at the same time maintaining the
16 constitutional rights -- or balancing the constitutional rights
17 of all parties and what is appropriate for publication. And
18 this may be published not only to the gallery, but to the media
19 as well that goes beyond the gallery itself.

20 All right. Anything further on State's Exhibit 16?

21 MR. BALLARD: Not from the state, your Honor. Thank
22 you.

23 THE COURT: All right. I note defense is nodding
24 their head as well and not indicating anymore is needed to be
25 discussed at this point.

1 All right. I think we've put State's Exhibit 16 --
2 we've addressed it. Turning to the state.

3 MR. BALLARD: Thank you, your Honor. We would just
4 like to briefly emphasize a few points in the briefing that we
5 filed early this morning. Last night, the state -- excuse
6 me -- the defense raised the issue of publicizing or
7 publishing -- excuse me -- publishing admissions by the
8 defendant, or confessions. They cited to one sentence from the
9 United States Supreme Court opinion in *Estes vs. Texas* that
10 relies on the *Rideau vs. Louisiana* case, and that one sentence
11 in *Estes* has no precedential value on the issue that's before
12 the Court today.

13 *Estes* cited to the dissenting opinion in *Rideau*,
14 which is very curious, because that dissenting opinion --
15 *Rideau* was a change of venue case, and what the dissenting
16 opinion held is that the Court properly refused to change venue
17 in that case even though the defendant's confession had been
18 televised multiple times. So it's puzzling that that's what
19 the *Estes* Court would rely on as supposedly constructing some
20 kind of rule about publishing a defendant's admissions.

21 In addition to that, *Estes* has no analysis of that
22 point from *Rideau*. Again, it's just one sentence. And *Estes*
23 itself was a case about televising a trial. It wasn't about
24 pretrial publicity of a defendant's admission or confession.
25 And as we noted in the brief, subsequently, the Supreme Court

1 has limited -- although it hasn't expressly overruled Estes,
2 it's limited that case to its very narrow facts.

3 So it's difficult to see what precedential value that
4 one sentence from Rideau could have on this issue before the
5 Court. Even if it could have some applicability here, the
6 circumstances in Rideau are starkly different from the
7 circumstances here, the statements, the types of statements
8 from defendant that we're talking about.

9 In -- in Rideau, what the police did was orchestrated
10 a recording of an un-counseled, un-Mirandized police
11 interrogation. The police recorded that interrogation. It was
12 leading questions. They recorded the defendant answering those
13 leading questions. And then they immediately -- it was the
14 police that immediately released that recording to the press,
15 who then publicized -- and televised that, the defendant
16 confessing to police, answering the police's questions. That's
17 not the types of statements that we're dealing with in this
18 case. What we're dealing with are statements that defendant
19 voluntarily made to close friends and associates of him, and
20 his roommate.

21 Sorry. Just one other point about Rideau and that
22 dissenting opinion. It's interesting that in that dissenting
23 opinion, that judge that the Court relied on in Estes continued
24 on in his opinion and said, "It's an impossible standard to
25 require that a trial court be a laboratory that's completely

1 sterilized and free from any external factors." So, again,
2 it's hard to see how Rideau has any precedential value. And
3 even if it did, the circumstances are completely different than
4 the -- from the types of -- the types of statements that we're
5 dealing with here.

6 The state has also cited to several other courts that
7 have easily distinguished Rideau and have made it clear that
8 there is no blanket ban on publishing, especially just in
9 court, a defendant's voluntary admissions.

10 I think the most interesting case is the Sixth
11 Circuit case, because there, it dealt with essentially the
12 issue that we're dealing with here, which is publication of a
13 defendant's statements during a preliminary hearing. And
14 it's -- that case is especially important, the DeLisle case,
15 because there that confession was ultimately held to be
16 inadmissible. So an inadmissible confession was played to the
17 public and interested media members so that -- in a way that it
18 had -- as if it had been played in a preliminary hearing. And
19 even though that confession was subsequently publicized and
20 ultimately held to be inadmissible at trial, the Court did not
21 hold that that was a violation of the defendant's fundamental
22 rights there, that the Court could deal with that through voir
23 dire. It was not inherently prejudicial.

24 And then the state has also cited to the Ohio case of
25 Mammone and then also the Alabama case, Burgess vs. State,

1 where the Court -- those Courts reached essentially the same
2 holdings, easily distinguishing the Rideau sentence from Estes
3 and making it clear that there's no blanket ban on publishing a
4 defendant's admissions and also that Rideau is easily
5 distinguishable. And the Court -- because the Court can deal
6 with those pretrial publicity issues in a way that we've
7 discussed several times already through the tools that the
8 Court has available in selecting the jury.

9 I think it's also important to point out that
10 transparency is critical in this case. This Court's noted
11 repeatedly the extensive media coverage. That's why we're
12 having to take this additional time in these hearings to be
13 able to discuss these issues. And transparency is critical to
14 the state's right and the people's right to a fair trial.
15 Where there's a vacuum in the evidence, it just fuels
16 speculation.

17 And then finally, as has already been argued, it's
18 critical to the victim's right to be able to attend the
19 hearing. That's a hollow promise if the victim representative
20 is not -- is only able to be here physically, but then is
21 shielded from -- from some of the evidence.

22 Does the Court have any questions?

23 THE COURT: No. Not at this time.

24 MR. BALLARD: Thank you.

25 THE COURT: Mr. Novak.

1 MR. NOVAK: Thank you, your Honor. The parallel
2 between Mr. Robinson's case and the Rideau case is this.
3 Mr. Rideau's confession was televised by an act of the state.
4 It wasn't a confession broadcast through a courtroom. It was a
5 confession made to law enforcement and then broadcast by action
6 of the state. And that's what gives rise to the constitutional
7 problem, which is it's state action which violated
8 Mr. Robinson -- I'm sorry -- Mr. Rideau's right to a fair
9 trial.

10 This Court has granted the media's request to
11 electronically publish this entire proceeding. That's state
12 action. And the state has supported the media's request over
13 Mr. Robinson's objection. So that is also state action. So
14 that's the parallel.

15 If there were no cameras in this courtroom, we would
16 not have a problem. And, in fact, Ms. Kirk's attorney's
17 briefing seeks a remedy which has nothing to do with the
18 cameras in the courtroom. What Ms. Kirk's counsel seeks is the
19 opportunity for people in the courtroom to see the evidence.
20 So the state is going even further than Ms. Kirk's counsel.
21 The state wants to publish what it calls "confessions" in the
22 same way essentially that the state published Mr. Rideau's
23 confession.

24 Now, the only other thing I want to talk about is
25 that Mr. Ballard's correct that the blanket rule that there is

1 unrebuttable prejudice as stated in Rideau -- we can talk about
2 why dissenting judges say, "Oh, my God. The Court has
3 established a rule and I don't like it." That's what's going
4 on there.

5 But it was in the Skilling case, Supreme Court
6 decision in 2010, where the Court said, "Yes, we really are
7 going to let judges decide whether potential juror exposure to
8 pretrial publicity makes them an unfair -- makes them unable to
9 serve." But there is an extreme case. That's not my language.
10 That's the Supreme Court's language in Skilling. There are
11 extreme cases of pretrial publicity where prejudice is going to
12 be presumed. And so that's obviously about what has to be
13 proven in terms of the prejudice. But when it's an extreme
14 case, what the Supreme Court is saying in Skilling is there's a
15 presumption.

16 And I believe that this Court has already made
17 findings over the last nine months that this is an extreme case
18 with respect to the quantum of pretrial publicity, the way in
19 which it's being monitored by the public, the -- the speed with
20 which these proceedings even this week are being dissected and
21 broadcast through all of the technology channels that we have.
22 So it's our view that this is the extreme case that the Supreme
23 Court talked about in Skilling. We wouldn't have any state
24 action giving rise to this problem if we didn't have cameras in
25 the courtroom. And that's why we think that Exhibit 16.1,

1 16.2, and 16.3 need to be managed in the way we've asserted.

2 Thank you, your Honor.

3 THE COURT: Thank you.

4 Mr. Ballard.

5 MR. BALLARD: Thank you, your Honor. Just briefly.
6 Mr. Novak's misrepresented the state's position. We're not
7 going beyond what the victim representative has asked for. As
8 we made clear in our briefing this morning, -- that we filed
9 this morning, we are asking that these -- that these exhibits,
10 unredacted, be published in the courtroom, not electronically,
11 but they be published in the courtroom. It's not the camera in
12 the courtroom that's the problem. The issue here is the
13 public's right -- this is a public hearing. The Court's ruled
14 that it's a public hearing. Kearns-Tribune recognizes that
15 preliminary hearings are public. And the public that is here
16 in this courtroom should be able to see the exhibits that are
17 admitted and that the Court is going to rely on, and that is
18 even more important to the victim representative's right to be
19 able to be present and to observe these proceedings. Thank
20 you.

21 THE COURT: Counsel?

22 MR. JUDD: Your Honor, if I may. I'll be brief. I
23 want to begin by saying thank you to both the parties, to the
24 state, to the defense, to the Court. Today -- the time that's
25 being taken today and the nimbleness that's required to talk

1 about things like the transcript in open court is a challenge.
2 I recognize that it presents difficulties and that it takes
3 time. And I want to begin by thanking both the parties and the
4 Court for taking the time to do that. It's important to the
5 public, and I appreciate the Court doing that. I know the
6 public does as well.

7 The only thing that I want to say with respect to
8 this question about admissions or confessions is something that
9 I hope will help the Court. The Court is looking at Rideau.
10 It's looking at Estes, these cases from 50 or 60 years ago in a
11 different media environment under the United States Supreme
12 Court. I would urge the Court to do what the Court has done
13 before, and that's to look at Allgier. It's the 2011 Utah
14 Supreme Court case. It's obviously in the wake of Rideau.
15 It's obviously in the wake of Estes. It's here in this state.
16 Unanimous Utah Supreme Court upholding a decision made by Judge
17 McCleve below in a case that has striking parallels to this
18 one.

19 In the Allgier case, there was a murder trial. The
20 Court received a letter, notarized letter from an inmate
21 saying, "The defendant in this case has confessed to me. Told
22 me that he was involved in the shooting, gave me details of it,
23 threatened me and any family if I did that. I want the Court
24 to know that." That was provisionally sealed for many of the
25 same reasons that the Court conceivably consider keeping some

1 of this information from the public. The Court did a two-step
2 analysis. It began by trying to determine whether or not there
3 was a presumptive right of access to that document. The answer
4 is yes. There is a presumptive right of access to this
5 proceeding as well. Like Mr. Ballard just said, because this
6 is a preliminary hearing, there's a presumptive right of access
7 for the public. The second question was simply whether there's
8 some kind of balancing that should be done. Notably, in
9 paragraph 17 of the Allgier case, it stressed something that we
10 have said over and over again, which is much of the information
11 that would be revealed through that letter had already become
12 public at that point. And the idea of sealing a document that
13 contained allegations or details that were already in the
14 public sphere would only create the impression that information
15 was being kept from the public when it was not.

16 We stress what we did yesterday, that much of -- as
17 we understand it, much of the information that is now under
18 consideration for the Court is already in the public sphere.
19 The right case to analyze this under is Allgier. Allgier would
20 dictate in this case that the Court recognized there's a
21 presumptive right of access to this material and that the
22 presumption -- the balancing test that would be needed to
23 overcome that presumptive of access has not been satisfied here
24 particularly because so much of that information is already in
25 the public sphere. That must be an animating factor here, and

1 we ask the Court for that reason to grant access, both
2 publication to the courtroom and, in our view, publication on
3 the cameras as well. But we again do recognize that that
4 middle step is a meaningful one. And if the Court were to
5 decide that that information be shared in the courtroom but not
6 on the general feed, we would recognize that as well as a
7 meaningful step towards transparency in this case.

8 THE COURT: Counsel?

9 MR. NEIMAN: Good morning. Jeffrey Neiman on behalf
10 of the Kirk family. We appreciate the Court is trying to
11 balance here, but the Kirk family's waited ten months for this
12 hearing and they have a right to be here and they have a right
13 to hear the evidence. They have a right to see and feel what's
14 going on in this courtroom just like -- and they want to
15 understand, Judge, what you are -- what you are viewing. They
16 want to see the evidence.

17 And we understand you have to balance, but at a
18 minimum, this courtroom needs to be open for the evidence to be
19 displayed openly in this courtroom, for them to see it. The
20 Utah Constitution gives them the right to be here. And to be
21 here and not to see the evidence, what's the point of being
22 here? We ask you to let the evidence be seen in the courtroom,
23 please. Thank you for your time.

24 THE COURT: Thank you, counsel.

25 Anything further as it relates to Exhibits 16.1,

1 16.2, and 16.3 as it relates to what's been briefed or any
2 other arguments? I just want to make sure it has all been
3 received before the Court issues its ruling.

4 MR. NOVAK: No. Thank you.

5 MR. BALLARD: Not from the state, your Honor. Thank
6 you.

7 THE COURT: All right. And just to be clear as it
8 relates to the state's request, 16. -- well, so under the three
9 factors -- the three levels, admission to the Court,
10 publication to the gallery, and then publication beyond the
11 gallery, what is the request for each of these exhibits?

12 MR. BALLARD: We are asking -- your Honor, we are
13 asking for admission. We are asking for publication within the
14 courtroom, but not publication electronically on -- to the
15 electronic coverage in the courtroom of these proceedings.

16 We do want to make clear that once the exhibit is
17 admitted, that the witness will be reading from portions of the
18 exhibit, but, again, we're not asking that that be displayed in
19 any way so that those outside the courtroom could -- could
20 capture that and reproduce it.

21 THE COURT: Thank you. The Court wants to -- and
22 just for clarification, 16.1 is the text messages, 16.2 is
23 Discord chats, and 16.3 is a photograph of notes?

24 MR. BALLARD: That's correct, your Honor.

25 THE COURT: All right. And finally -- this hasn't

1 really been addressed by any party, but it is a factor the
2 Court is weighing. How much of 16.1 has been published to the
3 public prior to these proceedings? And this is open to all if
4 you wish to weigh in. I just want to make sure that that's
5 clear, because that wasn't really addressed in the briefing,
6 and it's a factor, so I want to make sure that that issue has
7 been presented by the parties if you choose to.

8 MR. BALLARD: Your Honor, with respect to Exhibit
9 16.1, some of those text messages do appear on pages 8 and 9,
10 pages 8 and 9 of the information that is public.

11 THE COURT: Could you give me a rough estimate or
12 percentage of how much of the total amount of 16.1 appears in
13 that -- in the information? Again, I'm just trying to create a
14 record of what is out there from your perspective so the Court
15 can consider that in its analysis.

16 MR. BALLARD: Your Honor, State's Exhibit 16.1 is 18
17 pages total, the photographs of text messages. It's
18 approximately 5 and a half pages of those 18 pages that are
19 reproduced in the information. Thank you for your patience.

20 THE COURT: Thank you, Mr. Ballard. I appreciate you
21 doing that on the fly.

22 Anything further from any party? To defense?

23 MR. NOVAK: No. Thank you.

24 THE COURT: From the prosecution?

25 MR. BALLARD: No, your Honor. Thank you.

1 THE COURT: Media?

2 MR. JUDD: Only just to point out for the Court that
3 in addition to the text messages, I believe -- I haven't seen
4 the other exhibits, but I believe that at least the note
5 itself, which is another one of the exhibits, is also described
6 in the information.

7 THE COURT: Thank you.

8 Ms. Kirk's victim representative attorney?

9 MR. NEIMAN: This has not been easy, as you can
10 imagine, and I think the family deserves to see the evidence
11 that's been gathered in this investigation. They deserve to
12 know what happened to Charlie. So we urge the Court to please,
13 again, display the evidence here in the courtroom.

14 THE COURT: Thank you. Thank you to all parties. I
15 appreciate the diligence and hard work that you've put in in
16 briefing and argument. These are important exhibits as it
17 relates to what should be considered for -- again, to be clear,
18 these exhibits are being admitted to the Court in its entirety.
19 The question before the Court is publication in the room and
20 beyond the courtroom.

21 And so this is the ruling as it relates to the
22 briefing. I know it wasn't a formal motion, but I'm just
23 trying to be thorough in my approach. This matter comes before
24 the Court on the state's request to publish Exhibits 16.1,
25 16.2, and 16.3 during the preliminary hearing and defendant's

1 objection to that request. The exhibits consist of text
2 messages between Mr. Robinson and a witness, Discord messages
3 between Mr. Robinson and others, and a written note the state
4 attributes to Mr. Robinson. Attorneys for Mr. Robinson argue
5 that the publication of the exhibits during the proceeding
6 subject to electronic media coverage would create a substantial
7 risk of prejudice and impair his rights to due process under
8 the Fourteenth Amendment.

9 Defendant relies on *Rideau vs. Louisiana*, *Estes*, and
10 *Skilling* and asks the Court to consider any admissible exhibit
11 for the purposes of preliminary hearing while limiting their
12 public display or broadcast.

13 The state responds that *Rideau* and *Estes* do not
14 require a category -- categorical restriction here. The state
15 argues that the exhibits are materially different from the
16 televised custodial interrogation at issue in *Rideau* because
17 they are written communications allegedly made outside law
18 enforcement custody. The state also argues that the potential
19 prejudice can be addressed through trial management measures
20 including voir dire and that the victim representative has an
21 interest in being present for and able to follow important
22 criminal proceedings.

23 The Court has considered the parties' arguments, the
24 nature of the exhibits, and the procedural posture of this
25 preliminary hearing. The defendant's due process interests,

1 the public nature of the criminal proceedings, and the
2 interests asserted by the state and victim representative. On
3 the present record, the Court is not persuaded that the
4 publication of Exhibits 16.1, 16.2, and 16.3 during the
5 preliminary hearing creates the type of inherent or presumed
6 prejudice that requires categorical restrictions under Rideau,
7 Estes, and Skilling.

8 Unlike the broadcast interrogation in Rideau, the
9 exhibits at issue are written communications allegedly made
10 outside police custody and are being offered in the ordinary
11 course of a judicial proceeding. That distinction does not
12 eliminate the possibility of prejudice, but it weighs against
13 treating publication of the exhibits as presumptively
14 unconstitutional.

15 The Court further finds that any potential
16 prejudice arising from media coverage may be addressed if
17 necessary through the appropriate trial procedures including
18 voir dire and any other measures warranted before trial. This
19 ruling is limited to publication of the exhibits during the
20 preliminary hearing and does not determine their admissibility
21 at trial -- and I insert if one occurs -- or foreclose any
22 later request for release -- relief based on a more developed
23 record.

24 Accordingly, the defendant's objection is overruled.
25 As it relates to this preliminary hearing, the state may

1 publish Exhibits 16.1, 16.2, and 16.3, and the Court is
2 authorizing, with the exception of the third-to-last page on
3 Exhibit 16.1, because it contains information including a phone
4 number and an address to be redacted before publication in the
5 courtroom -- but as it relates to 16.1, because it was publicly
6 distributed by the state, that 16.1 in its entirety may be
7 broadcast through electronic media. That is the ruling of the
8 Court.

9 Counsel, how would we like to proceed?

10 MR. BALLARD: Your Honor, just to clarify the record,
11 the state has redacted that portion. We anticipated that that
12 needed to be redacted in 16.1, so we have redacted that
13 portion. We believe that the best way to proceed now is we
14 have the edited video ready that comports with the additional
15 edits that the Court has ordered. We propose that we take a
16 break so that we can show that to the defense, make sure we're
17 on the same page, and then we anticipate coming back and
18 playing Exhibit 16.

19 THE COURT: All right.

20 MR. NOVAK: That's fine.

21 THE COURT: All right. I appreciate the caution
22 being exercised by all parties. We'll take a 15-minute break,
23 come back at 10:50. The Court is in a brief recess.

24 (Off the record from 10:34 a.m. to 10:55 a.m.)

25 THE COURT: Court is now back in session. Welcome

1 back. Turning to the state.

2 MS. HUNT: I apologize, Judge. We were having
3 computer technology issues and we believe those have been
4 sorted out, but we have not yet had the opportunity to show the
5 final edited versions to the defense.

6 THE COURT: All right. Well, how much time do you
7 need?

8 MS. HUNT: Just as long as it takes to show the
9 video, so maybe 10 minutes.

10 THE COURT: All right. Well, we'll go into -- well,
11 I want to make sure sufficient time is done to do that. I'm
12 sorry. I didn't realize that we were at this point. We'll be
13 in recess for ten more minutes. So by 11:05 approximately.

14 MS. HUNT: That should work. And also, we can inform
15 the bailiff as soon as we're done if it's ahead of that time.

16 THE COURT: All right. So ladies and gentlemen, I
17 apologize. I thought we were ready proceed. I want to be
18 respectful of everyone's time and, at the same time, keep this
19 hearing moving forward. So Court is in a brief recess.

20 (Off the record from 10:56 a.m. to 11:12 a.m.)

21 THE COURT: Court is back in session. Noting the
22 presence of the parties all being present. And where we left
23 off is we were looking to -- the state was looking to confer
24 with defense to ensure that State's Exhibit 16, 16.1, 16.2, and
25 16.3 were shared. Ms. Hunt.

1 MS. HUNT: We have reviewed 16 -- Exhibit 16 with
2 defense, and it comports with the Court's order. At this
3 point, we would like to put Agent Davis back on the stand and
4 continue with displaying that, publishing that.

5 THE COURT: Agent Davis, if you'd like to come
6 forward. I remind you you're still under oath. If you'd like
7 to have a seat. There should be a water bottle to your left.
8 And after you're situated, if you wouldn't mind adjusting that
9 microphone and bringing it close to you so the record can pick
10 up your testimony.

11 Ms. Hunt, your witness.

12 MS. HUNT: And just for the record and the Court's
13 benefit, we have made the edits that the Court has ordered. We
14 have shown them to defense. Pursuant to the time stamps that
15 the Court ordered, we wanted those to be reflected very
16 clearly, so there are sometimes large gaps of just black,
17 empty, silent space. When there are large gaps, we will
18 fast-forward. Some of those are short enough that we'll just
19 let it play if the Court is okay with that, with proceeding
20 that way.

21 THE COURT: Thank you. I appreciate giving a heads
22 up so all parties know what's going on. Thank you, Ms. Hunt.

23 MS. HUNT: So at this time, we would move to publish
24 on the monitors State's Exhibit 16.

25 THE COURT: All right. And to the media, there is a

1 monitor for your benefit right there next to you. For the
2 camera, there is one for that direction as well as for the
3 gallery.

4 (Video played and transcribed as follows:)

5 RYAN MCBRIDE: This meeting is to use your statement
6 here instead of your testimony at a preliminary hearing. Do
7 you understand that?

8 LANCE TWIGGS: Mm-hmm.

9 RYAN MCBRIDE: Okay. So in order to do that, I need
10 to place you under oath and also give you an admonition about
11 false statements. Okay?

12 First, you do solemnly swear or affirm that the
13 evidence you shall give in this issue shall be the truth, the
14 whole truth, and nothing be the truth, so help you God?

15 LANCE TWIGGS: Yes.

16 RYAN MCBRIDE: I also need to notify you that you are
17 notified that statements you're about to make may be presented
18 at a -- to a magistrate or a judge in lieu of your sworn
19 testimony at a preliminary examination. Any false statement
20 you make and that you do not believe to be true may be -- may
21 subject you to criminal punishment as a Class A misdemeanor.
22 Do you understand that?

23 LANCE TWIGGS: Yes.

24 RYAN MCBRIDE: It potentially could be used a -- for
25 punishment as a higher offense, as obstruction of justice.

1 In addition, I just want to make sure that our
2 recording here is clear that you've also been given a federal
3 agreement and a state agreement granting you immunity from
4 prosecution for materials you discuss now. Do you understand
5 that?

6 LANCE TWIGGS: Mm-hmm.

7 MR. MCBRIDE: First, we're going to cover some of the
8 things that you've already talked about, but to make it as part
9 of this record, first, what's your name?

10 LANCE TWIGGS: Full name with middle name or just
11 first and last?

12 RYAN MCBRIDE: First and last is fine.

13 LANCE TWIGGS: Okay. My name is Lance Twiggs.

14 RYAN MCBRIDE: And do you know Tyler Robinson?

15 LANCE TWIGGS: Yes, I do. Yeah, I do.

16 RYAN MCBRIDE: And this is the same Tyler Robinson
17 that's been charged with the shooting of Charlie Kirk?

18 LANCE TWIGGS: Yes.

19 RYAN MCBRIDE: And would you say when you first met
20 Tyler?

21 LANCE TWIGGS: I think it was 2023. I've known him
22 longer than that, though. That was I think the first time I
23 met him in person.

24 RYAN MCBRIDE: Okay. And will you describe your
25 relationship with -- with Tyler when you first met him anyway?

1 LANCE TWIGGS: When I first met him, I didn't know
2 him super well. He was just a new roommate. So I knew he knew
3 my friend group and I knew he liked playing games, but that's
4 about it when we first -- like when he first moved in.

5 RYAN MCBRIDE: Okay. Before we go on, I realized my
6 mic was muted at the outset. Was yours on? Your microphone?

7 LAUREN HUNT: No. I think I muted it.

8 RYAN MCBRIDE: Okay. I'm going to repeat those
9 admonitions just to make sure we've got it recorded. Okay.
10 So, again, I placed you under oath. Just to make a record, I'm
11 going to do it again.

12 You do solemnly swear that the evidence you shall
13 give in this issue shall be the truth, the whole truth, and
14 nothing but the truth so held you God?

15 LANCE TWIGGS: Yes.

16 RYAN MCBRIDE: And again, I'm giving -- going to give
17 you the false statement admonition.

18 LAUREN HUNT: Sorry. Hold on. They're saying that
19 it's echoing, so I --

20 LANCE TWIGGS: I think this one's mic is on.

21 LAUREN HUNT: Okay. Sorry.

22 RYAN MCBRIDE: Okay. (Inaudible) mic. That's fine.

23 LAUREN HUNT: Okay.

24 RYAN MCBRIDE: So we should be good. All right. Is
25 that mic on?

1 LAUREN HUNT: Yes.

2 RYAN MCBRIDE: Okay. Great.

3 All right. Okay. Sorry about that interruption.

4 All right. So you said when you first met -- met,

5 you were roommates?

6 LANCE TWIGGS: Yeah.

7 RYAN MCBRIDE: Okay. And then at some point, your

8 relationship progressed to something more than just roommates;

9 is that right?

10 LANCE TWIGGS: Mm-hmm.

11 RYAN MCBRIDE: When was that?

12 LANCE TWIGGS: I think we started dating two or three

13 months after he moved in.

14 RYAN MCBRIDE: Okay. And where did you live at that

15 time?

16 LANCE TWIGGS: St. George, in an apartment complex.

17 RYAN MCBRIDE: And is that apartment the same place

18 you lived when -- on September 10th?

19 LANCE TWIGGS: Yes.

20 RYAN MCBRIDE: When you lived there with Tyler, were

21 you in the same room? Did you live in the same room or

22 different rooms?

23 LANCE TWIGGS: Separate rooms.

24 RYAN MCBRIDE: And at that time, let's say September

25 of 2025, what was -- what were you doing with your life? Were

1 you working? School?

2 LANCE TWIGGS: I was working. I was doing, like,
3 bathtub and shower repair and stuff, and new construction.

4 RYAN MCBRIDE: Okay. How about Tyler?

5 LANCE TWIGGS: I think he was both working -- I think
6 he was working for an -- like an electrician company then, and
7 he was also in a trade school for being a -- I don't know --
8 higher, like, ranking electrician. I'm not sure how the trade
9 system works for that.

10 RYAN MCBRIDE: Okay.

11 LANCE TWIGGS: But I think it was both.

12 RYAN MCBRIDE: What was his typical workday like?

13 LANCE TWIGGS: I think he'd leave around 7:00
14 generally and get back around 3:00 to 4:00 depending on, like,
15 where the job was and how long it was for the day. And then on
16 certain days of the week during school, like, semesters, he
17 would then, later in the day -- I think around 5:00 or 6:00 --
18 go to school. So, yeah.

19 RYAN MCBRIDE: Okay. Okay. Let's jump to September
20 10th. Did he spend -- spend the night in the apartment the
21 night of September 9th into September 10th?

22 LANCE TWIGGS: Into September 10th? Yeah, he did.
23 Yes.

24 RYAN MCBRIDE: Do you know when he left the apartment
25 on September 10th?

1 LANCE TWIGGS: I don't have an exact time. I just
2 know he left early. I heard him leaving, and he just said he
3 had a -- like, a long drive to work that day, so he was leaving
4 early.

5 RYAN MCBRIDE: And so, early. Any guess as to
6 what -- when that was?

7 LANCE TWIGGS: I don't know. I would have thought it
8 was 5:00 a.m. because that's when, like, an early workday was
9 for him. But it was probably more like 4:00.

10 RYAN MCBRIDE: Okay.

11 UNKNOWN SPEAKER: I'm going to have you spit out this
12 gum just to make sure --

13 LANCE TWIGGS: I can do that.

14 UNKNOWN SPEAKER: There's tissue right in front of
15 your laptop. There you go.

16 LANCE TWIGGS: Thank you. Thank you.

17 RYAN MCBRIDE: All right. So what time did you get
18 up on September 10th?

19 LANCE TWIGGS: Probably like 12:00 to 1:00 p.m.

20 RYAN MCBRIDE: You didn't have to work that day?

21 LANCE TWIGGS: No.

22 RYAN MCBRIDE: And did you hear from Tyler? Did he
23 call or text you before then?

24 LANCE TWIGGS: No. He sent that message in the group
25 chat I mentioned, but he didn't message me directly at all that

1 day.

2 RYAN MCBRIDE: Okay. When did you first hear from
3 him on September 10th?

4 LANCE TWIGGS: It was at 11:00 with that, like,
5 automated message.

6 RYAN MCBRIDE: Okay. 11:00 p.m.?

7 LANCE TWIGGS: Yeah.

8 RYAN MCBRIDE: What about -- he asks you here,
9 "Remember how I was engraving bullets?" Was he engraving
10 bullets before this?

11 LANCE TWIGGS: Yeah. I don't remember exactly when,
12 but he had said he was planning to go hunting with his family.
13 And he asked me for a -- if we had, like, a Dremel to --
14 because he said he wanted to engrave messages on bullets. And
15 I just told him where a Dremel was and told him to make sure he
16 doesn't, like, set off a bullet on accident in the house. But
17 I didn't really think about it until then.

18 RYAN MCBRIDE: How long before September 10th was
19 this that he asked about the Dremel?

20 LANCE TWIGGS: I don't remember. Because he'd been
21 talking about the hunting/camping trip for a couple months.
22 But I don't remember when he was specifically asking to engrave
23 the bullets.

24 RYAN MCBRIDE: So are we talking like a year before?

25 LANCE TWIGGS: Oh, no. Not that -- not that long.

1 It would have been -- I'd say at most a month before this was
2 when he was asking.

3 RYAN MCBRIDE: Okay.

4 All right. You talked about the note that he left.
5 I want to bring this up. And I should say that these text
6 messages that we've been looking at here are Bates No. 54.
7 Okay. The notes have been titled 16.3 for the note. And this
8 is Bates No. 58.

9 Do you recognize that -- that on the screen there?

10 LANCE TWIGGS: Yeah. Yeah.

11 RYAN MCBRIDE: What do you recognize it as?

12 LANCE TWIGGS: That was the note under his keyboard
13 that he was referring to in the first text of that chain.

14 RYAN MCBRIDE: So where did you find this?

15 LANCE TWIGGS: On his desk underneath his, like,
16 computer keyboard.

17 RYAN MCBRIDE: And what -- I assume you read it?

18 LANCE TWIGGS: Yeah.

19 RYAN MCBRIDE: And then what did you do with it after
20 you read it?

21 LANCE TWIGGS: I believe I just put it back down on
22 the desk after I took a picture of it.

23 RYAN MCBRIDE: Okay. And again, the time you read it
24 was probably around 11:00 or so on the 10th?

25 LANCE TWIGGS: Yes.

1 RYAN MCBRIDE: The night of September 10th?

2 LANCE TWIGGS: Mm-hmm.

3 RYAN MCBRIDE: All right. And did you ever see that

4 again after you placed it back on his desk?

5 LANCE TWIGGS: No, I don't think I did.

6 RYAN MCBRIDE: And that was a desk in his bedroom?

7 LANCE TWIGGS: Yes.

8 RYAN MCBRIDE: And that's a separate bedroom than

9 your bedroom?

10 LANCE TWIGGS: Yeah.

11 RYAN MCBRIDE: I now want to go to what's been titled

12 16.2. And do you recognize this series of messages here?

13 LANCE TWIGGS: Yeah. That was the server -- like his

14 friends that I was mentioning.

15 RYAN MCBRIDE: Okay. And this is your phone again?

16 LANCE TWIGGS: Yeah.

17 RYAN MCBRIDE: And I'm assuming you recognize it

18 because of the big crack up at the top?

19 LANCE TWIGGS: Mm-hmm.

20 RYAN MCBRIDE: And so this is a server. Is this

21 Discord?

22 LANCE TWIGGS: Yeah. This is Discord.

23 RYAN MCBRIDE: And who -- who are members of this

24 server? I don't want names. Just generally, who are these

25 people who are members of the server?

1 LANCE TWIGGS: This is his friend group. They played
2 D&D together every week.

3 RYAN MCBRIDE: Okay. And I just want to scroll
4 through this to make sure that you have a chance to take a look
5 at it. Can I go to the next page?

6 LANCE TWIGGS: Uh-huh.

7 RYAN MCBRIDE: Yes?

8 So Tyler/Ikum, who's that?

9 LANCE TWIGGS: That's Tyler Robinson.

10 RYAN MCBRIDE: And these other people are just others
11 that are -- that are members of the server?

12 LANCE TWIGGS: Yes.

13 RYAN MCBRIDE: Jug/Barnaby, Marina/DM?

14 LANCE TWIGGS: Mm-hmm.

15 RYAN MCBRIDE: Yes?

16 LANCE TWIGGS: Yeah. Like "DM" means Dungeon Master,
17 so this is -- these are like -- most of them are names they're
18 using in the -- in the game they're playing currently.

19 RYAN MCBRIDE: Got it.

20 Okay. It looks like the last text from Tyler, it
21 looks like it's 8:00 p.m. And do you know what day this would
22 have been? 8:00 p.m. on the 10th or the 11th?

23 LANCE TWIGGS: I think that would be the 11th.

24 Because -- at least I think so, because I don't think on the
25 10th that he messaged anyone before me at like 11:00. So...

1 RYAN MCBRIDE: And he turned himself in on the 11th,
2 right?

3 LANCE TWIGGS: I thought so, yeah.

4 RYAN MCBRIDE: Okay. So again, we're just going to
5 go through this so that we have a record of the messages.

6 Okay. Is that an accurate recording of that thread?

7 LANCE TWIGGS: To my knowledge, yes.

8 RYAN MCBRIDE: And that was sent it looks like
9 between September 10th and September 12th. Looks like the last
10 date on this is September 12th. On the screen?

11 LANCE TWIGGS: Yes.

12 RYAN MCBRIDE: All right. So again, those messages
13 covered from September 10th to the evening of September 11th.
14 Now, September 11th, what time did -- or did you see Tyler on
15 September 11th?

16 LANCE TWIGGS: Yes.

17 RYAN MCBRIDE: When did you first see him on
18 September 11th? So this is the day after the shooting.

19 LANCE TWIGGS: Yeah. I saw him when I woke up. Like
20 I said, he was up and around doing a lot of stuff around the
21 house. And then I -- I think I saw him after that message
22 where I said, "I'll come home and say I'm doing laundry"
23 because I didn't want him going to my parents' house right then
24 when he said there was probably cops outside. So I went back
25 home, and it was just him there, and I said bye to him and then

1 he drove off. So I just went back to my parents' house.

2 RYAN MCBRIDE: So he acted erratically. Was he
3 pacing? Was he just sitting down relaxing?

4 LANCE TWIGGS: No. He was walking around a lot.

5 RYAN MCBRIDE: And that's within the home?

6 LANCE TWIGGS: Mm-hmm.

7 RYAN MCBRIDE: And did he talk about what he had
8 done?

9 LANCE TWIGGS: Didn't go into detail. He just -- I
10 just asked him in person if what he said was true the night
11 before, and he said it was. He started crying a little bit and
12 said he wishes he hadn't done it. Then kept going around and
13 just doing stuff I think to keep himself busy or distracted or
14 something.

15 RYAN MCBRIDE: Okay. Did he talk about what he was
16 going to do next?

17 LANCE TWIGGS: And then eventually said that he would
18 talk to his parents or turn himself over.

19 RYAN MCBRIDE: And when you left, was that how you
20 went -- you left understanding that he was going to turn
21 himself in or go to his parents' house?

22 LANCE TWIGGS: Yeah. And I didn't really want to be
23 at our apartment while any of that was happening, regardless of
24 what went down.

25 RYAN MCBRIDE: Okay. Before he came home, had you

1 seen the press -- the press releases? Any of the media on
2 this?

3 LANCE TWIGGS: I'd seen one Instagram, like, link a
4 friend of mine had sent in our group chat.

5 RYAN MCBRIDE: Okay.

6 LANCE TWIGGS: But I hadn't really looked into it at
7 all.

8 RYAN MCBRIDE: And had you seen the images that were
9 released of the suspect?

10 LANCE TWIGGS: I did the next day. I don't think I
11 saw any on the 10th.

12 RYAN MCBRIDE: I'm going to show you a couple of
13 those images. Okay. I'm on the FBI's website. You can see
14 the URL there at the top. This is some -- a press release
15 about this event. And here on the screen, do you see these --
16 there's -- looks like there's two rows of three images.

17 LANCE TWIGGS: Mm-hmm.

18 RYAN MCBRIDE: Do you recognize the person in these
19 images?

20 LANCE TWIGGS: I wouldn't say with a hundred percent
21 certainty just because of camera quality, but that looks like
22 him in terms of the shoes he's wearing, the sunglasses. I
23 don't think I'd specifically seen him wearing that hat, but he
24 was usually wearing a hat. And then jeans. So it
25 definitely -- especially the bottom. The last two definitely

1 do look like him. They do look like Tyler Robinson.

2 RYAN MCBRIDE: And you talked about that with your
3 friends, right? This looks like him?

4 LANCE TWIGGS: His friends, yeah. I don't -- I don't
5 know if I talked -- I don't remember if I talked about it with
6 any of my friends. And then since I didn't have my phone after
7 that for a while, and I still am not using social media, I
8 don't -- I don't know on my friends then.

9 RYAN MCBRIDE: Okay. All right. I want to back up a
10 little bit now. We've talked about September 10th, but let me
11 get a little bit of context here. So did you game with Tyler?

12 LANCE TWIGGS: Yeah.

13 RYAN MCBRIDE: What kind of games?

14 LANCE TWIGGS: We played some just kind of party
15 games together like stuff -- anything that would be multiplayer
16 with a group of friends. There was one game he really liked
17 called Sea of Thieves where you play as like a pirate, and you
18 can -- you can fight against people, but most of it's just like
19 fishing, fighting sharks, skeletons kind of stuff. We played
20 some co-op games where it's like you both have to work together
21 to win in whatever way. Way back when, like when I was just
22 out of high school, when I first knew him online, we played
23 some, like, shooting games together, but I -- I didn't know him
24 very well, so that was just when we had like a whole friend
25 group on to play, and he was someone that my friends invited.

1 RYAN MCBRIDE: Okay. Did you and he ever talk about
2 politics?

3 LANCE TWIGGS: He did more than me. I didn't
4 really -- still don't really keep up with politics very much.
5 He'd usually talk about stuff he heard on the radio on his
6 drive to work in like their work car since it sounds like their
7 whole crew went in the same car most of the time. But I
8 wouldn't say super consistently, because it wasn't a topic I
9 really contributed much on.

10 RYAN MCBRIDE: How about Charlie Kirk? Did he ever
11 talk about Charlie Kirk?

12 LANCE TWIGGS: I personally had never heard him talk
13 about Charlie Kirk before specifically.

14 RYAN MCBRIDE: Okay. How about political issues? So
15 did you ever talk about gender identity issues and LGBTQ
16 rights?

17 LANCE TWIGGS: No, not really. Usually if he did
18 talk about politics stuff, it was relating to Trump or current,
19 like, policies being, like, issued or voted -- voted on, I
20 think. But, yeah.

21 RYAN MCBRIDE: Okay. So before that, you had been?

22 LANCE TWIGGS: Mm-hmm. For a -- for a short time,
23 yes.

24 RYAN MCBRIDE: Okay. And I understand you were going
25 by "Luna" at some point.

1 LANCE TWIGGS: To some people, yeah, but not as an
2 overall thing.

3 RYAN MCBRIDE: Okay. I think that's all the
4 questions I have for this portion. Let me check and see if
5 I've missed anything.

6 The Dremel that you talked about, you said he had
7 asked for that; is that right?

8 LANCE TWIGGS: Mm-hmm.

9 RYAN MCBRIDE: And had he told you it was to inscribe
10 bullets?

11 LANCE TWIGGS: Yeah.

12 RYAN MCBRIDE: And so did you have a Dremel then?

13 LANCE TWIGGS: Yeah.

14 RYAN MCBRIDE: Okay.

15 LANCE TWIGGS: It was in our, like -- we had a -- our
16 apartment, we had a section where we kept all our, like, random
17 tools for household stuff, if our, like, lower basement-level
18 pantry. So, yeah.

19 RYAN MCBRIDE: Okay. And did you give that to him or
20 tell him where it was?

21 LANCE TWIGGS: I just told him where it was, yeah.

22 RYAN MCBRIDE: Okay. I'm going to go ahead and end
23 the recording for the 1102 purposes.

24 (Video concluded.)

25 THE COURT: All right. That concludes State's

1 Exhibit 16. Ms. Hunt.

2 MS. HUNT: Thank you, Judge.

3 AGENT BRIAN DAVIS

4 called as a witness herein, having been first duly sworn by the
5 Clerk to tell the truth, was examined and testified as follows:

6 DIRECT EXAMINATION CONTINUED

7 BY MS. HUNT:

8 Q. Agent Davis, I asked you yesterday, but I want to
9 remind the Court and those present. Were you physically
10 present at the interview we just watched in State's Exhibit 16?

11 A. Yes, I was there.

12 Q. And aside from the court-ordered redactions, did it
13 appear to you to be fair and accurate about what you remember
14 of that interview that day?

15 A. Yes. Yes, I do.

16 Q. During that interview, did Mr. Twiggs -- was he shown
17 or referenced certain items of evidence?

18 A. Yes, he was.

19 Q. What types of items of evidence was he shown?

20 A. It was the text messages between himself and Tyler --
21 between himself and Tyler Robinson, Discord chat messages, and
22 the handwritten note.

23 Q. And then we also saw in the video he was also shown
24 the FBI release -- press release photos of a potential suspect?

25 A. That's correct, yes.

1 **Q.** Have you reviewed all of those items as part of the
2 investigation?

3 **A.** Yes, I have.

4 **Q.** You're familiar with them?

5 **A.** Yes.

6 **Q.** All right. I want to put just on the witness's
7 screen what's been marked for identification as State's Exhibit
8 16.1. And for the record, this is -- this includes the edit
9 that the Court -- the one edit that the Court has previously
10 ordered.

11 THE COURT: Thank you.

12 **Q.** (BY MS. HUNT) Let me know when you see that on your
13 screen.

14 **A.** I see it. I see it now.

15 **Q.** Do you recognize this?

16 **A.** Yes, I do.

17 **Q.** What is it?

18 **A.** This is a photograph of screenshots of text messages
19 between Tyler Robinson and Lance Twiggs. This is a photograph
20 of Lance's phone.

21 **Q.** So, sorry. You said "photograph" and you also said
22 "screenshot." Can you -- can you differentiate or clarify
23 there?

24 **A.** Yes. Sorry. These are photographs directly from
25 Lance's phone.

1 **Q.** How do you know that?

2 **A.** In Lance's first interview, he is shown -- he's
3 showing the FBI agents these text messages. He describes them
4 to the agents. And at that time, those -- his phone was
5 photographed.

6 **Q.** And you testified I believe yesterday that
7 Mr. Twiggs' first interview was the morning of September 12th,
8 2025. Is that correct?

9 **A.** That's correct. Yes.

10 **Q.** Were you physically present at that interview?

11 **A.** No, I was not there.

12 **Q.** Have you spoken with the officers or agents that
13 were?

14 **A.** Yes. I've spoken to one of those agents that was
15 there.

16 **Q.** And you stated that that first September 12th
17 interview of Mr. Twiggs was recorded?

18 **A.** Yes. Audio and video-recorded.

19 **Q.** Have you reviewed that recording?

20 **A.** Yes, I have.

21 **Q.** So you stated that we're looking in State's Exhibit
22 16.1 at a picture of Mr. Twiggs' phone.

23 **A.** Yes.

24 **Q.** Do you know who took these photos?

25 **A.** Yes. It was Agent Larsen with the FBI.

1 **Q.** Did you speak with Agent Larsen and confirm that?

2 **A.** I did.

3 **Q.** And you kind of made reference to this already, but
4 how did Mr. Twiggs initially show law enforcement the relevant
5 text messages?

6 **A.** During that first interview on September 12th,
7 he physically -- he shows them the phone and then allows them
8 to photograph the phone.

9 **Q.** And does he identify it as his phone in that
10 interview?

11 **A.** Yes, he does.

12 **Q.** Does he refer to any particular features of the phone
13 that allows him to make that identification?

14 **A.** I believe the second interview, he refers to the
15 large crack in the upper left screen that -- so he identifies
16 that from -- in his second interview that was given on April
17 20th.

18 **Q.** And according to your review of the recording of his
19 first interview and in speaking with the agents that were
20 there, did he have his personal phone with him at the time of
21 the September 12th interview?

22 **A.** Yes, he did.

23 **Q.** And was this same text thread that we're seeing in
24 State's Exhibit 16.1 shown to him during his second interview
25 in -- sorry. Let me get the date right -- April 20th, 2026, at

1 the Utah County Attorney's Office that we just observed part of
2 in State's Exhibit 16?

3 **A.** Yes. It was shown to him.

4 **Q.** Was he asked how Tyler Robinson is saved in his
5 phone? Like as a contact?

6 **A.** Yeah. Just as "Tyler."

7 **Q.** Without saying it, obviously, did he identify Tyler
8 Robinson's phone number?

9 **A.** Yes, he did.

10 **Q.** Did you check the number that Mr. Twiggs gave as
11 Tyler Robinson's phone number against law enforcement records?

12 **A.** Yes, I did.

13 **Q.** And do they match?

14 **A.** Yes, they match.

15 **Q.** Is State's Exhibit 16.1 a fair and accurate
16 representation of the text thread between -- the relevant text
17 thread between Mr. Twiggs and Mr. Robinson?

18 **A.** Yes, it is.

19 **Q.** As part of the investigation, was a Cellebrite
20 extraction performed on Mr. Twiggs' phone?

21 **A.** Yes, it was.

22 **Q.** Did you personally review that extraction?

23 **A.** Yes, I have.

24 **Q.** And according to that extraction, did Mr. Robinson
25 and Mr. Twiggs exchange text messages on September 10th through

1 11th, 2025?

2 **A.** Yes, they did.

3 **Q.** What time was that first text sent according to the
4 Cellebrite extraction?

5 **A.** The first text was September 10th at 11:00 p.m.

6 MS. HUNT: All right, Judge. I would move to admit
7 State's Exhibit 16.1. And then pursuant to court order, I
8 would move to publish it to the monitors.

9 THE COURT: Mr. Novak?

10 MR. NOVAK: We have no further objections beyond
11 those that the Court of course is very familiar with at this
12 point in time.

13 THE COURT: All right. I'll note the standing
14 objections by the defense. Those objections are overruled.
15 16.1 is admitted into evidence and may be published to the
16 gallery, as well as electronically distributed through the
17 camera.

18 (State's Exhibit 16.1 received.)

19 **Q.** (BY MS. HUNT) All right, Agent. I want to -- I'm
20 not going to go through every single message, but I do want to
21 have you read aloud certain portions of them.

22 MS. HUNT: And I apologize to counsel. These are not
23 actually given a page number. I have page numbers, but I'm
24 happy to confer that we're on the same page as we go.

25 **Q.** (BY MS. HUNT) So here we're looking at page 1 of

1 State's Exhibit 16.1.

2 If you could start -- if you could read a little more
3 than halfway down where it begins "Wednesday 11:00 p.m." Will
4 you start reading underneath that?

5 **A.** Yes. So this would have been from Tyler. It says
6 "Drop what you are doing, look under your keyboard."

7 **Q.** And I apologize. Let me stop you there. How do you
8 know that that message would have been from Tyler Robinson?

9 **A.** That's just -- so any of the messages in gray would
10 be from Tyler and the messages in blue would be from Lance.
11 It's the way the iPhone distinguishes the messages. And also,
12 Lance -- Lance in his interview also acknowledges that, who was
13 saying what.

14 **Q.** And up at the top, who do we see that this thread is
15 between?

16 **A.** Tyler.

17 **Q.** All right. Sorry to interrupt you. So read that
18 again starting from "Look under the keyboard."

19 **A.** So after that, Lance responds. He says,
20 "What?????????????" And then he says, "You're joking right????"

21 And then Tyler says, "Fuck I tried to delete that."

22 **Q.** If we could scroll down to page 2. And if you can
23 continue reading along.

24 **A.** Okay. Then Tyler says, "I am still ok my love, but
25 am stuck in Orem for a little while longer yet. Shouldn't be

1 long until I can come home, but gotta grab my rifle still. To
2 be honest I had hoped to keep this secret till I died of old
3 age. I am sorry to involve you."

4 And then Lance replies, "You weren't the one who did
5 it right????"

6 And Tyler says, "I am, I'm sorry."

7 And Lance says, "I thought they caught the person?"

8 And then Tyler says, "No, they grabbed some crazy old
9 dude, then interrogated someone in similar clothing. I had
10 planned to grab my rifle from the drop point shortly after, but
11 most of that side -- side of town got locked down. It's quiet,
12 almost enough to get out, but there's one vehicle lingering."

13 **Q.** If we could scroll down to page 3. Continue reading.

14 **A.** Lance says, "Why?"

15 And Tyler says, "Why did I do it?"

16 And Lance says, "Yeah."

17 Tyler says, "I had enough of his hatred. Some hate
18 can't be negotiated out. If I am able to grab my rifle unseen,
19 I will have left no evidence. Going to attempt to retrieve it
20 again, hopefully they have moved on. I haven't seen anything
21 in the news about them finding it. Will update you shortly" --
22 sorry -- "will update you by midnight."

23 Then Lance says, "Alright. Stay safe. How long have
24 you been planning this?"

25 MS. HUNT: Scroll down a little bit, please,

1 Kimberlie.

2 THE WITNESS: And Tyler replies, "A bit over a week I
3 believe. I can get close to it but there is a squad car parked
4 right by it. I think they already swept that spot, but I don't
5 wanna chance it."

6 Q. (BY MS. HUNT) If we can scroll down to page 4 and
7 continue reading about halfway down. I'll stop you about
8 halfway down.

9 A. It says "While they were" -- "spot, but I don't wanna
10 chance it while they are parked there. If they had found it I
11 imagine there would be more commotion. Again I'm so sorry for
12 roping you into all this. You shouldn't have to worry about
13 this."

14 And Lance replies, "Does anyone else know?"

15 Tyler says, "Not to my knowledge."

16 Q. All right. I'll stop you there. Let's move to page
17 5.

18 So this should be page 4, so just scroll down one,
19 please, Kimberlie.

20 And if you could read starting --

21 Sorry, Kimberlie. Scroll a bit more down.

22 If you could read, I don't know, about one-third of
23 the way up that starts with "guess."

24 A. Okay. Tyler says, "Guess I'm just sitting in my car
25 watching reels for another hour, hopin this guy fucks off."

1 **Q.** And continue.

2 **A.** And Lance says, "Are you ok still?"

3 Tyler says, "Yes. Checkin spot again now. Will" --

4 **Q.** Sorry. Now we're on page 6. Continue reading.

5 **A.** -- "will update soon."

6 He continues, "The squad car was moved further away,

7 enough that I should be able to move in. I backed off cause I

8 thought I heard footsteps, maybe a foot patrol? But the

9 crickets here are so fuckin loud. Gonna see if the road closer

10 to campus is open, so I can drive past and check shit out.

11 Probably still closed off tho. Getting worried, hard to know

12 for sure but I'm not finding my rifle, could be in the wrong

13 spot."

14 Lance says, "Do you think they found it?"

15 And Tyler says, "Dunno, they haven't published

16 anything if they have."

17 And then Lance says, "Why did you leave it behind" --

18 **Q.** Oh, sorry. Kimberlie, if you could scroll down.

19 **A.** -- "originally? Also, does it have a serial number?"

20 **Q.** If we could scroll to page 7. And continue reading.

21 I'll stop you on this page in a little bit.

22 **A.** Okay. So Tyler continues "Idek if I had" -- "if it

23 had a serial number, but it wouldn't trace to me. I worry

24 about prints. I had to leave it in a bush where I changed

25 outfits. Didn't have the ability or time to bring it with."

1 **Q.** And stop there, please. And then if we could go to
2 the next page, page 8. And if you could start at the top.

3 **A.** Okay. So Lance says, "Was your change of clothes
4 there or was that also gone, or did you bring those with you
5 originally? Any way you could replace the gun or would he
6 notice?"

7 Then Tyler says, "Only thing I left was the rifle
8 wrapped in a towel. I'll bet that K9 sniffed it out. Little
9 snitching bastard. Replace it unlikely, I don't fully know
10 what the gun was, cause it was old as shit and gramps did some
11 modifying. There was a four digit serial on it. God only
12 knows who its registered too, hopefully some dead guy who gave
13 it to grandpa."

14 And he continues, "Remember how I was engraving
15 bullets? The fuckin messages are mostly a big meme. If I see
16 'notices bulge UWU' on Fox News, I might have a stroke."

17 **Q.** And then continue. I'll stop you in a moment.

18 **A.** It says, "Alright I'm gonna have to leave it. That
19 really fucking sucks."

20 **Q.** Let me stop you there. And then if we could go on to
21 the next page, page 9. And do you see the first blue message
22 we see on page 9? Can you start there?

23 **A.** Yes. So Lance says, "Do you need it for hunting?"

24 Then Tyler says, "No, my dad wanted to use it" -- "to
25 use a high calibre for the rifle hunt. Judging from today I'd

1 say grandpas gun does just fine IDK. I think that was a 2K
2 scope."

3 Lance says, "Geez."

4 And then Tyler says, "OMW home. 3.5 hrs."

5 Lance says, "Drive safe!"

6 And then Tyler says, "Delete this exchange."

7 **Q.** And then I'll stop you right there. We're on page 9.
8 If we can scroll to page 15.

9 And then the second grayed message on page 15, if you
10 could start there.

11 **A.** Okay. So this is Tyler. "I'm going to turn myself
12 in willingly, one of my neighbors here is a deputy for the
13 sheriff. We hope to keep things sorta quiet here."

14 **Q.** And then I'll stop you there.

15 **A.** Okay.

16 **Q.** And we can remove the exhibit from the screen. Thank
17 you, Kimberlie.

18 We mentioned the Cellebrite extraction of Mr. Twiggs'
19 phone. Do you know what time that last text was sent?

20 **A.** Yeah. I recall it was -- it was just before 8:00
21 p.m. on September 11th. I think it was 7:42 p.m., is my
22 recollection.

23 **Q.** I'm sorry. September 11th?

24 **A.** Yes.

25 **Q.** Would September 12th make more -- make sense? Or

1 you're saying September 11th?

2 **A.** So September 11th was when he turned himself in,
3 would have been September 11th.

4 **Q.** Okay. Thank you. All right. I'm going to show just
5 for the witness State's Exhibit 16.2. Let me know when you see
6 that.

7 **A.** Okay. I see it.

8 **Q.** Do you recognize this?

9 **A.** I do. Yep.

10 **Q.** What is it?

11 **A.** This is just more photos of Lance's phone. And these
12 are -- these are the -- sorry. I'm having a -- sorry. Go with
13 your question, please.

14 **Q.** I'm just asking what it is. So you said it's a photo
15 of Lance's phone. Do you know if that's from the same time
16 period as the exhibit we just looked at?

17 **A.** Yes.

18 **Q.** And what is it of?

19 **A.** These are the Discord messages of -- that Lance had
20 talked about.

21 **Q.** How do you know that?

22 **A.** So Lance in the first interview with FBI shows the
23 phone, and the photos were taken by Agent Larsen. And then
24 these images are shown to Lance during his second interview.
25 He confirms that these are those same messages and that this is

1 photos of Lance's phone.

2 Q. You mentioned that Agent Larsen took the photos. Do
3 you know if he's the same agent that took the photos of this
4 Exhibit 16.2?

5 A. Yes. Same agent.

6 Q. And you spoke with him to confirm that?

7 A. Yes, I did.

8 Q. Are you aware if Mr. Twiggs is actually part of this
9 Discord thread?

10 A. He -- yes. He is a part of it. He doesn't -- in
11 this section, he doesn't reply to it, but he does state in his
12 statement that he was part of the thread.

13 Q. Does he identify whether Mr. Robinson is part of that
14 thread?

15 A. He does.

16 Q. And when did that happen?

17 A. He identifies that in his first interview with the
18 two FBI agents, and then he again confirms that in his second
19 interview.

20 Q. Did Mr. Twiggs say what username on Discord
21 Mr. Robinson used at least with respect to this thread?

22 A. Yes. It's the "Tyler/Ikum."

23 Q. And is 16 -- Exhibit 16.2 a fair and accurate
24 representation of that Discord thread?

25 A. Yes, it is.

1 **Q.** Did law enforcement send -- as part of your
2 investigation, did law enforcement send a subpoena to Discord?

3 **A.** Yes, they did.

4 **Q.** Were these messages recovered via that subpoena?

5 **A.** They were.

6 **Q.** Did you review that?

7 **A.** Yes, I did.

8 **Q.** And in State's Exhibit 16.2 that is before you, when
9 is the first message from Tyler sent?

10 **A.** 7:57 p.m.

11 **Q.** And it says "Yesterday." Do you have any knowledge
12 of what day that would have been?

13 **A.** Yes. This would have been September 11th.

14 **Q.** So Tyler sends the first message that you're seeing
15 on Exhibit 16.2, September 11th at 7:57 p.m.?

16 **A.** Yes. That's correct.

17 **Q.** You testified earlier that Mr. Robinson arrived at
18 the Washington County Sheriff's Office approximately at 9:00
19 p.m. Is that right?

20 **A.** Yes. That's correct.

21 **Q.** And although you weren't physically present there yet
22 because you were flying down, how do you know that he arrived
23 approximately around 9:00 p.m.?

24 **A.** Just based on just the police reports I reviewed and
25 then going back and looking at the video and such.

1 MS. HUNT: Judge, the state moves to admit State's
2 Exhibit 16.2 and publish it pursuant to court order.

3 THE COURT: Mr. Novak?

4 MR. NOVAK: Thank you, your Honor. We've already
5 lodged all of our objections on all three phases.

6 THE COURT: All right. Noting the objections,
7 standing objections by defense. State's Exhibit 16.2 is
8 admitted into evidence and may be published only in the
9 gallery, not for distribution on electronic media.

10 (State's Exhibit 16.2 received.)

11 THE COURT: And could I have somebody verify it's not
12 going on that screen?

13 MR. MCBRIDE: It is on that screen.

14 THE COURT: All right. Well, so -- all right. So I
15 just want to make sure that the camera isn't picking up this
16 screen. All right. Perfect. Thank you.

17 All right. You may continue.

18 **Q.** (BY MS. HUNT) All right. I'm going to have you read
19 the top message that we see from "Tyler/Ikum."

20 **A.** Okay. So he says, "Hey, guys. I have bad news for
21 you all. It was me at UVU yesterday. I'm sorry for all of
22 this. I'm surrendering through a sheriff friend in a few
23 moments. Thanks for all the good times and laughs. You've all
24 been so amazing. Thank you all for everything."

25 And then a "Marina/DM" responds, "Actually scared TF

1 outta me a sec."

2 And then "Jug/Barnaby" replies, "That actually scared
3 the shit out of me LMAO. My heart started fucking racing
4 dude."

5 And then Tyler responds, "I don't follow."

6 And then Jug/Barnaby replies, "Because you're saying
7 it was you."

8 **Q.** If we could scroll to page 2 and continue on.

9 **A.** And then Tyler replies, "It was."

10 And then Jug/Barnaby says, "No it wasn't LMAO."

11 And then Tyler says, "Look at the pictures from the
12 surveillance footage. It was me. Thanks again for
13 everything."

14 And then Marina/DM responds, "You're genuinely
15 scaring me buddy."

16 And then Jug/Barnaby says, "You aren't serious
17 right?"

18 And Tyler says, "I'm serious."

19 **Q.** And you can stop there.

20 In this exhibit --

21 If you'll keep it up please, Kimberlie.

22 A few messages above that Tyler sends at 7:59, he
23 mentions pictures from surveillance. Do you know what that's
24 referring to?

25 **A.** I believe it would have been the FBI photos that were

1 released to the public regarding the shooting suspect from UVU.

2 Q. All right. Thank you. We can take down that
3 exhibit.

4 I'm next going to show just the witness only what's
5 been marked for identification as State's Exhibit 16.3. Let me
6 know when you see that on your monitor.

7 A. I see it.

8 Q. Do you recognize this?

9 A. I do.

10 Q. What is this?

11 A. This is a handwritten note or letter from Tyler to
12 Lance.

13 Q. How do you know that?

14 A. In Lance's first interview with FBI, he tells them
15 about this letter/note he found under Tyler's keyboard per a
16 text message he received he states from, you know, 11:00 p.m.
17 on September 10th. And so at that point, Lance finds this --
18 this is the letter he finds under that keyboard.

19 Q. Okay. So to clarify, Mr. Twiggs gets a text from
20 Mr. Robinson around 11:00 p.m. on September 10th telling him to
21 look under his keyboard?

22 A. Yes. Correct.

23 Q. And this is what Mr. Twiggs represented was
24 underneath the keyboard?

25 A. Yes. Yes.

1 **Q.** How did law enforcement get this photograph?

2 **A.** So following Lance's first interview at St. George
3 PD, his phone is recovered at that point, taken into evidence.
4 It is downloaded. I believe it was the following day or
5 shortly after that. The FBI transported that phone to the RCFL
6 which is the Regional Computer Forensic Laboratory in Salt Lake
7 City.

8 The phone was downloaded through Cellebrite, and
9 after that -- following that download that was complete, SBI
10 received the flash drive containing that download. From there,
11 it went to a SIAC analyst to go through that data of his phone
12 to look for any pertinent evidence or information that may be
13 on there. And at that point, that -- this image of this letter
14 was located.

15 **Q.** All right. I'm going to break down a few things.
16 You mentioned -- I just want to make sure the record is clear.
17 You mentioned Cellebrite a few times. What is Cellebrite?

18 **A.** It's a downloading software that's commonly used by
19 law enforcement. I don't do that myself, but it's commonly
20 used to recover data, to download electronic devices,
21 particularly cell phones.

22 **Q.** And then you mentioned SIAC. What does that mean?

23 **A.** It's the Statewide Information Analysis Center. It's
24 a division within DPS. It's a fusion center. They assist law
25 enforcement with intelligence, various intelligence information

1 for our investigations.

2 Q. You mentioned that you don't personally do Cellebrite
3 phone extractions. Have you spoken to the law enforcement
4 officers that performed the Cellebrite extraction on
5 Mr. Twiggs' phone in this case?

6 A. I don't believe I specifically talked to those
7 individuals at RCFL that did that. But -- but they -- yeah,
8 that would have been provided to SBI.

9 Q. Did you speak with officers at SBI that have
10 recovered this photo that we're seeing in State's Exhibit 16.3?

11 A. Yes. Yes. I've spoken to -- yeah. I've spoken with
12 the SIAC analyst who particularly -- in particular found this
13 image. I've spoken to her personally as well.

14 Q. Was Mr. Twiggs shown what's been marked as State's
15 Exhibit 16.3 during his second interview?

16 A. Yes, he was.

17 Q. And again, you were present for that?

18 A. Yes. I was there.

19 Q. Is Exhibit 16.3 a fair and accurate representation of
20 the photo law enforcement obtained from Mr. Twiggs' phone and
21 that he was subsequently shown in the second interview?

22 A. Yes. It's fair and accurate.

23 MS. HUNT: Your Honor, the state would move to admit
24 Exhibit 16.3 and then also publish pursuant to court order.

25 THE COURT: Mr. Novak?

1 MR. NOVAK: Just noting the objections that have
2 previously been made, and I think that the Court's order is
3 that it may be published in the courtroom only.

4 THE COURT: Thank you. Noting the standing objection
5 by defense -- 16.3, correct?

6 MS. HUNT: Correct.

7 THE COURT: Is admitted into evidence and may be
8 published only in the courtroom and not be shown or videoed.

9 (State's Exhibit 16.3 received.)

10 THE COURT: And if someone can just verify it's not
11 on that screen. Thank you to the media.

12 Q. (BY MS. HUNT) All right. I'm going to have you read
13 the entire note, but start at the top and I'll stop you to get
14 some clarification.

15 A. Okay. It starts out, it says "Luna" --

16 Q. And, sorry. That's where I'm going to stop you. Do
17 you know who Luna is?

18 A. That's Lance Twiggs.

19 Q. How do you know that?

20 A. According to -- in Lance's second interview, that
21 was -- he explains that. At that period of time, he was going
22 by "Luna" with some of his friends.

23 Q. Okay. Continue reading.

24 A. He says, "If you are reading this per my text then I
25 am sorry. I left the house this morning on a mission and set

1 an auto text. I am likely dead or facing a lengthy prison
2 sentence. I had the opportunity to take out Charlie Kirk and I
3 took it. I don't know if I will have succeeded, but I had
4 hoped to make it home to you. I wish we could have lived in a
5 world where this did not feel necessary. I wish I could have
6 stayed for you and lived our lives together. I lack the words
7 to express how much I love you and how very much you mean to
8 me. Please try and find joy in this life. I love you always,
9 Tyler."

10 **Q.** Okay. Thank you. We can remove that exhibit. I'm
11 going to show to the witness only what's been marked for
12 identification as is State's Exhibit 16.4. Let me know when
13 you see that.

14 **A.** I see it.

15 **Q.** Do you recognize this?

16 **A.** I do.

17 **Q.** What is it?

18 **A.** These are the images that the FBI released to the
19 public. It would have been on September 11th when those were
20 released. This was -- yeah. These were the images that went
21 public of the suspected UVU shooting suspect.

22 **Q.** How do you know that?

23 **A.** I've viewed the FBI's website, and I recall seeing
24 these images released on September 11th.

25 **Q.** Does State's Exhibit 16.4, is that a fair and

1 accurate representation of what you reviewed from the FBI that
2 the FBI released?

3 **A.** Yes, it is.

4 MS. HUNT: The state moves to admit Exhibit 16.4 and
5 publish according to court order.

6 THE COURT: Mr. Novak?

7 MR. NOVAK: No further objections. Thank you.

8 THE COURT: All right. Noting the standing objection
9 by defense. Overruling that objection. State's Exhibit 16.4
10 is admitted into evidence and may be published in the
11 courtroom.

12 (State's Exhibit 16.4 received.)

13 **Q.** (BY MS. HUNT) And again, in the Discord threads,
14 which is State's Exhibit 16.2, Tyler makes reference to
15 surveillance photos. What's your understanding as to what he
16 meant by that?

17 **A.** I believe they're these images here that -- from
18 you -- this is from the UVU campus, surveillance footage, video
19 surveillance of the campus.

20 **Q.** And again, Mr. Twiggs -- we saw in State's Exhibit
21 16, Mr. Twiggs was shown these photos; is that correct?

22 **A.** Yes, he was.

23 MS. HUNT: Judge, at this time, the Court had
24 provisionally admitted State's Exhibit 15 -- I'm sorry -- 5.1.
25 I would like to move for its full admission now because we

1 now -- the note in State's Exhibit 16.3 as well as the text
2 thread in 16.1, Exhibit 5.1 now provides additional context as
3 to why 5.1 is relevant.

4 THE COURT: Mr. Novak?

5 MR. NOVAK: Thank you, your Honor. The Court heard a
6 lot of argument about Exhibit 5.1, and I renew our objections
7 that it's not relevant. It contains opinion evidence that's
8 not helpful to the trier of fact. It's mostly about
9 Mr. Engelhardt's views about religion, Mr. Engelhardt's
10 opinions about Mr. Kirk's views about religion. There's
11 nothing in any of the exhibits which the state has presented or
12 in the witness's testimony which relates to religion at all.

13 Mr. Robinson is not referencing anything about
14 Mr. Kirk's religion or TPUSA's mission or the Book of Matthew.
15 It's not relevant and it has the evidentiary problems that I've
16 already referenced with respect to primarily being opinions
17 that are not helpful to the Court. I haven't said anything new
18 just now that I didn't say a couple days ago.

19 THE COURT: Thank you, Mr. Novak.

20 To the state. Do you wish to respond?

21 MS. HUNT: Yes. One moment.

22 Thank you for your patience, Judge.

23 In what's now been admitted State's 16.3 which is the
24 note that Mr. Robinson left for Mr. Twiggs, in the first
25 paragraph, he says, "I had the opportunity to take out Charlie

1 Kirk and I took it." Continuing down in the second paragraph,
2 he says, "I wish we could have lived in a world where this did
3 not feel necessary. I wish I could have stayed for you and
4 lived our lives together."

5 In State's Exhibit 16.1, page 3 -- this is the text
6 thread between Mr. Robinson and Mr. Twiggs. At the top of page
7 3, Mr. Twiggs says, "Why?"

8 Mr. Robinson responds, "Why did I do it?"

9 Mr. Twiggs says, "Yeah."

10 Mr. Robinson responds, "I had enough of his hatred.
11 Some hate can't be negotiated out."

12 So that makes relevant Mr. Kirk's -- Charlie Kirk's
13 organization, what their purpose was, the kinds of activities
14 and demonstrations they engaged in. This -- Mr. Novak's
15 argument was that the relevance of -- or the irrelevance of 5.1
16 doesn't speak to Mr. Robinson's state of mind. We now have
17 appropriate context showing what -- Mr. Robinson's state of
18 mind regarding Mr. Kirk and his hatred, that some hatred can't
19 be negotiated out. He wishes that they could live in a world
20 where this did not seem -- or this did not feel necessary,
21 again referring to State's Exhibit 16.3.

22 So that makes relevant Exhibit 5.1 because it
23 provides context for the types of activities and beliefs and
24 thoughts that Charlie Kirk and his organization were
25 participating in.

1 THE COURT: Any further argument from the parties?

2 MR. NOVAK: The information and the victim targeting
3 enhancement alleges a motive related to political expression
4 from Mr. Robinson's state of mind. This proposed exhibit is
5 predominantly about Mr. Engelhardt's views of Christianity and
6 Mr. Engelhardt's opinions of Mr. Kirk's views of Christianity.
7 I will acknowledge that there are very minor portions of it
8 which relate to things that are not about religious expression,
9 which is a separate, different victim targeting enhancement
10 factor that the legislature has endorsed, which is separate
11 from religion, which the state has not alleged here. And so
12 that's why the vast majority of it is not admissible. So if
13 the Court wants to entertain a conversation about redaction,
14 I'm prepared to do that at the appropriate time.

15 THE COURT: Thank you, Mr. Novak.

16 Anything further? And going to the request
17 specifically addressing the three levels of request for
18 admission.

19 MS. HUNT: I'll submit on the argument. I know that
20 5.1 -- well, I guess I'm not submitting. I'm arguing further.
21 5.1 does discuss religion. Religion and politics are often
22 inherently intertwined. The kinds of discussions and debates
23 that Mr. Kirk held, the events that he held, often contained
24 both topics being discussed, so I would renew our motion to
25 admit. And I also believe it should be published both in the

1 gallery and to the public at large.

2 THE COURT: All right. Mr. Novak, so there's -- I
3 know there's a standing objection. I just want to make sure if
4 you wanted to be heard on the last part. Anything that
5 Ms. Hunt brought up?

6 MR. NOVAK: Our primary concern is that the Court
7 only rely on evidence that is relevant and that is otherwise
8 admissible. I don't think that the expressions of opinions by
9 Mr. Engelhardt about religious matters are admissible. We
10 don't have a concern with the Court publishing whatever the
11 Court deems to be appropriate to receive into evidence. What
12 I'm saying is that I think it's -- it's overbroad in light of
13 the allegation that the state selected from the various
14 criteria that the legislature made available to the prosecutors
15 in this state. And I'll just leave it at that.

16 THE COURT: Thank you, Mr. Novak.

17 All right. Anything further?

18 MS. HUNT: Not on that exhibit. I'd like the Court's
19 ruling, and then I just have a few more questions.

20 THE COURT: All right. As it relates to 5.1, the
21 Court previously -- the day that I did it I believe was day two
22 perhaps.

23 MS. HUNT: That sounds correct.

24 THE COURT: The Court provisionally admitted it
25 contingent on additional foundation being laid, whether through

1 testimony or through evidence. And the Court notes that such
2 foundation and testimony has been laid in order for the
3 foundation to be laid for 5.1 to be admitted into evidence for
4 full consideration by this Court. And so that is received.

5 (State's Exhibit 5.1 received.)

6 THE COURT: As it relates to publication and taking
7 into consideration the arguments by Mr. Novak -- well, first
8 noting the objection, the standing objection by defense, that
9 is overruled as it relates to the admission to 5.1.

10 But going to the publication, the Court understands
11 the argument made by defense that this is going toward perhaps
12 religion and that the enhancement -- and let me just read that
13 from the information. "Victim targeting enhancement:
14 Violation of Utah Code Annotated 76-3-203.14(2). Tyler James
15 Robinson intentionally selected Charlie Kirk because Tyler
16 James Robinson's belief or perception regarding Charlie Kirk's
17 political expression," and that was also noted as an
18 enhancement for Count II and Count VII.

19 The Court is not going to engage -- the Court can
20 weigh how this is applied, but it finds it relevant whether --
21 how it relates to the enhancement is for the Court to weigh as
22 it looks at the bindover decision. And it's not engaging in
23 that decision-making today, but finds that it is relevant. It
24 is admissible to the Court and is publishable to the gallery as
25 well as to the public. And so if the state wishes to publish

1 State's Exhibit 5.1, it may do so at this time.

2 MS. HUNT: Thank you. Yes, we do.

3 And Kimberlie, I don't know if we want to use the
4 same kind of slow scrolling. Thank you.

5 All right. I believe that should be sufficient.

6 **Q.** (BY MS. HUNT) And Agent Davis, I apologize. I'm
7 going to take you very briefly back to State's Exhibit 16.1,
8 which is the text thread between Mr. Robinson and Mr. Twiggs.

9 Kimberlie, if you could turn to page 17. And because
10 this has already been admitted and -- correct me if I'm
11 wrong -- published not only to the gallery, but to cameras at
12 large, I'd ask that it be displayed in that fashion again.

13 THE COURT: All right. Any input from any other
14 party on that request?

15 MR. NOVAK: No.

16 THE COURT: All right. Thank you. It may be
17 published. And the media may pick this up as well.

18 **Q.** (BY MS. HUNT) Agent Davis, if I can direct you to
19 the very last message on that page, starting with "If any," if
20 you could read that out loud.

21 **A.** Okay. This is Tyler. He says, "If any police ask
22 you questions" -- sorry. Let me start over. "If any police
23 ask you questions ask for a lawyer and stay silent. My lawyer
24 should be Doug Terry, I'll see if he can reach out to you. And
25 make sure the police follow" --

1 **Q.** Okay. Thank you. That's all I need from that
2 exhibit.

3 And then finally, Agent Davis, you testified before
4 that you flew down to Washington County Sheriff's Office and
5 observed Tyler Robinson there, correct?

6 **A.** Correct.

7 **Q.** You got his name there?

8 **A.** Yes.

9 **Q.** You stated that you transported or assisted
10 transporting him up to Utah County Jail?

11 **A.** Yes.

12 **Q.** And that you were the booking officer?

13 **A.** That's correct.

14 **Q.** Do you recognize Tyler Robinson here in the courtroom
15 today?

16 **A.** Yes, I do.

17 **Q.** If you could point him out and briefly describe
18 something that he's wearing.

19 **A.** He's the individual seated at the defendant's table
20 in the center chair with a gray suit coat and a green tie.

21 MS. HUNT: Your Honor, if the record could reflect
22 identification of the defendant.

23 THE COURT: Counsel?

24 MR. NOVAK: No objection.

25 THE COURT: All right. I'll note for the purposes of

1 this hearing only that Agent Davis has identified Mr. Robinson
2 in court. Thank you.

3 MS. HUNT: And Judge, if I can just have a moment.

4 THE COURT: You may.

5 MS. HUNT: We're ready to pass the witness. Thank
6 you. And I don't know if now would be a good time for lunch.

7 THE COURT: All right. We'll go ahead and break
8 right now for lunch for one hour. Well, one hour and five
9 minutes. Let's come back at 1:30. We'll resume. We'll pick
10 up with the defense for cross-examination of issues for Agent
11 Davis. Does either party need the benefit of the record before
12 we go on our lunch break?

13 MR. GRUNANDER: Not the state.

14 MR. NOVAK: No cross-examination for Agent Davis, so
15 I don't want him to wait here if he has other things to do.

16 THE COURT: Thank you, Mr. Novak.

17 No cross-examination. May this witness be excused?

18 MS. HUNT: Yes.

19 THE COURT: All right. Agent Davis, you may step
20 down, and then we'll resume with the state on their next
21 witness. Court is now in recess.

22 (Off the record from 12:23 p.m. to 1:34 p.m.)

23 THE COURT: Court is back in session. Noting the
24 presence of counsel and all parties. We left off with Agent
25 Davis being excused from the stand. No cross-examination.

1 And turning to the state. Are you ready to proceed?

2 MR. MCBRIDE: State calls Sergeant Jennifer Faumuina.

3 THE COURT: All right. Sergeant, if you wouldn't
4 mind coming forward and being brought into the courtroom.

5 All right, Sergeant. If you'd like to come forward.
6 You're still under oath from your previous testimony from the
7 previous day. So if you'd like to come up to the witness
8 stand, be seated. To your left behind the monitor should be a
9 bottle of water. After you're situated, if you wouldn't mind
10 just pulling that microphone toward you to ensure that the
11 audio is picked up.

12 Mr. McBride, your witness.

13 SERGEANT JENNIFER FAUMUINA
14 called as a witness herein, having been first duly sworn by the
15 Clerk to tell the truth, was examined and testified as follows:

16 DIRECT EXAMINATION CONTINUED

17 BY MR. MCBRIDE:

18 **Q.** Sergeant Faumuina, good afternoon.

19 **A.** Good afternoon.

20 **Q.** We briefly covered some of your involvement in this
21 case the other day. I want to return back to your initial
22 assignment to this case. When were you first assigned to go to
23 the campus of Utah Valley University?

24 **A.** On September 10th of 2025.

25 **Q.** What time did you get that assignment?

1 **A.** I believe it was approximately 1:30 p.m.

2 **Q.** And where were you -- where were you when you
3 received that assignment?

4 **A.** I was at our headquarters office in Salt Lake.

5 **Q.** And did you go directly down to the campus?

6 **A.** Yes, I did.

7 **Q.** And will you describe what you're seeing as you
8 arrive there?

9 **A.** Yes. When I arrived there, I actually arrived on
10 to -- near the south end of campus, and that's where I saw
11 multiple police cars as well as multiple officers from various
12 agencies. Then I was asked to respond to the -- to our command
13 post, which was in the Fugal Building there.

14 **Q.** And the Fugal Building, we've had some testimony
15 about this, but is that just to the south of the courtyard?

16 **A.** Yes, that is.

17 **Q.** And were you there while officers were securing
18 campus?

19 **A.** Yes, I was.

20 **Q.** And do you know generally how that was done?

21 **A.** I don't know the specifics, but I do know that
22 officers were canvassing the area, trying to look for a
23 suspect, but also trying to see if anyone else was injured and
24 then making sure that the scene was secure and that no
25 unauthorized people were allowed in.

1 **Q.** And you -- I think you testified earlier. What was
2 your primary assignment?

3 **A.** My primary assignment at the campus as well as
4 throughout the case was to oversee the crime scenes as well as
5 the physical evidence.

6 **Q.** Before you could do your work on the crime scenes,
7 did the scene have to -- the campus have to become secure?

8 **A.** Yes, it did.

9 **Q.** And did that involve making sure there was no active
10 shooter on campus?

11 **A.** Yes.

12 **Q.** And did that involve officers searching buildings and
13 clearing buildings throughout campus?

14 **A.** Yes.

15 **Q.** You mentioned that there were -- were there multiple
16 areas that were processed by you and other crime scene analysts
17 in this case?

18 **A.** Yes, there was. Would you like me to go over them?

19 **Q.** Let me direct you to a few of them. Well, yes.
20 Please mention the scenes.

21 **A.** Yeah. So one scene was the courtyard area or I guess
22 what we could also refer to as the amphitheater where the event
23 took place. The other scene would have been the Fulton Library
24 where there were two bus stops. And then another would have
25 been the wooded area. And then the last one would have been

1 the Losee Center, the building as well as the ground below.

2 **Q.** All right. Let's start with -- well, let's start
3 with the rooftop. What was the -- first, who was assigned to
4 process the rooftop area?

5 **A.** The team that was assigned to process that was the
6 Utah Bureau of Forensic Services or also known as our state
7 crime lab.

8 **Q.** And generally what does processing an area involve?

9 **A.** Processing includes documentation, sketching, as well
10 as taking photographs, marking as well as labeling evidence,
11 and then determining how to package them properly as well as
12 also just trying to ID anything probative.

13 **Q.** On the rooftop, was evidence found?

14 **A.** Yes.

15 **Q.** What types of evidence were found on the rooftop?

16 **A.** One item of evidence that was found was a
17 screwdriver. Another one would have been the -- what we
18 believed was the shooter's perch. That was determined based --
19 that was easy to see at night. Using oblique lighting, we
20 could see disturbances in the gravel on the rooftop.

21 And then on the northeast edge, our team also found
22 some swipes on the ledge of that rooftop that was also
23 collected.

24 **Q.** Okay. So northeast ledge. And is this the dropping
25 off point?

1 **A.** Yes, it is.

2 **Q.** You said "swipes." What does that mean, "swipes"?

3 **A.** Swipes is -- I would describe it as kind of hand
4 marks or any type of marks that is left by something that
5 causes some type of disturbance.

6 **Q.** And where on the ledge were those located?

7 **A.** Those were located right on the edge of that roof
8 off -- sorry. Excuse me. Right on the edge of that rooftop.
9 And then right below we also had some other swipes as well as
10 some other impressions, and then below that was a glass window
11 where we also located some latent prints.

12 **Q.** Okay. I'm going to refer to the -- what you referred
13 to as the perch, the sniper position. Were measurements taken
14 from that sniper position to the tent where Charlie was seated?

15 **A.** Yes.

16 **Q.** Do you know the distance?

17 **A.** Yeah. So the distance from the perch area directly
18 to the tent where Mr. Kirk was sitting was approximately 415
19 feet. If you take into -- and this -- if you break it down, so
20 from the perch to the tent, what you're looking at is basically
21 like this. This is the perch and this is the tent.

22 **Q.** Now, your describing -- I'm sorry. We have to make a
23 record. You're describing an angle, a slope downward from the
24 perch to the location of the tent. Is that accurate?

25 **A.** Yes, I am.

1 **Q.** Okay. Go ahead.

2 **A.** Yeah. So the angle -- so, again, the distance, the
3 perch to the tent was approximately 415 feet. If you think
4 about it -- without taking into account the elevation drop, it
5 was actually 410 feet, so just horizontal straight across. And
6 then the elevation difference between -- between that is
7 approximately 68 feet.

8 **Q.** 400 feet -- 410 feet from the perch to the tent with
9 a 68 foot vertical drop; is that right?

10 **A.** Yes.

11 **Q.** On the rooftop, were shoe impressions found on the
12 rooftop?

13 **A.** Yes, there was.

14 **Q.** Did those who processed that area of the crime scene
15 collect the latent prints and the shoe impressions that you've
16 talked about?

17 **A.** Yes, they did.

18 MR. MCBRIDE: And this is a good point to read a
19 stipulation into the record.

20 THE COURT: All right.

21 MR. MCBRIDE: The language of this has been agreed
22 upon by the parties.

23 The parties stipulate that investigators at the crime
24 scene observed latent fingerprints and a palm print on a
25 grass -- glass window near the area where the individual landed

1 when the individual jumped from the rooftop of the Losee Center
2 at UVU. SBI fingerprint examiner Elisa Farmer examined images
3 of these latent fingerprints and the palm print and determined
4 that only three of the latent prints, 11B, 11C, and 11D, were
5 of comparable or of poor comparable value. She excluded Tyler
6 Robinson as the source of any of these three latent prints.
7 Ms. Farmer reviewed other prints on the window and found that
8 they did not have adequate value for comparison. Subsequent
9 examinations of these three latent -- or actual latent prints
10 by the FBI were inconclusive.

11 Q. (BY MR. MCBRIDE) That area that was described in
12 that stipulation, is that the area in the glass window that
13 you're talking about?

14 A. Yes, that is.

15 Q. That's on the northeast corner of the Losee Center?

16 A. Yes.

17 Q. And that's the area where we see in the video an
18 individual drop from the roof?

19 A. Yes.

20 Q. I want to move on to another area, the courtyard.
21 First, will you describe what that area of the crime scene
22 looked like?

23 A. Yeah. So when I arrived on scene, you have different
24 steps. I believe there was maybe like five or six covered in
25 grass. And again, when I was there, there were personal

1 belongings spread throughout. There was a tent towards the
2 west end of that courtyard area as well as some banners and
3 some barriers as well.

4 **Q.** Was that area processed for evidence as well?

5 **A.** Yes, it was.

6 **Q.** What was done to process that area?

7 **A.** Photography as well as just examining the tent area
8 to see if there was anything there.

9 **Q.** Okay. And who was assigned to process the courtyard
10 area?

11 **A.** The FBI.

12 **Q.** I want to take you to another area, a wooded area.
13 Was there a wooded area that was processed as well?

14 **A.** Yes, there was.

15 **Q.** Will you describe first off where that area is?

16 **A.** Yeah. So this area is located northeast of the Losee
17 Center building, and it is across from Campus Drive.

18 **MR. MCBRIDE:** Your Honor, could we publish Exhibit
19 35, please?

20 **THE COURT:** Yes.

21 **MR. MCBRIDE:** And if I may approach the witness, I'll
22 put up the hard copy of this exhibit as well.

23 **THE COURT:** All right.

24 **Q.** (BY MR. MCBRIDE) Can we publish the -- oh, thank
25 you.

1 All right. On the screen in front of you, will you
2 take a look at Exhibit 35?

3 **A.** Yes.

4 **Q.** Do you recognize that?

5 **A.** Yes, I do.

6 **Q.** Will you take a moment to orient yourself on that map
7 and tell me when you've found the relevant points that help you
8 understand what this map is of?

9 **A.** Yes.

10 **Q.** Do you see the courtyard on that map?

11 **A.** Yes, I do.

12 **Q.** Kimberlie, can you zoom in to the courtyard area?

13 Kind of the center of the --

14 There's a pointer on the screen. Is that the
15 courtyard?

16 **A.** Yes, that is.

17 **Q.** All right. Now, the Losee Center, will you
18 describe -- well, let's jump to the wooded area. Where is the
19 wooded area that you're talking about, the scene that was
20 processed?

21 **A.** Yeah. The wooded area, if you go from the courtyard
22 and you go northeast, you're going to come across this big
23 parking lot. And then if you just go directly north to that.

24 **Q.** Okay. This is -- at this point, it might be easiest
25 for you to actually indicate on the physical map. If you don't

1 mind just standing up. I'll give you a handheld mic here.

2 **A.** Yes. So the wooded area is approximately right here
3 in this area.

4 **Q.** Okay. So just to make a record of the area, on the
5 northern -- I guess I'll say -- and north is up on this map; is
6 that right?

7 **A.** Yes.

8 **Q.** Do you know where Campus Drive is?

9 **A.** Yes. Campus Drive is this road that winds right
10 along here.

11 **Q.** Okay. And so that's kind of the windy road that
12 begins in the upper left-hand corner of the exhibit and winds
13 down through the center of the map and kind of exits to the
14 middle right side of the map; is that right?

15 **A.** Yes.

16 **Q.** And the wooded area, where is it in relation to the
17 Campus Drive?

18 **A.** It is north of Campus Drive.

19 **Q.** Okay. Kind of in that -- probably the center right
20 of the map; is that right?

21 **A.** Yes. That's correct.

22 **Q.** Will you describe, first off, what is on the south
23 side across the street from the wooded area?

24 **A.** Yeah. So on the south side of -- or the south side
25 of the wooded area, we have the Computer Science Building,

1 which is to, I guess, east. And then we have a parking
2 structure, and we have a walkway along here in between that
3 connects the Computer Science Building and the Losee Center
4 building. And then right onto the southwest of the parking lot
5 area is going to be the Losee Center building.

6 Q. Okay. Now, you referred to the area across the
7 street from the wooded area as a parking structure.

8 A. Yes.

9 Q. That's a parking lot, right?

10 A. Yes. I'm sorry.

11 Q. And there is a parking structure on campus, correct?

12 A. Yes, there is.

13 Q. But that's different than the parking lot you just
14 mentioned?

15 A. Yes.

16 Q. Okay. All right. Back to the wooded area. What was
17 found -- was anything found in the wooded area of evidentiary
18 value?

19 You can sit down. Thank you.

20 You can take that exhibit down.

21 A. May you repeat your question?

22 Q. Was anything of evidentiary value found in the wooded
23 area?

24 A. Yes. In the wooded area, a rifle that was wrapped in
25 a dark colored towel was found there.

1 **Q.** And how did you learn about that?

2 **A.** I found it out because just a little bit before 6:00
3 p.m. that day, I received a call from Utah County Sheriff's
4 Office, who was tasked with searching that area.

5 **Q.** Do you know why they searched that area in the first
6 place?

7 **A.** Yeah. So they searched that area because I received
8 a video that was from the UVU security footage. This was
9 received by our command post on scene, and it showed who we
10 believe was the shooter on the rooftop run from the southwest
11 corner all the way to the northeast corner, jump down, and then
12 continue to the northeast side of that campus and then cross
13 the street to Campus Drive, and then he was -- the suspect was
14 out of camera's view after that.

15 **Q.** Okay. So he ran basically toward and into that
16 wooded area?

17 **A.** Yes.

18 **Q.** All right. What did -- what did -- what were you
19 told when -- from the sheriff's office?

20 **A.** I was told that they found a gun. And from there, I
21 asked them to hold the scene and that myself and FBI ERT team
22 lead, Special Agent Cammack, would be en route.

23 **Q.** Okay. FBI ERT, FBI Evidence Response Team, right?

24 **A.** Yes.

25 **Q.** All right. Did you do to that area?

1 **A.** Yes, I did.

2 **Q.** Did you obvious the weapon?

3 **A.** Yes.

4 **Q.** Will you describe what you saw?

5 **A.** Yeah. What I saw was a rifle that was -- or at the
6 time before even having removed it, we found -- or in the
7 bushes, we found -- all you could really see was just a dark
8 towel there. So pictures were taken of that. And then
9 eventually the gun or the towel was removed, and then once we
10 removed the towel from the bushes is when we uncovered that the
11 towel was actually used to wrap the gun in.

12 **Q.** Have you reviewed State's Exhibits 10, 10.1, 10.2,
13 and 10.3? Do you remember reviewing these?

14 **A.** Yes.

15 **Q.** And are they accurate photographs of the weapon when
16 it was recovered and shortly thereafter?

17 **A.** Yes.

18 MR. MCBRIDE: I move the admission of State's
19 Exhibits 10, 10.1, 10.2, and 10.3.

20 THE COURT: Defense?

21 MR. BURT: No additional objections, your Honor.

22 THE COURT: All right. And as it relates to
23 publication, if any?

24 MR. MCBRIDE: Yes. I would ask that these be
25 published at all three levels.

1 THE COURT: Any input, Mr. Burt?

2 MR. BURT: Same objections.

3 THE COURT: All right. I'll note the standing
4 objections from defense. Those are overruled. And 10. -- 10,
5 10.1, 10.2, 10.3 are admitted into evidence and may be
6 published both in the courtroom and through the use of the
7 camera.

8 (State's Exhibits 10, 10.1, 10.2, and 10.3 received.)

9 MR. MCBRIDE: Can we please publish number 10? Thank
10 you.

11 Q. (BY MR. MCBRIDE) You have in front of you on the
12 screen Plaintiff's Exhibit 10. Will you describe what we're
13 looking at here?

14 A. Yes. What we're looking at here is the bushes where
15 the dark colored towel and gun were found. You can kind of see
16 the dark colored towel towards the right-hand side of the
17 screen in the middle right now.

18 Q. Kimberlie, can you zoom into that area, please?

19 All right. Is this a better view of the towel?

20 A. Yes, it is.

21 Q. If we can go to Exhibit 10.1. Will you describe what
22 we're looking at in Exhibit 10.1?

23 A. Yes. This is a mid range shot of again the towel
24 that was used -- of the towel and within the bushes.

25 Q. All right. When -- when this was found and you

1 arrived on scene, what happened with that weapon?

2 **A.** We removed it from the bushes, or FBI Special Agent
3 Cammack removed it from the bushes. We then placed it on a
4 cardboard box, took pictures of it, and then we removed the
5 towel, packaged the towel separately, took additional pictures
6 of the gun, and then rendered it safe on scene.

7 **Q.** Okay. I'll ask you about that more in a minute, but
8 let's go to Exhibit 10.2. Will you describe what we see here?

9 **A.** Yeah. So what we see here now is the dark colored
10 towel and a -- the rifle that is in the towel, and it is in a
11 cardboard box.

12 **Q.** Why is the towel still around the gun?

13 **A.** We wanted to document as to how it was found.

14 **Q.** All right. Let's go to 10.3. Is this the rifle?

15 **A.** Yes, it is.

16 **Q.** You described making the rifle safe. Will you
17 describe what that is?

18 **A.** Yeah. So what that is is we ensure that there isn't
19 anything in the chamber and that there's no other cartridges in
20 the gun that would have it go off. So to do that, because it
21 is a bolt action gun, we would have to manipulate the bolt or
22 the lever back and then from there see if anything was in the
23 chamber and then I'll say carefully remove anything that was in
24 the chamber and below it.

25 **Q.** All right. What is the difference between a bolt

1 action and an auto-ejecting gun?

2 **A.** Yeah. A bolt action is one where the user actually
3 has to manipulate the bolt, so they would actually have to
4 turn -- they would actually have to pull it back and forward
5 to -- whether it be to load it, lock it, as well as extract
6 anything that's in it. Unlike a semi-auto gun, that is one --
7 every single time you pull the trigger, a bullet will be fired.
8 And then from there, a casing will be extracted out as well as
9 a new cartridge will then be automatically fed into the
10 chamber.

11 **Q.** So if you shoot a bolt action rifle, does that spent
12 shell casing automatically exit the gun?

13 **A.** No, it does not. It will stay in there until the
14 person that is handling the gun actually removes the -- or
15 actually pulls the bolt back, and then the casing will be
16 extracted out.

17 **Q.** Were you present when this weapon was made safe?

18 **A.** Yes, I was.

19 **Q.** Will you describe what was found when that happened?

20 **A.** Yeah. So when we rendered the gun safe, we found
21 that -- when we moved the bolt back, we found one -- one .30-06
22 cartridge case -- or I should say fired cartridge case, and we
23 also found three unfired cartridges all with engravings on
24 them.

25 **Q.** Okay. I want to make sure we understand the language

1 you're using. When you say "cartridge case" and you say
2 "cartridge," what do you mean?

3 **A.** Yeah. So a cartridge is basically the round itself.
4 Right? The whole round. And the round consists of the
5 cartridge case and then the powder and then the bullet on top.
6 So a cartridge case, the term is used for something that has
7 been fired already. A cartridge is an unfired round.

8 **Q.** Okay. Cartridge is the unfired round that still has
9 the bullet, the powder, and all that.

10 **A.** Yes.

11 **Q.** Cartridge case is the fired -- is a round that has
12 been fired, and it's just the empty brass casing; is that
13 right?

14 **A.** Yes.

15 **Q.** Okay. Was there any -- so there was -- I just want
16 to make sure I understand. A fired cartridge case and three
17 unfired cartridges?

18 **A.** Yes.

19 **Q.** Was there anything distinctive about these items?

20 **A.** All four of them had engravings on them.

21 **Q.** Did you observe those engravings?

22 **A.** Yes, I did.

23 **Q.** Did you observe them right there on scene?

24 **A.** Yes, I did.

25 **Q.** And what was done with -- let's talk about each of

1 those things. The -- first, the towel. What was done with the
2 towel?

3 **A.** The towel was packaged in -- it was packaged and then
4 it was eventually provided to the FBI.

5 **Q.** What was done with the firearm?

6 **A.** The firearm was also packaged and then provided to
7 the FBI as well.

8 **Q.** Was the firearm -- did the firearm go to the FBI or
9 the ATF at the time?

10 **A.** First it went to the FBI, and then for -- to be in
11 their custody, and then it was then sent to the ATF lab.

12 **Q.** Okay. And the rounds, the cartridge and cartridge
13 cases -- cartridges and cartridge case?

14 **A.** Yes. All of those were packaged, originally provided
15 to the FBI, and then sent to the ATF lab.

16 **Q.** All right. And were each of those items tested?

17 **A.** Yes, they were.

18 **Q.** And in the testing, were they photographed?

19 **A.** Yes.

20 **Q.** Have you reviewed the -- and were they photographed
21 by the ATF when they were tested?

22 **A.** Yes, they were.

23 **Q.** Have you reviewed their photographs?

24 **A.** Yes.

25 **Q.** And were you previously shown State's Exhibits 19,

1 20, 21, and 22?

2 **A.** Yes.

3 **Q.** And are those the -- are those photographs that the
4 ATF -- that you received back from the ATF of those cartridges
5 and the cartridge case?

6 **A.** Yes.

7 **Q.** Did they have the same appearance and etchings that
8 you saw when you observed them removed from the gun?

9 **A.** Yes.

10 **Q.** And did those photographs accurately capture those
11 etchings?

12 **A.** Yes.

13 MR. MCBRIDE: I move to admit State's Exhibits 19
14 through 22.

15 THE COURT: Mr. Burt?

16 MR. BURT: No additional objections, your Honor.

17 THE COURT: All right. I'll note the standing
18 objections. Those objections overruled. And 19, 20, 21, and
19 22 are admitted.

20 (State's Exhibits 19 through 22 received.)

21 THE COURT: And as to publication, Mr. McBride?

22 MR. MCBRIDE: Move to publish these exhibits at all
23 three levels.

24 THE COURT: All right. Any further objection from --

25 MR. BURT: No further objection.

1 THE COURT: Thank you. I note the standing
2 objections, as well as they are overruled. They may be
3 published within the courtroom and captured by the media
4 camera.

5 **Q.** (BY MR. MCBRIDE) Let us start with Exhibit 19,
6 please. What are we looking at here in Exhibit 19?

7 **A.** This is the cartridge case that was recovered from
8 the gun.

9 **Q.** And what position was this in in the gun?

10 **A.** This was the -- this is what was in the chamber.

11 **Q.** Okay. And the "chamber" meaning that's where --
12 that's where a cartridge is before -- or when it is fired,
13 correct?

14 **A.** Yes.

15 **Q.** Do you notice an inscription or an etching on this
16 cartridge case?

17 **A.** Yes, I do.

18 **Q.** Would you read what that says?

19 **A.** Yes. "Notices bulge."

20 **Q.** And if we can go down to page 2 of the exhibit. Will
21 you read what this says?

22 **A.** "OWO what's."

23 **Q.** And page 3?

24 **A.** "This."

25 **Q.** And question mark, correct?

1 **A.** Yes. Question mark.

2 **Q.** All right. If we go to State's Exhibit 20. Is this

3 a photograph of one of the cartridges that was found in the

4 gun?

5 **A.** Yes, it is.

6 **Q.** And what are we looking at here in this view of page

7 1 on Exhibit 20?

8 **A.** This is the head stamp of it, and it says it is a --

9 according to the head stamp, it is a Remington .30-06

10 Springfield.

11 **Q.** Is that a different caliber than a .223 round?

12 **A.** Yes, it is.

13 **Q.** Will you look at page 2 of Exhibit 20? Will you read

14 the markings here?

15 **A.** "Hey fascist."

16 **Q.** And page 3?

17 **A.** "Catch."

18 **Q.** And page 4?

19 **A.** Up arrow, right arrow, down arrow, down arrow, down

20 arrow.

21 **Q.** All right. Let's go to Exhibit 21.

22 And was this another round that was found in the gun?

23 **A.** Yes.

24 **Q.** Will you read the inscription here?

25 **A.** "O Bella ciao."

1 **Q.** Page 2?

2 **A.** "Ciao ciao."

3 **Q.** All right. Let's go to Exhibit 22. Another round

4 that was found from the gun, correct?

5 **A.** Yes.

6 **Q.** Will you please read the letters here?

7 **A.** "If you read."

8 **Q.** Page 2?

9 **A.** "This," comma, "you're" -- correction -- "this,"

10 comma, "you are."

11 **Q.** Page 3?

12 **A.** "Gay."

13 **Q.** And page 4?

14 **A.** "LMAO."

15 **Q.** All right. After processing the scenes there at Utah

16 Valley University in Orem, did you -- did you go to St. George?

17 **A.** Yes, I did.

18 **Q.** And what was your role in St. George?

19 **A.** My role was overseeing the execution of the search

20 warrants at both Mr. Robinson's residence as well as his

21 parents' residence.

22 **Q.** Was -- and we've had testimony that Mr. Robinson was

23 arrested there. Was he fingerprinted and his DNA taken?

24 **A.** They were actually taken at the Utah County Sheriff's

25 Office jail.

1 **Q.** After he was transported to Utah County?

2 **A.** Yes.

3 **Q.** Okay. You said that there was -- oh, and was -- were
4 items of evidence collected from him after he was arrested?

5 **A.** Yes, there was.

6 **Q.** From his person. What were those things?

7 **A.** They were his clothing that he was wearing at the
8 time of his arrest to include shirts, pants, underwear, as well
9 as shoes and anything that were in his pockets.

10 **Q.** Do you remember what tops he had on?

11 **A.** I believe it was a maroon top.

12 **Q.** And was there any other top layer that was collected
13 that you recall?

14 **A.** I don't recall.

15 **Q.** Okay. Let's go to -- you said there were a couple of
16 homes that were searched there; is that right?

17 **A.** Yes.

18 **Q.** Whose homes was that?

19 **A.** One of them was where Mr. Robinson and Mr. Twiggs
20 resided, and the other was Robinson's parents' residence.

21 **Q.** I want to ask you about the defendant's home. What
22 items -- will you describe some of the items that were
23 collected from that home?

24 **A.** Some items collected in that home was a Dremel tool
25 and its bits container as well as two Remington boxes of .30-06

1 ammunition as well as some .30-06 cartridge cases and a handful
2 of long guns or rifles, a revolver, as well as a burned paper.

3 Q. All right. I want to ask you about clothing as well.
4 Was any clothing collected from the townhome?

5 A. Yes, there was.

6 Q. How about shoes?

7 A. Yes.

8 Q. What kind of shoes?

9 A. Two shoes were collected from the home. One was a
10 Converse shoes, gray in color with white laces, I believe a
11 size 10 and a half. And then another Converse shoes that were
12 also gray, but it had gray laces instead, but were of a
13 different size that I can't remember.

14 Q. I think you said that you collected boxes of
15 ammunition. Do you remember what caliber that ammunition was?

16 A. Yes. There were a handful, but the one that I recall
17 was .30-06.

18 Q. And you also said you found some cartridge cases. Do
19 you remember what caliber those cartridge cases were?

20 A. Yes. Those were also .30-06.

21 Q. If we can display just to the witness Exhibit 23.

22 Do you recognize State's Exhibit -- Plaintiff's
23 Exhibit 23?

24 A. Yes, I do.

25 Q. And is that an accurate photograph of the cartridge

1 casings and some of the bullets that you found?

2 **A.** Yes.

3 MR. MCBRIDE: I would move the admission of
4 Plaintiff's Exhibit 23.

5 THE COURT: Mr. Burt?

6 MR. BURT: No further objections, your Honor.

7 THE COURT: I'll note the standing objections by
8 defense, overrule those objections, and admit into evidence
9 State's Exhibit 23. As to publication, Mr. McBride?

10 MR. MCBRIDE: I would move to publish at all three
11 levels.

12 THE COURT: All right. It is published to the
13 courtroom as well as may be broadcast via the camera.

14 (State's Exhibit 23 received.)

15 **Q.** (BY MR. MCBRIDE) As that's coming up, where did you
16 find these?

17 **A.** I found these in what we would consider the spare
18 bedroom right next to Tyler's bedroom on top of a safe.

19 **Q.** How do you know which bedroom was Tyler's bedroom?

20 **A.** We determined that based off some documents we found
21 in what we believed was Tyler's bedroom such as mail that was
22 addressed to him as well as some school documents as well.

23 **Q.** And, again, in relation -- will you describe the
24 layout of the house in that area?

25 **A.** Yeah. So this was on the second floor as you're

1 coming up the stairs. If you turn left up the stairs, you're
2 going to run into two bedrooms, and that is on the south end of
3 that residence. The southeast bedroom would be Tyler's, and
4 then the southwest would be the spare bedroom. Again, if you
5 go back to the stairs and you make a right-hand turn, that is
6 where you're now on the -- you're now on the north end of that
7 residence, and that is now Twiggs' bedroom.

8 Q. And where were these -- these items here in 23 found?

9 A. These were found on the southwest -- or in the
10 southwest bedroom, the one right next to Tyler's bedroom.

11 Q. And you said on top of the safe?

12 A. Yes.

13 Q. Okay. All right. Will you describe what we're
14 looking at in Exhibit 23?

15 A. Exhibit 23 are the five cartridge casings we found on
16 top of the safe. All were .30-06 Springfield caliber. And one
17 of them had an engraving that said "test shot" on it.

18 Q. You've talked about Springfield, Remington. Are
19 these -- is this -- these .30-06s, are they the same type of
20 round as was found in the gun?

21 A. Yes.

22 Q. All right. Did you find any .30-06 weapons in that
23 house?

24 A. No, we did not.

25 Q. All right. Did you search the closet on the first

1 floor?

2 **A.** Yes, I did.

3 **Q.** What did you find in the closet?

4 **A.** In the closet, we found on the ground some shooting
5 targets in perforations on it, as well as on the shelf, we
6 found a Dremel tool with a bits container.

7 **Q.** All right. A Dremel tool with bits. What is a
8 Dremel tool?

9 **A.** It's basically like a handheld device where you can
10 make etchings or engravings on things.

11 **Q.** What are bits?

12 **A.** Bits would be the -- I guess like a sharp edge or
13 something that would actually cause the etchings that you put
14 into the tool.

15 **Q.** Is this kind of like a drill bit?

16 **A.** Yes.

17 **Q.** Okay. And what did you do with the Dremel and the
18 bits?

19 **A.** We -- we photographed them in place, took additional
20 pictures, packaged them, and then sent them for testing to the
21 ATF.

22 **Q.** All right. You also mentioned targets. Were those
23 targets photographed?

24 **A.** Yes, they were.

25 **Q.** I want to show you on your -- and have you reviewed

1 Plaintiff's Exhibit 25 before?

2 **A.** Yes.

3 **Q.** And is that an accurate photograph of those targets
4 that you found?

5 **A.** Yes.

6 MR. MCBRIDE: I move the admission of State's Exhibit
7 25?

8 THE COURT: Mr. Burt.

9 MR. BURT: No further objections.

10 THE COURT: All right. Note the standing objection
11 and those objections are overruled.

12 MR. MCBRIDE: Excuse me. Sorry.

13 THE COURT: Well, did you want to -- in regards to
14 publication?

15 MR. MCBRIDE: Yes. I'm so used to admission before
16 publishing. I would move to publish those at all three levels.

17 THE COURT: Any further comment, Mr. Burt?

18 MR. BURT: No further objections.

19 THE COURT: All right. Noting the standing
20 objections, those are overruled. State's Exhibit 25 is
21 admitted into evidence and may be published in the courtroom as
22 well as captured by the media camera.

23 (State's Exhibit 25 received.)

24 **Q.** (BY MR. MCBRIDE) Will you describe what we're
25 looking at here?

1 **A.** Yes. So these were shooting targets we found in the
2 closet, and each of them have -- excuse me -- perforations in
3 them.

4 **Q.** When you say "perforations," what do you mean?

5 **A.** Holes in them.

6 **Q.** Those holes consistent with --

7 MR. BURT: Objection. Foundation on this opinion.

8 THE COURT: Mr. McBride, do you want to weigh in on
9 that objection?

10 MR. MCBRIDE: No. I'll submit it. I'll lay
11 foundation if the objection is sustained.

12 THE COURT: I'll sustain the objection.

13 **Q.** (BY MR. MCBRIDE) All right. Holes. Have you ever
14 seen -- have you ever shot a gun before?

15 **A.** Yes, I have.

16 **Q.** When you hit a target, what happens to the target
17 when it's hit with a bullet?

18 **A.** Hit with a bullet, there's holes in it, what we call
19 perforations because there's an entrance as well as an exit.

20 **Q.** Looking at State's Exhibit 25, I'm going to ask the
21 question that was objected to. You said there's perforations
22 in those. Were those consistent with bullet holes?

23 **A.** Yes.

24 **Q.** And I want you to -- I would ask you to describe
25 where those perforations are on -- on the -- there's three

1 targets here, right?

2 **A.** Yes.

3 **Q.** Let's look at the -- let's look at the far right
4 target first. Where are the perforations in relation to the
5 bull's-eye?

6 **A.** They're all probably within the 7, 6, and 8 ring.

7 **Q.** Is there a -- is there a perforation up at the upper
8 left-hand corner of that rightmost target?

9 **A.** Yes, there is.

10 **Q.** Did any of those hit the bull's-eye?

11 **A.** No.

12 **Q.** Okay. Looking at the center target, will you
13 describe where the perforations are in relation to the
14 bull's-eye there?

15 **A.** It is closer, but still not it. Most of them are
16 usually -- are to the left of the bull's-eye in rings, I'd say,
17 9 and 8.

18 **Q.** All right. And then the leftmost target, will you
19 describe where the perforations are there?

20 **A.** The perforations are actually closer to the
21 bull's-eye as well, actually one being in it.

22 **Q.** Okay. All right. You described also collecting a
23 burnt note.

24 We can take down 25. Thank you.

25 Will you describe where that note was found and what

1 it looked like to you?

2 **A.** Yeah. The burned note was found in the trash can
3 located in the kitchen. The way it looked like to me, it
4 looked like say you're at like a campfire and someone burns
5 paper.

6 **Q.** What was done with that?

7 **A.** That was also collected and that was sent to the FBI
8 for analysis.

9 **Q.** Was it photographed?

10 **A.** Yes, it was.

11 **Q.** And have you reviewed State's Exhibit 24?

12 **A.** Yes.

13 **Q.** Is that a photograph of the note?

14 **A.** Yes.

15 MR. MCBRIDE: I'd move the admission of Plaintiff's
16 Exhibit 24?

17 THE COURT: Mr. Burt?

18 MR. BURT: No further objections.

19 THE COURT: All right. And to publication?

20 MR. MCBRIDE: I move to publish at all three levels.

21 THE COURT: All right. I'm going to note the
22 standing objection by defense and overrule those objections.
23 And State's Exhibit 24 is admitted into evidence and may be
24 published in the courtroom and may be captured by the media
25 camera.

1 (State's Exhibit 24 received.)

2 Q. (BY MR. MCBRIDE) Do you see here on the screen
3 Plaintiff's Exhibit 24?

4 A. Yes, I do.

5 Q. It looks like as to the evidence tag, it's actually
6 upside down. Is that right?

7 A. Yes.

8 Q. Is there any -- does it look like there's any
9 writings on that note, on that burnt paper?

10 A. Yes.

11 Q. Will you point that out for the judge where -- where
12 the writing is? And describe -- and describe what you're
13 pointing at, kind of the general location on the image?

14 A. Yeah. So the part that I'm pointing out is the paper
15 that you can kind of -- you can still see the lines in them
16 and -- as well as some handwriting as well to the edge, the
17 left edge of that piece of paper.

18 Q. All right. Have you also observed the image of the
19 note that was recovered from Lance Twiggs' phone?

20 A. Yes.

21 Q. And I'd like to show you side by side Exhibit 24.
22 And there on the left, you see exhibit -- there on the left, we
23 see Exhibit 24. Do you see that?

24 A. Yes, I do.

25 Q. And on the right, you see -- excuse me. On the right

1 is 24. On the left is 16 --

2 THE COURT: Let me stop you, Mr. McBride. I'm not
3 sure. Is this being broadcast?

4 MR. MCBRIDE: Let's take that down.

5 THE COURT: All right.

6 MR. MCBRIDE: Exhibit 24 --

7 Thank you, your Honor.

8 Excuse me. Exhibit 16.3, I would move to publish
9 Exhibit 16.3 and 24 side by side. I think they're currently on
10 the counsel monitors.

11 THE COURT: So 16.3 has already been admitted.

12 MR. MCBRIDE: And I don't remember the Court's order
13 if this was to be captured by electronic media or not.

14 THE COURT: It was not. Is that the -- does that
15 comport with defense's memory as well?

16 MR. BURT: It does.

17 THE COURT: All right. So 16.3 was published to the
18 courtroom, but not to be captured by the media.

19 MR. MCBRIDE: Very well.

20 THE COURT: So as it's -- and what is your request?

21 MR. MCBRIDE: To comply with the Court's order.

22 THE COURT: All right. So 16.3 and Exhibit 24 may be
23 published side by side only to the courtroom itself and not
24 on -- to be captured by the camera.

25 MR. MCBRIDE: Thank you.

1 Kimberlie, if I could have you zoom in --

2 **Q.** (BY MR. MCBRIDE) Well, do you see anything --
3 Before you do that, Kimberlie.

4 Sergeant Faumuina, do you see any -- any similarity
5 between 24 and 16.3?

6 MR. BURT: There's no foundation for that opinion,
7 and it's irrelevant. Also 403.

8 THE COURT: Could you repeat it? I just want to make
9 sure it's fully on the record, Mr. Burt.

10 MR. BURT: Sure. No foundation for an opinion,
11 relevancy, and also under 403.

12 THE COURT: Thank you.

13 Mr. McBride?

14 MR. MCBRIDE: Yes, your Honor. This is proper lay
15 testimony. Anyone can look at the two images and determine if
16 there is a consistency.

17 As to the weight that that -- that that testimony is
18 entitled to, that's up to the Court to determine. It would
19 also be up to a trier of fact if this was in front of there
20 jury, but it's not. If there is some improper weight it could
21 be given, meaning expert testimony in some way, the Court is
22 capable of distinguishing that. I think as you look at the two
23 images, you can draw your own conclusions here as well.

24 MR. BURT: He just admitted that anyone could look at
25 it, make the comparison. That would include the Court, I

1 assume. So the testimony is not helpful. A lay opinion of
2 this nature is not helpful to the Court.

3 THE COURT: Thank you.

4 Anything further?

5 MR. MCBRIDE: Just that I think it will -- excuse me.
6 I think it will be helpful to you as the trier of fact to give
7 direction as to where to look to make that comparison.

8 THE COURT: All right. At the preliminary hearing
9 stage, the Court is required to view -- to draw all inferences
10 in favor of the prosecution. And the magistrate has a limited
11 role as it relates to the weighing of evidence, credibility and
12 such. And so pursuant to Utah case law, at this point -- and
13 also acknowledging that the magistrate can weigh the evidence
14 and is not weighing in on this evidence, solely admitting it --
15 well, it's already been admitted, but as it relates to the
16 testimony, the Court is going to overrule the objection and
17 allow the testimony to be given. Again, whether the Court
18 accepts or doesn't accept that will be a determination made
19 when determining probable cause.

20 MR. MCBRIDE: Thank you.

21 **Q.** (BY MR. MCBRIDE) Do you see any consistencies that
22 you're able to look at -- you know, to compare between the
23 burnt note and the image from Mr. Twiggs' phone?

24 **A.** Yes, I do.

25 **Q.** Indicate where on Exhibit 16.3 -- that's the image on

1 the left -- you see that consistency or that -- those areas of
2 comparison.

3 **A.** Yeah. So with 16.3, I'm actually looking at the
4 second paragraph, the last two lines -- the last sentence there
5 of the second paragraph. It will be the two words on the far
6 right-hand side. And there's three letters and a punctuation.

7 **Q.** All right. What are those two words that you're
8 using to compare?

9 **A.** "Stayed" and "together."

10 **Q.** And where are you comparing those on the burnt note?

11 **A.** I'm comparing that to the end of "stayed," so "ED,"
12 and then with "together," the letter "R," and then the
13 punctuation or the period.

14 **Q.** Very well.

15 Okay. We can take that down.

16 All right. Did you also collect the defendant's car?

17 **A.** Yes.

18 **Q.** Where did you collect that from?

19 **A.** That was collected at the Robinsons' parents' home.

20 **Q.** And will you describe that vehicle?

21 **A.** Yeah. That vehicle is a gray colored Dodge
22 Challenger.

23 **Q.** You mentioned that you sent several items for -- to
24 the ATF and the FBI for testing. And did you receive reports
25 back from both of those entities with results of the testing?

1 **A.** Yes, I did.

2 **Q.** I'd like to show you on the witness's screen only
3 right now, or counsel's screens, Exhibit 30.

4 THE COURT: All right. And while you're doing that,
5 Mr. McBride -- and also, could we go ahead and take down
6 State's Exhibit 35? I know it's just in the background, but
7 just to --

8 MR. MCBRIDE: Sure.

9 THE COURT: -- be consistent on the displaying of the
10 exhibits.

11 All right. Thank you. You may proceed.

12 **Q.** (BY MR. MCBRIDE) Plaintiff's Exhibit 30. Do you
13 know what this is?

14 **A.** Yes. This is the ATF report that I received
15 regarding the DNA testing on the gun and cartridge and
16 cartridge casings. Or, sorry. Cartridge casing and
17 cartridges.

18 **Q.** Thank you. And is this in the same condition as it
19 was when you received it?

20 **A.** Yes.

21 MR. MCBRIDE: Your Honor, I'd move the admission of
22 Exhibit 30.

23 THE COURT: Mr. Burt?

24 MR. BURT: No further objections, your Honor.

25 THE COURT: All right. I note the standing

1 objections -- well, and as to publication, Mr. McBride?

2 MR. MCBRIDE: Yes, your Honor. This exhibit deals
3 with DNA testing on the rifle and the cartridges. We would
4 move to have it published at all three levels.

5 THE COURT: All right. So noting the standing
6 objection by defense, I'll overrule that objection pursuant to
7 Utah Rule of Evidence 1102. State's Exhibit -- and this is 30?

8 MR. MCBRIDE: 30.

9 THE COURT: State's Exhibit 30 is admitted into
10 evidence and may be published on screen in the courtroom and
11 for the media camera.

12 (State's Exhibit 30 received.)

13 Q. (BY MR. MCBRIDE) I want to ask you a little bit
14 about the format because it may be helpful to understand here.
15 But on page 1 under the exhibits, we have here a list of items
16 that were sent in for testing and comparison; is that right?

17 A. Yes.

18 Q. And throughout the report, the report refers to the
19 items compared by the lab number. Is that right?

20 A. Yes.

21 Q. So if we can scroll down just to the bottom of this
22 first page. And here in the DNA analysis section, again, we
23 see that the report or the author refers to the items by their
24 exhibit numbers, right?

25 A. Yes.

1 **Q.** Okay. And if we can go to page 2. And same question
2 here. The exhibit number on the left, if we want to know what
3 exhibit number that is, we have to refer back to page 1 for the
4 description, right?

5 **A.** Yes.

6 **Q.** Okay. And let's keep going to page 3. If we can
7 just scroll through page 3, 4, and land on page 5. Actually,
8 pause right there if you will. This is page 4. There's a
9 description section here as well. And that description talks
10 about where the swabbing that's used to compare what was
11 swabbed for the comparison. Is that right?

12 **A.** Yes.

13 **Q.** Okay. Let's go to page 5. So as we look at this
14 first paragraph here under "Statistical Analysis," if -- let's
15 see if you have this notated or know. Exhibits 1.1 and 1.4, do
16 you know what that is referring to?

17 **A.** Yeah. They're referring to -- 1.1 is swabs of the
18 stock and grips of the rifle, and then 1.4 is swabs of the bolt
19 of the rifle with possible ridge detail and/or smudging.

20 **Q.** Okay. Will you read paragraph D?

21 **A.** Yes. "The DNA profiles are at least 1 trillion times
22 more likely if they originated from Tyler Robinson (Exhibit
23 7.1) as a contributor to the major components and three
24 unrelated, unknown individuals than if they originated from
25 four unrelated, unknown individuals."

1 **Q.** And again, that's swabs of the grips and the bolt --
2 stock and grips and bolt. Is that right?

3 **A.** Yes.

4 **Q.** Okay. Number two, calculation number two, where is
5 that swab taken from?

6 **A.** Exhibit 1.2 would be swabs of the butt plate of the
7 rifle.

8 **Q.** And will you read paragraph D here?

9 **A.** "The DNA profile is at least 1 trillion times more
10 likely if it originated from Tyler Robinson as the major
11 component and four unrelated, unknown individuals than if it
12 originated from five unrelated, unknown individuals."

13 **Q.** Looking at calculation number three, Exhibit 1.3.
14 What areas were swabbed for this comparison?

15 **A.** 1.3 is swabs of the trigger and trigger guard of the
16 rifle with possible ridge detail and/or smudging.

17 **Q.** Will you read paragraph D?

18 **A.** "The DNA profile is at least 1 trillion times more
19 likely if it originated from Tyler Robinson as a major
20 component and three unrelated, unknown individuals than if it
21 originated from four unrelated, unknown individuals."

22 **Q.** If we can go to page 6. Calculation number four,
23 Exhibits 1.5 and 5.1, what are those?

24 **A.** 1.5 are swabs of the fore-end of the rifle, and 5.1
25 is swabs of one .30-06 cartridge.

1 **Q.** And again, that cartridge came from where?

2 **A.** From the firearm.

3 **Q.** Will you read paragraph D?

4 **A.** "The DNA profiles are at least 1 trillion times more
5 likely if they originated from Tyler Robinson as the major
6 components and two unrelated, unknown individuals than if they
7 originated from three unrelated, unknown individuals."

8 **Q.** All right. Let's look at calculation number five,
9 1.6 and 3.1, what are those?

10 **A.** 1.6 is swabs of the barrel of the rifle with possible
11 ridge detail and/or smudging, and 3.1 is swabs of one .30-06
12 cartridge.

13 **Q.** And that .30-06 cartridge came from where?

14 **A.** From the firearm.

15 **Q.** Will you read paragraph D?

16 **A.** "The DNA profiles are at least 1 trillion times more
17 likely if they originated from Tyler Robinson as a contributor
18 to the major components and two unrelated, unknown individuals
19 than if they originated from three unrelated, unknown
20 individuals."

21 **Q.** Okay. Statistical analysis calculation number six,
22 Exhibit 1.9, where is that from?

23 **A.** 1.9 is the swabs of possible ridge detail and/or
24 smudging on the optical -- on the optical accessory of the
25 rifle.

1 **Q.** Is that a scope?

2 **A.** Yes.

3 **Q.** Okay. Will you read paragraph D?

4 **A.** "The DNA profile is 6.28 billion times more likely if
5 it originated from Tyler Robinson as a contributor to the major
6 component and three unrelated, unknown individuals than if it
7 originated from four unrelated, unknown individuals."

8 **Q.** Okay. On number seven, I'm not going to read that.
9 I think we've gone through this enough. That's the last one in
10 this report; is that correct?

11 **A.** Yes.

12 **Q.** All right. If we can go to Exhibit 32. 31 was
13 previously received.

14 And just display this on the screen of the witness,
15 please.

16 I think it might be displayed -- it might be
17 displayed on the gallery -- okay. All right. Thank you.

18 Can you see Exhibit 32 on your screen, Agent
19 Faumuina?

20 **A.** Yes.

21 **Q.** What is this?

22 **A.** This is an ATF report that I received in relation to
23 the gun as well as cartridge case and cartridges.

24 **Q.** And is this -- is this report in the same condition
25 as it was when you received it?

1 **A.** Yes.

2 MR. MCBRIDE: I'd move the admission of State's
3 Exhibit 32.

4 THE COURT: So question for you. Was this the report
5 that was previously disclosed in one of the early motions?

6 MR. MCBRIDE: Yes.

7 THE COURT: All right.

8 All right. To Mr. Burt.

9 MR. BURT: No further objections, your Honor.

10 THE COURT: All right. And for publication level?

11 MR. MCBRIDE: All three levels.

12 THE COURT: All right. As it relates to State's
13 Exhibit 32, it is accepted into evidence and may be published
14 in the gallery as well as electronic so the media camera can
15 capture it. I note this has been previously disclosed publicly
16 from an earlier filing I believe from either late last year or
17 early this year. So for those reasons, it's accepted into
18 evidence and may be published at all levels.

19 (State's Exhibit 32 received.)

20 MR. MCBRIDE: Your Honor, it's 2:30. I probably have
21 10 more minutes. Would you like to take a recess now or after
22 I finish?

23 THE COURT: Let's just do the 10 minutes.

24 **Q.** (BY MR. MCBRIDE) Okay. All right. Exhibit 32 is in
25 front of you. And what was -- what was being analyzed in this

1 test?

2 **A.** What was being analyzed would have been the cartridge
3 case as well as the bullet fragment and the lead fragments that
4 were recovered from Mr. Kirk at autopsy.

5 **Q.** All right. Same question on structure of the
6 exhibit. The lab numbers and agency numbers are listed here on
7 the first page, right?

8 **A.** Yes.

9 **Q.** And if you want to know what the report is talking
10 about, you have to refer back to there, right?

11 **A.** Yes.

12 **Q.** All right. I want to have you read --

13 If you can scroll down to the bottom of page 1.
14 Thank you.

15 I would ask you to read the second line under
16 "Results of Examination."

17 **A.** Yes. "The Exhibit 1 rifle was test-fired and found
18 to be in operable condition. The test fires were designated as
19 Exhibit 1.11."

20 **Q.** And again, Exhibit 1 rifle is what?

21 **A.** Is the one that we found on campus.

22 **Q.** Okay. Exhibit 2, if you'll look at the next -- skip
23 the next line and then go to the Exhibit 2 cartridge case.
24 Will you read that sentence?

25 **A.** Yes. "The Exhibit 2 cartridge case was identified as

1 having been fired in the Exhibit 1 rifle."

2 Q. Okay. Now, I want to jump back up to the top where
3 it lists the exhibits. 2 through 5, will you explain what
4 those are and where they came from?

5 A. Yes. That would be the items we found in the gun on
6 scene, and this was the gun that was found in the wooded area.

7 Q. And so the cartridge case is the round that had
8 been -- is the case that had been fired?

9 A. Yes.

10 Q. Okay. So that's number 2. All right. I can't
11 remember. Did we already read that line? "Exhibit 2 cartridge
12 case"?

13 A. Yes.

14 Q. Okay. Thank you.

15 Will you also look at or read the last paragraph on
16 this page?

17 A. Yes. "The Exhibit 2 cartridge case and Exhibit 3
18 through 5 cartridges were examined for the presence of
19 comparable toolmarks. Toolmarks are located on the exterior of
20 the Exhibit 2 cartridge case and Exhibit 3 cartridges (scribe
21 marks) that are consistent with being produced by engravings
22 and/or rotary cutting tips commonly found" --

23 Q. Scroll down, please, Kimberlie.

24 A. -- "installed in handheld rotary tools (such as a
25 Dremel tool). These toolmarks contain marks of value for

1 comparison if a suspect tool is located."

2 Q. Okay. I'd ask to scroll back up to show the exhibit
3 list. Number 6. What was -- what is Exhibit 6?

4 A. Exhibit 6 is the bullet fragment -- or, sorry -- the
5 bullet jacket fragment as well as some other fragments that
6 were recovered from Mr. Kirk at the time of autopsy.

7 Q. Thank you. Going back to page 2. Will you read the
8 first full paragraph there beginning with Exhibit 6?

9 A. Yes. "Exhibit 6 consists of one .30 caliber class
10 deformed/damaged bullet jacket fragment and four lead
11 fragments."

12 Q. Will you read the next paragraph as well?

13 A. "The Exhibit 6A bullet -- bullet jacket fragment
14 could not be identified or excluded as having been fired from
15 the Exhibit 1 rifle based on an agreement of all discernible
16 class characteristics and neither sufficient agreement nor
17 sufficient disagreement of individual characteristics. The
18 results of the comparison was inconclusive."

19 Q. And if you'll look at the line starting with "The
20 Exhibit 6 B through 6E." Will you read that sentence as well?

21 A. "The Exhibit 6B through 6E lead fragments are not
22 suitable for microscopic comparison."

23 Q. Thank you. You can take Exhibit 32 down.

24 Exhibit 33. If we can show that just to the witness,
25 please.

1 Do you recognize Exhibit 33?

2 **A.** Yes.

3 **Q.** What is that?

4 **A.** This is an ATF biology report on the Dremel tool as
5 well as the cartridge cases that were found on top of the safe
6 in Tyler's home.

7 **Q.** Did you receive this from the ATF in response to your
8 request for testing?

9 **A.** Yes, I did.

10 MR. MCBRIDE: Move the admission of State's Exhibit
11 33.

12 MR. BURT: No further objections, your Honor.

13 THE COURT: Thank you, Mr. Burt. Noting the standing
14 objections by defense. And level of publication, Mr. McBride?

15 MR. MCBRIDE: All three levels.

16 THE COURT: The Court overrules the standing
17 objections, and State's Exhibit 20 -- I'm sorry -- 33 is
18 admitted into evidence and may be published in the courtroom as
19 well as captured by the media camera.

20 (State's Exhibit 33 received.)

21 **Q.** (BY MR. MCBRIDE) What was -- what was being tested
22 here?

23 **A.** The Dremel tool, the bits container, as well as the
24 cartridges and cartridge casing we found in Tyler's home.

25 **Q.** And up in the top right, it says "Forensic Biology."

1 Is this DNA testing?

2 **A.** Yes, it is.

3 **Q.** Okay. Format of this is the same as the other report
4 that we already looked at, right?

5 **A.** Yes.

6 **Q.** Let's jump to page 4. Calculation number one, it
7 mentions here Exhibit 15.1. Do you know where that swab is
8 from?

9 **A.** It is swabs of the buttons of the Dremel tool.

10 **Q.** And will you read paragraph D?

11 **A.** Yes. "The DNA profile is at least 1 trillion times
12 more likely if it originated from Tyler Robinson as a
13 contributor to the major component and two unrelated, unknown
14 individuals than if it originated from three unrelated, unknown
15 individuals."

16 **Q.** Will you also read paragraph E?

17 **A.** "The probability of an unrelated individual in the
18 population, who has not contributed DNA to this sample,
19 yielding this level of support, is less than 1 in 1 trillion."

20 **Q.** Thank you. I'm not going to ask you to read those
21 paragraphs for the rest of the statistical calculations, but I
22 will ask you to go through and identify where the swabbing came
23 from. Exhibit 15.3, which is calculation number two, where is
24 that swab from?

25 **A.** That's swabs of the cord of the Dremel tool.

1 **Q.** Exhibit 15.5?

2 **A.** That would be swabs of the longest metal bit of the
3 tool.

4 **Q.** On to page 5. Calculation number four, Exhibit 15.6?

5 **A.** 15.6 is swabs of the shortest metal bit.

6 **Q.** And calculation number five? 18.1.

7 **A.** This is swabs of one etched .30-06 cartridge case.

8 **Q.** What does that -- where did that come from?

9 **A.** That came from on top of the safe.

10 **Q.** Is that the one that had the etching "test shot"?

11 **A.** Yes.

12 **Q.** Will you read the paragraph D as it relates to the
13 "test shot" swab?

14 **A.** Yes. "The DNA profile is at least 1 trillion times
15 more likely if it originated from Tyler Robinson as a major
16 component and two unrelated, unknown individuals than if it
17 originated from three unrelated, unknown individuals."

18 **Q.** Thank you. We can take Exhibit 33 down.

19 The final report is 34, if we can publish that just
20 to the witness. What is State's Exhibit 34?

21 **A.** This is an ATF report I received that was comparing
22 toolmarks.

23 **Q.** And is this --

24 MR. MCBRIDE: I move the admission of Plaintiff's
25 Exhibit 34 and publication at all three levels.

1 THE COURT: Mr. Burt?

2 MR. BURT: No further objections.

3 THE COURT: All right. And -- all right. So State's
4 Exhibit 34 is admitted. The objections -- the standing
5 objections by defense are overruled. They may be published in
6 the courtroom and captured by the media camera.

7 (State's Exhibit 34 received.)

8 Q. (BY MR. MCBRIDE) Okay. Looking at the exhibits --
9 we might have to go back and forth here, but let's go to page
10 2. And will you read the paragraph that starts with "Exhibit
11 18 consists"?

12 A. Yes. "Exhibit 18 consists of five .30-06 Springfield
13 caliber fired cartridge cases (designated Exhibits 18A through
14 18E) and fifteen 45 auto caliber unfired cartridges (designated
15 Exhibits 18F through 18T)."

16 Q. Okay. 18A, do you know what 18A is?

17 A. Yes. This would have been the .30-06 cartridge case
18 with the engravings "test shot" on it.

19 Q. Will you read the paragraph beginning with "The
20 Exhibit 18A"?

21 A. "The Exhibit 18A cartridge case was examined for the
22 presence of comparable toolmarks. Numerous sets of toolmarks
23 were located on the exterior of the Exhibit 18A cartridge case
24 that are consistent with being produced by engravings and/or
25 rotary cutting tips commonly found installed in handheld rotary

1 tools (such as a Dremel tool). These toolmarks contain marks
2 of value for comparison."

3 Q. Okay. The next paragraph I'd ask you to read is the
4 one that starts with "Exhibit 16." But first I want to ask
5 you, do you know what Exhibit 16 is?

6 A. I do not off the top of my head.

7 Q. Okay. 18 -- it also says Exhibit 18A through 18E.
8 Do you know what those are?

9 A. 18A through 18E would be the cartridge cases that
10 were found on top of the safe.

11 Q. Okay. If you will read paragraph -- not paragraph.

12 A. Which one? I'm sorry.

13 Q. The one -- the one starting "Exhibit 16 and."

14 A. Yes. "The Exhibit 16 and Exhibit 18A through 18E
15 cartridge cases were identified as having been fired in the
16 Exhibit 1 rifle."

17 Q. Okay. Let's now jump to the paragraph beginning "The
18 test toolmarks."

19 Kimberlie, if we can scroll down.

20 Will you please -- well, first off, 15A and 15B, do
21 you know what those are?

22 A. Yes. Those would be the longest metal bit and then
23 the shortest metal bit.

24 Q. Okay. If you would read -- okay. And then also
25 Exhibits 2 -- the Exhibit 2 cartridge case, what is that?

1 **A.** This would have been the cartridge case that was
2 found in the gun.

3 **Q.** And Exhibits 3, 4, and 5 cartridges?

4 **A.** They were the ones also found in the gun.

5 **Q.** And Exhibit 18A?

6 **A.** Is the one that was found on the safe.

7 **Q.** Okay. If you'll read the first bullet point there,
8 "The Exhibit 15A."

9 **A.** Yes. "The Exhibit 15A engraving cutter was
10 identified as having made toolmarks located on the Exhibit 2
11 cartridge case, Exhibit 3 through 5 cartridges, and Exhibit 18A
12 cartridge case."

13 **Q.** And will you --

14 We can go ahead and take that down.

15 MR. MCBRIDE: Your Honor, I want to -- before I ask
16 to enter my final line of questioning, I'd like to show the
17 witness Exhibit 12.1. And this is the video, the UVU
18 surveillance video. Let's see. I think it's 12.4 was the
19 surveillance video, actually, that was approved for
20 publication.

21 THE COURT: That's correct. That's the unmarked,
22 non-zoomed version, correct?

23 MR. MCBRIDE: Yes.

24 THE COURT: Yes. That's the one that -- yes.

25 MR. MCBRIDE: And just for now, let's do this on the

1 witness's screen. 12.4. And I'll ask you to jump to 8:04
2 mark.

3 Okay. I'd move to publish -- we intend to play about
4 10 seconds of this video. I'd move to publish that at all
5 three levels.

6 THE COURT: Mr. Burt?

7 MR. BURT: I'm not sure what the relevance is at this
8 point, so it's hard to object or not. We'd ask for a proffer
9 as to what it's showing because it's not apparent from the
10 exhibit.

11 MR. MCBRIDE: Understood. Proffer is there's been
12 testimony about the -- about prints being found on the glass
13 window of this building. This exhibit demonstrates the
14 suspect's behavior in that area.

15 THE COURT: All right. Anything further?

16 MR. BURT: With that, I don't have any further
17 objections.

18 THE COURT: All right. So that -- it may be
19 published. This was already admitted and may be published at
20 all levels.

21 **Q.** (BY MR. MCBRIDE) Before you hit "play" here.

22 Sergeant Faumuina, do you see what's on the screen in
23 front of you?

24 **A.** Yes, I do.

25 **Q.** Can you see the suspect in this image?

1 **A.** Yes.

2 **Q.** Will you describe where that suspect is?

3 **A.** He's on the rooftop let's say on the gravel part, and
4 this would have been close to the northeast side of that
5 building.

6 **Q.** Time stamp is 12:23:47 p.m.; is that right?

7 **A.** Yes.

8 **Q.** And that portion of the image we see there of the
9 video is the top portion of the image slightly to the left of
10 center; is that right?

11 **A.** Yes.

12 **Q.** Okay. We're at 8:01.
13 Kimberlie, will you please hit "play" there?
14 Let's go ahead and pause it. Pausing it at 8:20.
15 Were you able to determine if the suspect touched the
16 glass when he dropped from the roof?

17 **A.** Not at the time when we first saw the video, no.

18 **Q.** Were you later able to make any determination on
19 that?

20 **A.** Yes. Because the video we had was pretty grainy at
21 the time, at the command post, and it wasn't until we were
22 actually able to get the footage directly from UVU.

23 **Q.** And when you actually got that footage, could you
24 zoom in to get a better picture?

25 **A.** Yes.

1 **Q.** And were you able to determine at that time whether
2 the suspect touched the window?

3 **A.** Yes.

4 **Q.** What was your determination?

5 **A.** We determined that he was not -- that he did not
6 touch it.

7 MR. MCBRIDE: Thank you. Nothing else.

8 THE COURT: All right. Let's go to a break. To
9 defense, I realize that you began talking about your concerns.
10 You have a witness that needs to leave today. 10, 15 minutes?
11 What's your request? I want to maximize your ability to have
12 time with your witnesses as well as cross if you choose to.

13 MR. BURT: Thank you. Just 10 minutes would be fine.

14 THE COURT: All right. Let's break for 10 minutes
15 and come back for cross-examination. Court is in recess.

16 (Off the record from 2:49 p.m. to 3:04 p.m.)

17 THE COURT: Court is back in session. Noting the
18 presence of all parties. We just ended with a direct
19 examination of Sergeant.

20 Turning to defense. Mr. Burt, your witness.

21 MR. BURT: Thank you.

22 CROSS-EXAMINATION

23 BY MR. BURT:

24 **Q.** Good afternoon.

25 **A.** Good afternoon.

1 **Q.** Your role in the case was kind of as the traffic
2 manager of the whole operation, right?

3 **A.** That's a good way to put it, yeah.

4 **Q.** And we're talking about multiple agencies besides the
5 SBI, correct?

6 **A.** Yes.

7 **Q.** Your agency, if I'm correct, wrote a massive report,
8 229 pages long?

9 **A.** Yes.

10 **Q.** You've read that? You're familiar with it?

11 **A.** With most of them, yes.

12 **Q.** Okay. And it's a compilation, right? You authored
13 some reports, but a lot of other people wrote reports about
14 aspects of the investigation?

15 **A.** Yes.

16 **Q.** And as those reports were getting done, you would
17 kind of read them and decide what needed to get done further?

18 **A.** Yes.

19 **Q.** Was that one of the roles that you performed in this
20 case?

21 **A.** Yes, as well as consulting with the case agents.

22 **Q.** Okay. Now, if my count is correct, nine of those
23 reports in that larger body of reports was written by you.
24 Correct?

25 **A.** Yes.

1 **Q.** Did I miss any?

2 **A.** There were --

3 **Q.** Does that sound about right?

4 **A.** Yeah.

5 **Q.** Okay. I want to ask you about a couple of those

6 reports. The first report was a report that you wrote on

7 September 22nd that documented the overview of the crime

8 scenes. Correct?

9 **A.** Yes.

10 **Q.** And there were various crime scenes that you

11 described on direct examination, correct?

12 **A.** Yes.

13 **Q.** One of them was the Fulton Library.

14 **A.** Yes.

15 **Q.** Tell us why that was a potential crime scene.

16 **A.** Yeah, of course. When officers were canvassing the

17 scene, they were also trying to see, right, the route of the

18 shooter as well as to just trying to find the shooter. And

19 they -- they determined that the Fulton Library stood out

20 because there were unattended items there at the bus stops that

21 were away from the courtyard area. And so to them, they

22 thought it was suspicious.

23 **Q.** And were certain items seized from --

24 **A.** Yes.

25 **Q.** And what were they?

1 **A.** Yes. You had a backpack, a jacket, as well as some
2 gloves. And there may have been some other things; I just
3 don't recall them right now.

4 **Q.** And do you recall what the item numbers were of those
5 seizures? Was it nine? Does that ring a bell?

6 **A.** I don't remember.

7 **Q.** Whatever was seized was sent to the FBI lab for
8 processing?

9 **A.** Yes.

10 **Q.** And along with some information that the suspect may
11 have shed some of this -- these items as he fled, correct?

12 **A.** Yes.

13 **Q.** Was a decision at some time made -- and you were
14 requesting that both DNA and other type of analysis get done?

15 **A.** Yes.

16 **Q.** At some point, did you decide to pull the plug on
17 that?

18 **A.** At the time when it was already sent, we didn't have
19 more information as far as whether or not -- whether or not the
20 evidence that were collected there were probative.

21 **Q.** But eventually you communicated to the lab that those
22 items were not in fact connected with the case and there was no
23 need to do further testing?

24 **A.** I don't remember communicating that.

25 **Q.** Okay. If that's in the notes of the FBI or the ATF,

1 would that be inconsistent with what you know?

2 **A.** No.

3 **Q.** Okay. I mention it because some of the reports, the
4 lab reports have those items listed.

5 **A.** Okay.

6 **Q.** I just want to be clear that those items eventually
7 you determined were not related to this case. Would that be
8 fair?

9 **A.** Yeah. That would be fair.

10 **Q.** Okay. The second report, at least as far as I can
11 see, that you wrote was on September 24th, and it had to do
12 with a -- looks like a request for a search of firearms. Do
13 you recall that?

14 **A.** Could you elaborate for me on the firearms?

15 **Q.** This document documents the NIBIN request for
16 firearms.

17 **A.** Yes. So that was the request to conduct -- what that
18 stands for, the NIBIN is the National Integrated Ballistics
19 Information Network. It is run by the ATF. And that is where
20 we test -- or we input test fires or cartridge casings, the
21 head stamps and whatnot, into the machine that is then run
22 through the ATF to see if there's any other cartridge casings
23 that match.

24 **Q.** And nothing of value came from that part of your
25 investigation, correct?

1 **A.** Correct.

2 **Q.** Now, going back for a minute to the crime scenes.
3 You talked about the wooded area, and you used the phrase "we
4 seized the towel." Who is "we"? Who are you referring to when
5 you say "we seized the towel"?

6 **A.** "We" would be SBI as well as FBI. So that would be
7 myself as well as FBI evidence response team lead Michelle --
8 Special Agent Michelle Cammack.

9 **Q.** So you both reached into the bushes and you both
10 grabbed it and pulled it out?

11 **A.** She did, but I was there with her, and we were
12 communicating that entire time.

13 **Q.** Okay. So when you say "we seized it," that would
14 really mean she seized the towel and you observed her seize it?

15 **A.** Yes.

16 **Q.** And when she seized the towel, how did -- can you
17 describe a little bit in more detail of how that process took
18 place?

19 **A.** As far as when it was found or when she removed it?

20 **Q.** Yeah. The photographs you showed us, were those the
21 best photos you've got of that process?

22 **A.** That was taken by the FBI, so that's all we got.

23 **Q.** That's all you got. And nobody was videoing the
24 discovery and recovery of that evidence?

25 **A.** I believe one of the officers on scene actually had

1 his body camera on.

2 Q. And have you seen that?

3 A. I have not.

4 Q. Do you know if there's any documentation of the exact
5 process by which that towel got removed from the rifle and
6 that -- I guess put back on the rifle, right?

7 A. No. It was not.

8 Q. It was not put back on?

9 A. No.

10 Q. Didn't one of the photos show the rifle in the box
11 with a towel over it?

12 A. Yes. It wasn't over it. It was still wrapped around
13 the gun.

14 Q. Okay. But as I understood your testimony, the towel
15 was seized by the FBI agent, and then somebody must have
16 reached in and got the gun out, right?

17 A. No. I'll clarify for you. So the entire time --
18 when we retrieved it, the gun was wrapped in a towel. So when
19 Special Agent Cammack reached in, she grabbed not only the
20 towel, but also the gun. And it remained -- and the towel and
21 the gun remained basically intact, lack of a better word, and
22 then was placed onto the cardboard box, which is one of the
23 photos that was shown earlier. Once we documented that, then
24 the towel was removed from the gun.

25 Q. You also mentioned as to the other crime scenes that

1 "we processed it." But was your role in terms of your actual
2 participation limited to the wooded area? Or did you -- were
3 you involved in actually seizing evidence at the other
4 locations like the roof?

5 **A.** I was involved in coordinating all that and then
6 determining from there where the evidence would go.

7 **Q.** "Involved in," is that the same thing as actually
8 being on the roof and seizing the items? Or are we talking
9 about something else?

10 **A.** We're talking about something else.

11 **Q.** And what is that something else?

12 **A.** So after the teams would have packaged all the items,
13 sealed them properly, create an evidence log, they would then
14 bring it back to the command post. And from there, we would
15 compile everything, and then there was the discussion that was
16 had as to who would take custody.

17 **Q.** Fair to say that you did not observe, yourself, the
18 seizure of the screwdriver from the roof?

19 **A.** Correct.

20 **Q.** And who were the people who were actually conducting
21 that part of the crime scene processing?

22 **A.** That would have been our state crime lab who -- and
23 those two people are a part of our state crime lab's crime
24 scene response team.

25 **Q.** When did you review the video of the suspect running

1 toward the area from which he jumped off?

2 **A.** That would have been -- I don't know the exact time,
3 but it would have been the day on September 10th.

4 **Q.** You saw that on September 10th?

5 **A.** Yes.

6 **Q.** And when was the -- when were the windows processed
7 for the latent fingerprints?

8 **A.** The windows were processed on September 11th, the
9 next day.

10 **Q.** And was the reason that those latent lifts were taken
11 was because you wanted to rule out whether the suspect had
12 touched that window?

13 **A.** Yes.

14 **Q.** That's what the notes say, right?

15 **A.** Yes.

16 **Q.** You were not present when that scene was processed
17 either, correct?

18 **A.** Not the entire time, no.

19 **Q.** Okay. Now, the other reports that I have that you
20 did -- and correct me if I'm wrong -- is one report dated
21 September 24th documenting the forensic analysis as of
22 September 24th, summarizing what the -- what you were hearing
23 back from the ATF and the FBI.

24 **A.** Yes.

25 **Q.** Okay. And then the fifth report was again about the

1 crime scene progress of the forensic testing, right?

2 **A.** Yes.

3 **Q.** All right. And then you have a report here which
4 documents a firearm trace and a firearm seized at River --
5 River Street.

6 **A.** Yes.

7 **Q.** Nothing of value came of that, correct?

8 **A.** Correct.

9 **Q.** You have a report that has to do with the latent
10 print report from your people, SBI?

11 **A.** Yes. It's not SBI. It's actually the state crime
12 lab, but yes. Same department.

13 **Q.** Same department. Just detailing the results of that
14 examination, which the stipulation addressed?

15 **A.** Yes.

16 **Q.** Right? You have a report documenting the transfer of
17 evidence from the FBI to your department?

18 **A.** Yes.

19 **Q.** And then the last one that I have that you personally
20 wrote has to do with, again, summarizing forensic reports?

21 **A.** Yes.

22 **Q.** Okay. The larger 229-page report indicates that
23 there was some investigation done by your agency that involved
24 interviewing associates of Mr. Robinson to see if you could
25 develop some profile of him having animosity toward Mr. --

1 Mr. Kirk, correct?

2 **A.** I'm not familiar with that.

3 **Q.** So you weren't involved in that at all?

4 **A.** No.

5 **Q.** Some of the documents in that large report indicates
6 that your agency has also, up to the present time, been
7 monitoring Mr. Robinson's mail and communications at the jail,
8 correct?

9 **A.** Correct.

10 **Q.** And are you -- have you kept abreast of that
11 investigation?

12 **A.** No.

13 **Q.** Do you know whether anything of value has been
14 developed as a result of that?

15 **A.** No.

16 MR. BURT: That's all I have. Thank you.

17 THE COURT: Thank you, Mr. Burt.

18 Redirect?

19 MR. MCBRIDE: Nothing, your Honor.

20 THE COURT: All right. May this witness be excused?

21 MR. MCBRIDE: Yes.

22 THE COURT: All right, Sergeant. Thank you.

23 THE WITNESS: Thank you.

24 THE COURT: Turning to the state.

25 MR. GRUNANDER: Your Honor, I just want to confirm

1 with the clerk that --

2 THE COURT: Yeah. Let's make sure -- thank you,
3 Mr. Grunander. Appreciate creating a good record.

4 MR. GRUNANDER: Judge, if I could just confirm with
5 the Court that all of the exhibits we have offered have been
6 admitted into evidence.

7 THE COURT: All right. So here's what I have. And
8 my court clerk will certainly correct me if I'm wrong. I have
9 State's Exhibit 1, 52, 3, 3.1, 3.2, 4, 5, 5.1, 6, 6.1, 7, 7.1,
10 8, 8.1, 9, 10, 10.1, 10.2, 10.3, 11, 12.1, 12.2, 12.3, and I
11 believe 12.4. 13, 14, 15, 16, 16.1, 16.2, 16.3, 16.4. 17 and
12 18 are blank, so no.

13 MR. GRUNANDER: That is correct. We're not offering
14 17 and 18.

15 THE COURT: All right. 19, 20, 21, 22, 23, 24, 25.
16 The following are blank: 26, 27, 28, 29.

17 MR. GRUNANDER: That's accurate. We're not offering
18 on those numbers.

19 THE COURT: I have 30, 31, 32, 33, 34, and 35, which
20 have been admitted into evidence.

21 MR. GRUNANDER: That is all that I have record of.

22 THE COURT: All right. Does that comport?

23 THE CLERK: Yes. (Inaudible.)

24 THE COURT: I mean, we certainly can.

25 Yes. Would you like to put on the record what were

1 published and were not published?

2 MR. GRUNANDER: No. That's okay, Judge.

3 THE COURT: Okay. We're good. And then -- all
4 right.

5 MR. GRUNANDER: Can I have just a moment?

6 THE COURT: Yes.

7 MR. GRUNANDER: Your Honor, the state rests its
8 case-in-chief.

9 THE COURT: Thank you. Turning to defense.

10 MR. NEIMAN: Your Honor, if I may, briefly.

11 THE COURT: Approach the bench, please. All parties.

12 (Bench conference held outside the hearing of the
13 jury as follows:)

14 THE COURT: Counsel?

15 MR. NEIMAN: Yes, your Honor. I would want to ask
16 the Court to reconsider publication in the courtroom only of
17 Exhibit 12.4, which is the enhanced video. We saw -- 12.1.
18 Sorry. 12.1 is the enhanced video. 12.4, we obviously saw.
19 Very hard for the family to view. We trust the Court has done
20 a very thorough analysis. We think any analysis in weighing
21 the factors here for prejudice to the defendant can be cured
22 through jury selection. While any prejudice to my client,
23 either they get to view it or they don't. There's no curing
24 that can be done. So we'd ask the Court to reconsider
25 displaying just in the courtroom the enhanced video, which is

1 12.1.

2 THE COURT: All right. Well, I'm going to put it on
3 the open record, the request, and then I'll let all parties
4 weigh in. I just wasn't sure --

5 MR. NEIMAN: What the issue was.

6 THE COURT: -- what the issue is. So that's the
7 reason why. So again, I'm going to allow you to make that, and
8 I'll let all sides weigh in, and the Court will make a ruling.
9 Thank you.

10 (Bench conference concluded and proceedings resumed
11 in open court.)

12 THE COURT: All right. Just waiting for counsel to
13 get situated. All right. Counsel, your request.

14 MR. NEIMAN: Your Honor, as the Court knows, the
15 family has asked that all exhibits admitted into evidence be
16 shown here in open court. We are grateful to the Court for
17 allowing the family to view many or most of the exhibits today
18 that were admitted, that were viewed here openly in court. And
19 obviously that was done after the Court struck what we think is
20 the appropriate balance after a very thoughtful and thorough
21 analysis.

22 I'm going to ask the Court to reconsider one of its
23 prior rulings. I understand reconsideration is always a big
24 ask, but I do think, your Honor, that if the Court were to
25 display publicly, just in the courtroom, Exhibit 12.1, which is

1 the enhanced video -- version 12.4, which was played in court,
2 was very hard for the family to view. We think that -- we ask
3 the Court, since the Court's considering it, the family ought
4 to be able to see it as well.

5 When conducting the appropriate balancing, the Court,
6 as the Court knows, can alleviate any concerns about proper
7 jury selection with certain tools at its disposal. However, if
8 the Court were to deny the family the right to view that video,
9 there's no cure. It's either they get to view it or they
10 don't. So we would ask the Court to reconsider its prior
11 ruling and display just in the courtroom Exhibit 12.1, which is
12 the enhanced video. Thank you, your Honor.

13 THE COURT: Thank you.

14 Turning to the parties. Starting with the state.
15 Mr. Grunander.

16 MR. GRUNANDER: Thank you, Judge. The state does not
17 oppose publishing 12.4 in the courtroom. I think we've tried
18 to make it very clear throughout this case that we favor
19 openness and transparency as much as appropriate. I'll submit
20 it on that.

21 THE COURT: Thank you, Mr. Grunander.

22 To defense. Mr. Burt.

23 MR. GRUNANDER: My apologies. That's 12.1, not 12.4.

24 THE COURT: Thank you.

25 MR. BURT: Judge, at this point in the proceeding,

1 we're asking the Court to keep focus on the purpose of this
2 hearing. And as the justices said in the Estes case, the
3 purpose of a trial -- and I know this isn't a trial, but the
4 same logic applies -- is to determine the defendant's guilt.
5 It's not to educate the public or the victim's family or the
6 world on what evidence the government or the state has.

7 As the Court knows, we have witness availability
8 problems. We've spent the bulk of today and yesterday arguing
9 about nothing to do with the evidence in the case, but with
10 rights of third parties. And it's appropriate for the Court to
11 consider that, but at some point, I think the Court has to
12 return to the purpose of these hearings, which is to
13 expeditiously hear the evidence and then determine probable
14 cause.

15 And I want to point out to the Court Ms. Kirk has
16 been very adept at holding press conferences at which she has
17 revealed evidence. She has represented that the state is her
18 attorney. She has access to all the evidence that the state
19 has publicized and that the media and her own lawyer argues is
20 already in the public domain. So they're perfectly free to go
21 outside this courtroom -- under the Court's protective order,
22 they're free to go out and hold press conferences and announce
23 to the world outside the courtroom what they think the evidence
24 is. They have the availability of that evidence.

25 But the Court's role I think at some point is to

1 exercise some control, move the case forward, and especially
2 when we have witness availability problems. And I'd ask the
3 Court, whatever the Court does, if you're going to allow
4 revisiting or replaying of evidence for the sole purpose of
5 informing the world or Ms. Kirk or anybody else that the Court
6 do it at the end of the process and not at this point where we
7 will be deprived of our ability to call this witness, because
8 she has to be done today.

9 THE COURT: Thank you, Mr. Burt.

10 MR. BURT: Thank you.

11 THE COURT: Briefly.

12 MR. NEIMAN: Understood, your Honor.

13 THE COURT: And I say that because time is of the
14 essence, not because I don't want to hear what you have to say.

15 MR. NEIMAN: I understand, but there was a lot that
16 was said that's just not true.

17 THE COURT: So let me -- let me put this in the spot
18 where we need to be. And I understand that there's opinions,
19 but I have to keep this to the probable cause. I don't want
20 this to go to a back and forth about issues that lie outside of
21 probable cause. And I realize statements are made and, as the
22 victim's representative attorney, you want to address it. I
23 just -- I will hear you, but we need to be brief. So if you
24 can be succinct, I definitely want to hear what you have to
25 say.

1 MR. NEIMAN: Your Honor, I most always -- am almost
2 always brief, I promise you. The family has not seen this
3 video. It hasn't. It doesn't have access to the evidence the
4 state has. The state is the state and Ms. Kirk and the family
5 have their representatives. That is a complete distortion of
6 reality that was just put forth.

7 And this isn't about educating anybody about
8 anything. This is about allowing the family to see the
9 evidence that's been gathered after a ten-month investigation
10 in which a father, a husband was assassinated. That's what
11 this is about. So we ask you to please allow the family to
12 view the video like the Court has viewed in order to allow the
13 family to process this moment.

14 THE COURT: Thank you.

15 MR. NEIMAN: Thank you.

16 THE COURT: Anything further before the Court issues
17 its ruling and we go from there?

18 MR. GRUNANDER: Not from the state.

19 THE COURT: All right. Defense?

20 MR. BURT: No.

21 THE COURT: All right. So I recognize that the Utah
22 Constitution, under Article 1, Section 28, recognizes victims'
23 rights, and the Court respects those rights and, as has been
24 previously stated, balances those rights with the
25 constitutional rights of all parties. I will reserve my ruling

1 on that and it may be revisited tomorrow.

2 But because we have an issue of expiring time and one
3 witness that needs to leave today, I need to turn to that. I
4 am not ruling that that cannot happen, but for today, we need
5 to focus on this -- to getting this defense witness on the
6 stand and off the stand. And so, please, if I do not remember,
7 the parties can remind me, and we can revisit this tomorrow.
8 So again, I'm not saying yes; I'm not saying no. I'm simply
9 saying we need to get to this witness, and I'm happy to
10 readdress this tomorrow. Okay?

11 All right. Mr. Burt.

12 MR. BURT: Your Honor, we would call Samantha Karner,
13 K-A-R-N-E-R.

14 THE COURT: All right. Samantha Karner is being
15 requested. You can go ahead and retrieve -- bring her into the
16 courtroom.

17 MR. BURT: Yes. Someone is doing that.

18 THE COURT: Is somebody grabbing her?

19 MR. BURT: Yes.

20 THE COURT: Thank you, Mr. Burt. I just couldn't
21 tell and wanted to make sure.

22 Ms. Karner, if you wouldn't mind coming forward right
23 by our bailiff to be sworn in.

24 (Witness sworn.)

25 THE COURT: Thank you, ma'am. If you wouldn't mind

1 coming forward and having a seat at the witness stand. To your
2 left is a water bottle if you choose. Looks like you brought
3 your own as well. And after you're situated, if you wouldn't
4 mind pulling that microphone toward you just to ensure that
5 your testimony is picked up on the record.

6 Mr. Burt, your witness.

7 MR. BURT: Thank you.

8 SAMANTHA KARNER

9 called as a witness herein, having been first duly sworn by the
10 Clerk to tell the truth, was examined and testified as follows:

11 DIRECT EXAMINATION

12 BY MR. BURT:

13 Q. Good afternoon. Could you tell us your name, please?

14 A. Yes. My name is Samantha Karner.

15 Q. And Ms. Karner, what do you do for a living?

16 A. I am a firearm and toolmark examiner.

17 Q. And where are you stationed?

18 A. I currently work at the Forensic Science Laboratory
19 in Washington for the Bureau of Alcohol, Tobacco, Firearms, and
20 Explosives.

21 Q. And how long have you been employed at that location?

22 A. A little over six years.

23 Q. What generally do you do there? What area of
24 expertise do you have?

25 A. I am assigned to the firearm and toolmark unit, so I

1 receive items of evidence related to firearms, tools,
2 toolmarks, and fired ammunition components.

3 **Q.** At the request of the State of Utah, did you conduct
4 certain examinations relevant to this case?

5 **A.** I did, yes.

6 MR. BURT: Could you bring up State 32 in evidence?

7 THE COURT: Do you want it, Mr. Burt, on all screens?

8 MR. BURT: All screens. It's admitted and I think
9 approved for publication.

10 THE COURT: All right. Let's go ahead and put it on
11 all screens because this was admitted and published previously.

12 **Q.** (BY MR. BURT) Do you recognize Plaintiff's Exhibit
13 No. 32?

14 **A.** I do, yes.

15 **Q.** Are you the author of this report?

16 **A.** I am, yes.

17 **Q.** Okay. What were you asked to do in relation to the
18 examination that's documented in this report?

19 **A.** For the Submission 1 report, I received a firearm,
20 cartridge case, three cartridges, one bullet jacket fragment,
21 and four lead fragments. I was asked to test-fire the firearm
22 and compare the test fires to the cartridge case and the bullet
23 jacket fragment. I also was asked to do a toolmark
24 characterization on the cartridge case and the cartridges, and
25 then I also ran a general rifling characteristic search on the

1 bullet jacket fragment.

2 Q. Okay. And are your conclusions accurately documented
3 in your report?

4 A. Yes.

5 Q. Could you turn to page 2 of the report? Second --
6 bottom of the page. Those two paragraphs, please. Did you
7 write in your report "These conclusions conform with the
8 relevant Department of Justice policy on uniform language for
9 testimony"?

10 A. Yes. That is always added to our reports.

11 Q. And do you have a standard operating procedure that
12 requires that in each examination you do, this language has to
13 be in there?

14 A. We do, yes.

15 Q. Okay. And I want to ask you to review the document
16 that is referenced in that language, which would be --

17 And this is just for her only. Exhibit 11.

18 Let me know when you can see that. Are you able to
19 view that?

20 A. Yes.

21 Q. Is this the ATS -- is this the language referred to
22 in your report?

23 A. It is, yes.

24 Q. The written policy of the Department of Justice
25 concerning uniform language for testimony in reports for the

1 forensic firearm toolmark discipline pattern examination?

2 **A.** It is, yes.

3 MR. BURT: I move that into evidence.

4 THE COURT: This is -- what is the title of this
5 exhibit?

6 MR. BURT: Your Honor, this would be Karner 11.

7 THE COURT: All right. And what level of publication
8 are you requesting, Mr. Burt?

9 MR. BURT: Both public and admittance into evidence.

10 THE COURT: To the state?

11 MR. GRUNANDER: No objection.

12 THE COURT: All right. Karner 11 is admitted into
13 evidence and may be published on screens and captured by the
14 camera.

15 (Defense Karner Exhibit 11 received.)

16 MR. BURT: Thank you. And you can publish that.

17 **Q.** (BY MR. BURT) Ms. Karner, can you tell us what the
18 purpose and scope of this document is?

19 **A.** Yes. This is the DOJ, Department of Justice's
20 uniform language for testimony and report, and it standardizes
21 the appropriate language an examiner will use during reporting
22 and their testimony. And DOJ published this to standardize the
23 wording that examiners would use across their forensic
24 laboratories.

25 **Q.** And was this published in part because of some

1 criticism that the prior testimony, not by you, but by other
2 people, may have gone beyond the bounds of science?

3 **A.** I don't know why DOJ published it. It was before my
4 time.

5 **Q.** Do you know how long this has been the policy of the
6 Department of Justice?

7 **A.** I do not off the top of my head, no.

8 **Q.** Are the reports that you issued in relation to this
9 case in conformity with this policy?

10 **A.** They are, yes.

11 **Q.** Okay. Now, could you go to page 3 of that report?
12 Where it says "Qualifications and limitation of
13 firearm/toolmark discipline examinations." You're familiar
14 with that part of the policy, correct?

15 **A.** I am, yes.

16 **Q.** And the portion of the policy that says "A conclusion
17 provided during testimony or in a report is ultimately an
18 examiner's decision and is not based on a statistically-derived
19 or verified measurement or comparison to all other firearms or
20 toolmarks. Therefore, an examiner shall not:" -- and then it
21 lists several propositions. You're familiar with that
22 language?

23 **A.** I am, yes.

24 **Q.** And it says that "An examiner shall not assert that a
25 source identification or a source exclusion conclusion is based

1 on the uniqueness of an item of evidence." Your report is not
2 meant to imply something contrary to what's stated here, is it?

3 **A.** No. It's not meant to be contradict it.

4 **Q.** You're not asserting that a source identification is
5 based on the uniqueness of an item of evidence?

6 **A.** No, I am not.

7 **Q.** And the reason you're not doing that is because you
8 haven't examined all the possible items of evidence that could
9 be relevant to your comparisons, correct?

10 **A.** I have not looked at every firearm that's been
11 manufactured in the world, nor have I looked at every tool
12 that's been manufactured in the world. That's correct.

13 **Q.** Okay. And second portion of that says "An examiner
14 shall not use the term 'individualize' or 'individualization'
15 when describing a source conclusion."

16 Did you abide by that policy in this case?

17 **A.** I did, yes.

18 **Q.** And you're not expressing an opinion here that the
19 comparisons that you made are individualized to a particular
20 weapon or particular cartridge case, correct?

21 **A.** My conclusion for one of the exhibits identifies the
22 cartridge case as being fired in the firearm. But that's all
23 it says, yes.

24 **Q.** Right. But you're not asserting that that's an
25 individualized identification in the sense it's being used in

1 this policy, are you?

2 **A.** No, I am not.

3 **Q.** Okay. And then the third part of that says that "An
4 examiner shall not assert that two toolmarks originated from
5 the same source to the exclusion of all other sources."

6 You're not expressing that opinion either, are you?

7 **A.** I am not, no.

8 **Q.** It says "An examiner shall not assert that
9 examinations conducted in the forensic firearms/toolmark
10 discipline are infallible."

11 You're not asserting that?

12 **A.** I am not, no.

13 **Q.** You're not asserting that -- it says "The examiner
14 shall not assert that there is a zero error rate."

15 **A.** Correct.

16 **Q.** You're not making that assertion?

17 **A.** No.

18 **Q.** Okay. It says "An examiner shall not provide a
19 conclusion that includes a statistic or a numerical degree of
20 probability except when based -- except when based on relevant
21 and appropriate data."

22 You didn't conduct such an analysis here, correct?

23 **A.** I did not, no.

24 **Q.** Okay. And it says "An examiner shall not cite the
25 number of examinations conducted in the forensic

1 firearm/toolmark discipline performed in his or her career as a
2 direct measure for the accuracy of a conclusion provided."

3 You didn't do that and you're not doing that here,
4 correct?

5 **A.** Correct.

6 **Q.** And then it says "An examiner shall not assert that
7 two toolmarks originated from the same source with absolute or
8 100 percent certainty or use the expressions 'reasonable degree
9 of scientific certainty,' 'reasonable scientific certainty,' or
10 similar assertions of reasonable certainty in either reports or
11 testimony unless required to do so by a judge."

12 You're not making any such assertions in this case,
13 are you?

14 **A.** I am not.

15 **Q.** Okay. All right. Thank you. You can take that
16 down.

17 Now, when you conducted your analysis in this case,
18 and in all cases, do you typically generate a case file that
19 includes proper documentation of your examination?

20 **A.** I do, yes.

21 **Q.** And did you do that in this case?

22 **A.** I did.

23 **Q.** Could you display to her alone, please, Exhibit 6,
24 Karner 6?

25 MR. MCBRIDE: Is this the case file?

1 MR. BURT: Case file. Yes.

2 **Q.** (BY MR. BURT) Do you see what's displayed there?

3 **A.** I do, yes.

4 **Q.** It's 47 pages. Is this your case file?

5 **A.** It is, yes.

6 **Q.** Did you rely on the documents and photographs that
7 are documented here in writing the report that the state
8 introduced into evidence here?

9 **A.** How so?

10 **Q.** Before you wrote your report, did you photograph
11 items that you were looking at, take other notes, and then use
12 that work product to form the opinions you reached that are
13 documented in the report?

14 **A.** The notes are mostly used for initial documentation
15 and evaluation, and then, yes, supplement to the conclusions
16 that I make. It's all a representative image of what my
17 conclusions are going to be. So part of it is going into the
18 conclusion statement and then just showing proof of those
19 conclusions.

20 **Q.** Right. And your standard operating procedure
21 requires that you document in your case file the basis for your
22 opinions, correct?

23 **A.** Yes.

24 MR. BURT: I'd move 6 -- Karner 6 into evidence.

25 THE COURT: To the state?

1 MR. MCBRIDE: Is this the 47-page document?

2 MR. BURT: Yes.

3 MR. MCBRIDE: I object. I don't see the relevance to
4 the Court's probable cause determination to review a 46-page
5 [sic] report that includes notes.

6 THE COURT: Would you like to respond, Mr. Burt?

7 MR. BURT: Yes, your Honor. This is the basis and
8 documentation for the conclusions reached in the expert's brief
9 report, which expresses her ultimate conclusion but does not
10 contain any of the reasoning for that conclusion. So it's
11 important for the Court I think to understand why and how she
12 reached the conclusions that she did.

13 THE COURT: All right. Anything further?

14 MR. BURT: No.

15 MR. MCBRIDE: Yes. Just that without testimony about
16 what the meaning of the notes is and so forth, it is more
17 confusing than it is probative. So under a 403 analysis, I
18 don't think it's admissible nor helpful to the state -- to the
19 Court.

20 THE COURT: All right. Mr. Burt?

21 MR. BURT: I intend to focus on particular
22 photographs which document what she received in evidence and
23 the comparisons that she did, which are also documented in this
24 file in the way of comparison photographs.

25 THE COURT: All right. As it relates to the

1 objection, the objection is overruled. I find that this is
2 relevant as it relates to State's Exhibit 30, which was
3 admitted, as well as State's Exhibit 32, which is admitted; and
4 the state is able to do cross-examination on this witness as it
5 relates to this report. And so it is admitted and may be
6 published on all levels in the courtroom and on -- through the
7 media.

8 MR. BURT: Thank you.

9 (Defense Exhibit Karner 6 received.)

10 Q. (BY MR. BURT) Ms. Karner, one of the items you were
11 asked to look at was, as described in your report, one bullet
12 jacket fragment and four lead fragments, correct?

13 A. Yes.

14 Q. Were you informed at some point that there was a
15 discrepancy between what you were examining and what had been
16 documented by the medical examiner in terms of the number of
17 bullet fragments?

18 A. I was, yes.

19 Q. Were you asked to see if maybe the ATF had lost
20 certain portions of the evidence?

21 A. No, I was not.

22 Q. All right. Do you think -- and was it your
23 understanding that there were originally seven bullet
24 fragments, but you ended up with four?

25 A. I was alerted that there was potentially seven

1 fragments from the medical examiner in a photo just a few
2 months ago.

3 Q. Okay. You're clear, though, that when you got the
4 evidence, it was in a sealed condition, correct?

5 A. It was, yes.

6 Q. And when you opened -- what was it? An envelope?

7 A. A small individual manila envelope, yes.

8 Q. And did you take the contents of the envelope
9 containing the bullet and take photographs of it?

10 A. I did, yes.

11 Q. Okay. Could you display page 41 of 47 of that
12 exhibit? I'm sorry. Page 14.

13 And tell us what's depicted here.

14 A. Yes. This is a picture of the as-received condition
15 of Exhibit 6 in its entirety. That's the top picture. So
16 you'll see Exhibit 6A all the way through 6E in descending
17 order. And then the bottom two photos on the left is the
18 Exhibit 6A bullet jacket fragment, and that is the view of the
19 exterior. And then the photograph on the right is the Exhibit
20 6A bullet jacket fragment, and that's the view of the interior
21 of it.

22 Q. Okay. Now, after you documented what the bullet and
23 the fragments looked like, did you do certain procedures on the
24 bullet -- the larger bullet fragment?

25 A. I did, yes.

1 **Q.** And what did you do?

2 **A.** I cleaned the bullet jacket fragment and I also
3 peeled the petals back. If you think of a banana and pulling
4 the skin away from the interior, it's almost like doing that.
5 As you can see from the photo, the petals have been crumpled in
6 on themselves, so in order for me to see the land and groove
7 impressions which holds those individual characteristics needed
8 for a comparison, I have to do some maneuvering of those
9 petals.

10 **Q.** And how do you do that? Do you use an instrument to
11 peel back the portions that you want to look at?

12 **A.** I use pliers.

13 **Q.** Okay. And after you did that procedure, did you then
14 photograph the larger bullet fragment itself?

15 **A.** I did, yes.

16 **Q.** Were the smaller fragments essentially not of any
17 value to you in terms of doing comparisons?

18 **A.** They were deemed unsuitable, which means there are no
19 microscopic marks of value for comparison.

20 **Q.** Okay. But the larger fragment after you did the
21 process you just explained, you then photographed it again,
22 correct?

23 **A.** That is correct, yes.

24 **Q.** Could you display the next page of this exhibit,
25 please?

1 Tell us what we see here.

2 **A.** This is two pages of that 6A bullet jacket fragment
3 after the examination preparation, so the top photo is going to
4 be the interior of 6A and then the bottom photo is the exterior
5 of 6A.

6 **Q.** Now, after you took these photographs, did you
7 proceed to do something to determine whether you had either
8 class, individual, or subclass characteristics?

9 **A.** Yes.

10 **Q.** Tell the Court what that means.

11 **A.** To start, when I do my initial examination of a
12 bullet jacket fragment like this, I'm going to look at its
13 class characteristics. Class characteristics are the least
14 restrictive set of characteristics I use in my comparison
15 process. And these are design features that are given to a
16 large group of items that characterize them together. So for a
17 bullet, you can think of the diameter of the bullet, the number
18 of land and grooves, the direction of twists, and the type of
19 rifling.

20 So I would go through and look at the class
21 characteristics of this bullet jacket fragment, which was 6
22 right conventional rifling. And then I move on to look at any
23 subclass characteristics. And subclass characteristics are
24 more restrictive than class but less than individual, and they
25 are design features that can be put on an object during the

1 manufacturing process, which is consistent among items that are
2 made by a tool that's in a specific state of wear.

3 So what I mean by that is it's going to be a subset
4 of a larger group, which is why it's not used for -- excuse
5 me -- for identification or comparison purposes for the basis
6 of a conclusion. But when you think of something that's made
7 through a mold process, when that mold comes together, it
8 creates a seam line, and that seam line is going to be
9 represented on all the items that it makes. So that's why you
10 can't use it for the identification process, because it's going
11 to be on a lot of items, which is why it's a subset of the
12 group.

13 Then I move on at looking at the individual
14 characteristics, and these are imperfections and irregularities
15 that arise from the manufacturing process. And then there's
16 also -- individual characteristics can arise from wear, use and
17 abuse of a tool. And these individual characteristics is what
18 is going to be distinct to that tool, and that's why they're
19 used for the identification process.

20 So, again, I did an examination of its class
21 characteristics, looked for any subclass characteristics, and
22 then looked to see if there was individual characteristics in
23 the land and groove impressions sufficient enough of marks and
24 values to do a comparison process.

25 **Q.** Now, once you have the class characteristics of a

1 bullet, can you narrow the range of firearms that could have
2 fired it just based on class characteristics?

3 **A.** You can, yes.

4 **Q.** And is caliber a class characteristic or an
5 individual or a subclass characteristic?

6 **A.** It's going to be a class characteristic because a lot
7 of firearms will have the same class -- or, excuse me -- the
8 same caliber.

9 **Q.** Did you measure the diameter of the bullet?

10 **A.** I did, yes.

11 **Q.** And did you end up with a range where it could have
12 been a certain range of length -- diameter?

13 **A.** I did, yes.

14 **Q.** And what was your reading?

15 **A.** Can I refer to my notes, please?

16 **Q.** Yes, please.

17 **A.** The range of the diameter for the 6A bullet jacket
18 fragment was .286 to .301 inches.

19 **Q.** Okay. What page are you looking at?

20 **A.** It's page 13.

21 **Q.** Now -- so this is your documentation of the diameter
22 measurement, and then on the right there, "LIMP," that's
23 measurement of the land width?

24 **A.** The land impression width, yes.

25 **Q.** And these are all general characteristics -- class

1 characteristics, right?

2 **A.** Correct.

3 **Q.** Okay. Now, once you had that this -- and also that
4 it was -- you said what's called the rifling was to the right,
5 correct?

6 **A.** The direction of twist, yes.

7 **Q.** Yeah. The lingo is "6 to the right," meaning --

8 **A.** "6 right," yes.

9 **Q.** Yeah. And that's a class characteristic?

10 **A.** Correct.

11 **Q.** So once you had the diameter of the base of the
12 bullet -- and did you have some difficulty because of the
13 damage to the bullet in exactly measuring it?

14 **A.** The reason I provided a range was because of the
15 damage and deformity to the base. So at times, it wasn't a
16 perfect circle, so it was important to me to give a range of
17 what those diameter measurements were.

18 **Q.** Once you have the diameter and the rifling
19 characteristics and the land and groove measurements, can you
20 then plug those measurements into a database and narrow down
21 the class of weapons from which this bullet could have been
22 fired?

23 **A.** The general rifling characteristics search will use
24 those class characteristics and will generate a list of
25 possible firearms that could have fired the bullet, but that

1 list is not all-inclusive. It is just used as an investigative
2 tool.

3 Q. Sure.

4 Can you go to page 47, please?

5 Could you tell us what we're looking at here?

6 A. This is the results of that general rifling
7 characteristic or the GRC search.

8 Q. All right. And what did you determine in terms of --
9 just based on the class characteristics, what weapons could
10 have fired the 6A bullet?

11 A. There were several different .30 caliber class
12 firearms that could have fired the bullet.

13 Q. And they're listed here, correct?

14 A. Correct.

15 Q. Could you tell us what the initials "PI" and "RI" and
16 "PR" mean in the far right-hand column?

17 A. They refer to different types of firearms, so rifles,
18 revolvers, machine guns, any type of firearm.

19 Q. And what are the pistol ones? How is that
20 designated? "PI"?

21 A. Correct.

22 Q. And what is "RB"?

23 A. Bolt action.

24 Q. Bolt action. So based on the class characteristics,
25 any of these weapons could have fired that bullet?

1 **A.** They could have possibly fired the bullet jacket
2 fragment, yes.

3 **Q.** Okay. Now, let's go back to the examination of the
4 other two measures, subclass characteristics and individual
5 characteristics. Is one of the reasons you look at subclass
6 characteristics because they can be confused with individual
7 characteristics?

8 **A.** That is a concern, yes.

9 **Q.** In fact, your manual says that, right? It's
10 important to rule in or out subclass characteristics to avoid
11 the danger of confusing them with individual characteristics?

12 **A.** I'm not sure if our manual says it verbatim. It says
13 that we do need to assess every piece of evidence for possible
14 subclass characteristics.

15 **Q.** And what is the reason for that?

16 **A.** Subclass characteristics can be similar to individual
17 characteristics. However, trained examiners are able to notice
18 the difference between subclass and individual. Subclass
19 characteristics are not always present on an item. It's
20 possible, but not always present. And they tend to look a
21 certain way. They're going to be uniform in their appearance.
22 They're going to be spaced in a way that's more uniform. If
23 you think of circles, those circles could be the distance
24 between each other and the same distance every time, and they
25 will look almost the exact same every time.

1 **Q.** Now, does your laboratory have a certain protocols
2 for conducting these comparisons?

3 **A.** We have procedures for comparison, yes, like taking
4 photographs, yes.

5 **Q.** Well, but also procedures for -- for instance, you
6 have a document called "examination and comparison of unfired
7 and fired ammunition and components" that deals specifically
8 with the procedures to be followed for the kind of examination
9 you did here, correct?

10 **A.** Yes. I believe that refers to the minimal
11 documentation necessary for a piece of evidence.

12 **Q.** And one of those standard operating procedure
13 requirements is document observations and evaluate for the
14 potential of subclass characteristics on a relevant tool
15 working surface. Right?

16 **A.** Correct. Yes.

17 **Q.** And you did that in this case, right?

18 **A.** I did, yes.

19 **Q.** Okay. And what conclusions did you reach?

20 **A.** Can I refer to my notes?

21 **Q.** Yes, please.

22 **A.** My subclass assessment that's on page 13 of my report
23 states "Striae observed in the land and groove impressions
24 contain stops and starts, are not coarse, and vary in their
25 height, width, depth, and spatial arrangement. No apparent

1 subclass influence."

2 Q. Okay. And what page is that again?

3 A. Page 13.

4 Q. Page 13. Let me ask you about that.

5 "The striae observed are not coarse" -- I think I
6 understand that -- "and vary in their height, width, depth, and
7 spatial arrangement." Did you measure the height, width,
8 depth, of the land and groove impressions?

9 A. The land and groove impression widths? Yes, I did.

10 Q. And how about the striae? That's different than the
11 land and groove impression, right?

12 A. Correct. Yes.

13 Q. You didn't measure the height, width, and depth of
14 those marks, correct?

15 A. No, I did not.

16 Q. Okay. And your protocol says, does it not, "Due to
17 their similarity to, and potential confusion with, individual
18 characteristics, it is essential that the evidence be evaluated
19 for the potential of subclass characteristics"?

20 A. It does, yes.

21 Q. That's the whole purpose of why you're doing that
22 part of the exam, right?

23 A. Correct. Yes.

24 Q. And anywhere in your protocols, does it specify what
25 you're looking for? Or is it just up to you to decide what is

1 and what is not a subclass characteristic?

2 **A.** Subclass characteristics are a very large part of the
3 training process to become a firearm and toolmark examiner.
4 There are modules that are taught where you're trained to
5 recognize what subclass characteristics look like, what
6 manufacturing techniques might lend to more subclass
7 characteristics. So I am trained to know what it looks lake.

8 **Q.** Okay. And my question, though, was: Does your
9 standard operating procedure set out "here are the things you
10 should be looking for"? For instance, does it say if -- "what
11 the marks you're looking at are not coarse and vary in their
12 height, width, depth, and spacial arrangement, or if they're
13 perpendicular on the barrel, that indicates that it's not a
14 subclass characteristic"? Is there anything like that in the
15 manual?

16 **A.** No, there is not.

17 **Q.** Okay. Did you inspect the interior of this barrel?

18 **A.** I did, yes.

19 **Q.** And did you notice whether it had any debris or dust
20 in it?

21 **A.** I believe my notes state that debris and dust was
22 observed in the inside of the barrel, yes.

23 **Q.** Okay. And could you further characterize what that
24 was? Debris?

25 **A.** I think it says "dust." So I would say dust.

1 **Q.** Okay. What can cause dust to get inside of a barrel?

2 **A.** A plethora of things. I'm not sure why something is
3 ever in a barrel.

4 **Q.** Okay. So you determined here -- you ruled out
5 subclass characteristics, correct?

6 **A.** Yes.

7 **Q.** Then the next part of the examination was determining
8 whether you had any individual characteristics on the bullet,
9 correct?

10 **A.** Yes.

11 **Q.** And what did you conclude in that regard?

12 **A.** That there were microscopic marks of value worthy of
13 comparison or, yes, individual characteristics in the land and
14 groove impressions.

15 **Q.** And does your standard operating procedure have any
16 guidance in terms of how you go about determining that?

17 **A.** No. I do not believe so.

18 **Q.** Okay. And then once you determine that you have
19 items of value on the questioned bullet, do you then do
20 something to produce test bullets?

21 **A.** Yes. Part of the comparison process when there is a
22 firearm that we receive is to test-fire it to make pristine
23 samples to see if reproducible individual marks of value is
24 being -- is on the bullet or the cartridge cases.

25 **Q.** How many test fires did you produce in this case?

1 **A.** I made three sets, so six total.

2 **Q.** Six -- is that your standard number of test fires?

3 **A.** Our standard operating procedures state that you need
4 at least two. There is not a maximum number that we are
5 allowed to do. It's the discretion of the examiner.

6 **Q.** Were you informed by other investigators working on
7 the case that this particular weapon was manufactured in
8 Germany in 1938?

9 **A.** I was not, no.

10 **Q.** You did not review a report from an ATF agent who
11 investigated that issue?

12 **A.** No. I don't believe so, no.

13 **Q.** In doing your examinations, is it important to know
14 something about the manufacturing process of the -- of the
15 weapon?

16 **A.** It is helpful to know how a barrel or any part of the
17 firearm is manufactured, yes.

18 **Q.** And why is that?

19 **A.** Certain manufacturing techniques will lend to that
20 individual characteristics, so grinding is a method that is
21 known to leave individual characteristics on a tool. So if an
22 item that I receive I can tell is finished or manufactured by
23 grinding, it already gives me an indication that individual
24 characteristics would be left from that tool to the toolmark.

25 **Q.** Now, once you have your six test fires, then you did

1 some comparison between the test fires, right?

2 **A.** That is correct, yes.

3 **Q.** And why do you do that?

4 **A.** That establishes whether or not there are individual
5 reproducible marks of value on the test fires. It's important
6 to know that because if there's not reproducibility amongst the
7 test fires, then there's a chance to say, "Oh, it's not going
8 to reproduce on the evidence," and I wouldn't have anything to
9 compare it to.

10 **Q.** And have you had cases where you fired the six test
11 fires and you don't get reproducible marks?

12 **A.** Not that I can recall.

13 **Q.** And when you -- when you do your comparisons just
14 looking at the test fires, do you get situations where there's
15 some dissimilarities between those two fired bullets from your
16 test fires?

17 **A.** Yes. There are at times there will be -- they will
18 be -- there will be disagreement amongst the individual
19 characteristics even in test fires. You have to think of it as
20 when a bullet travels down a barrel or a cartridge case
21 interacts with a firearm, the marks aren't going to be left on
22 that item the same way 100 percent of the time. It's almost
23 like a stamp. If you know you're using a stamp and you put it
24 in ink and then you put it on two separate areas of an item, it
25 might look a little different just from the way the stamp was

1 placed. It's the same thing with a bullet traveling down a
2 barrel or a cartridge case coming into contact with a firearm.

3 **Q.** So even when you know a bullet is fired from the same
4 weapon, you can have six bullets fired, and when you start
5 comparing them, you will see differences between each bullet?

6 **A.** There is a possibility to see some areas of
7 disagreement. However, if I'm rendering an identification and
8 saying there is reproducible individual marks of value on these
9 test fires, there will be an overwhelming amount of sufficient
10 agreement of that individual characteristic.

11 **Q.** Now, when you're doing these comparisons, you use
12 something called the "AFTE Theory of Identification," don't
13 you?

14 **A.** Yes. The AFTE Theory of Identification.

15 **Q.** All right. And take a look -- and that's the
16 standard that you used in this case to draw the conclusions
17 that you made in the report that I showed you earlier, correct?

18 **A.** That is the theory stating how an examiner is able to
19 come to a conclusion when examining two or more sets of
20 toolmarks. And, yes, that is how I go through my examination
21 and how I come up with my conclusion, yes.

22 **Q.** Okay. And is -- what is AFTE?

23 **A.** AFTE is the Association of Firearm and Toolmark
24 Examiners. It's the governing body of the firearm and toolmark
25 community whose primary goal is to further research and

1 continue to show information about manufacturing and the
2 evolution of fire and toolmark examination. They hold annual
3 seminars, publish a glossary of terminologies used by the
4 firearm community, and they also have a peer-reviewed published
5 journal.

6 **Q.** Peer-reviewed published journal? Can I join AFTE?

7 **A.** You can -- most of the firearms community -- excuse
8 me -- members are firearm and toolmark examiners. There are
9 also technical advisors and associate members. Those members
10 are not usually firearm and toolmark examiners, but they still
11 have a livelihood in firearm and toolmark examination, meaning
12 they conduct research or they are involved in products or
13 manufacturing. And anybody is allowed to come to the annual
14 seminar or get the journal. You just have to pay the fee.

15 **Q.** You just have to pay the fee. Okay.

16 Could you display to the witness Exhibit 27, please?

17 Do you recognize what's displayed here?

18 **A.** It appears to be the AFTE Theory of Identification,
19 yes.

20 MR. BURT: All right. I'd move that into evidence,
21 your Honor.

22 THE COURT: What is it?

23 MR. BURT: This is the standard that she used to make
24 the comparisons in this case, correct?

25 THE COURT: This would be Karner 27?

1 MR. BURT: This could be Karner 27, your Honor.

2 THE COURT: To the state?

3 MR. MCBRIDE: Your Honor, if I may voir dire the
4 witness on this exhibit. I've never seen it before I don't
5 think.

6 THE COURT: All right. Let's go ahead and do so.
7 Mr. McBride.

8 VOIR DIRE EXAMINATION

9 BY MR. MCBRIDE:

10 Q. When was the last time you reviewed this document?

11 A. I'm not sure off the top of my head.

12 Q. Can you testify as to its accuracy by looking at it
13 now?

14 A. Not verbatim, no.

15 MR. MCBRIDE: Your Honor, no more questions. My
16 objection is lack of foundation.

17 THE COURT: Mr. Burt.

18 DIRECT EXAMINATION CONTINUED

19 BY MR. BURT:

20 Q. Does this document accurately state what the theory
21 is?

22 A. May I take a moment to read through it?

23 Q. Yeah, sure.

24 A. I believe the -- something -- I think the first
25 statement is different than what I can recall. But overall, it

1 is what the AFTE theory states.

2 Q. Okay. And your ATF protocol refers specifically to
3 the AFTE Theory of Identification, does it not?

4 A. It does, yes.

5 Q. Okay. So is there any difference between what's in
6 27 and what's in your manual?

7 A. Again, I don't remember without looking at them side
8 by side.

9 Q. Okay. I'll get that in front of you.

10 Let's go to Exhibit 12 and go to Theory of
11 Identification and Range of Conclusions, page 1 of 3. I don't
12 have the Bates on it. Toward the end. It's Document FT10.
13 No. That's not it.

14 MR. BURT: Can I approach the witness, your Honor?

15 THE COURT: You may.

16 Q. (BY MR. BURT) I'll give you page 1 of 3 of your
17 protocol.

18 A. I recognize this as something that comes from our
19 SOPs, yes.

20 Q. Okay. And it refers to the AFTE Theory of
21 Identification, right?

22 A. It does, yes.

23 Q. Same -- same theory that's displayed in 27?

24 A. Yes.

25 MR. BURT: Okay. So I'd renew my offer on 27.

1 MR. MCBRIDE: Your Honor, the objection stands.
2 Language matters. Without knowing what -- if this language is
3 identical to what she's trained on, that can make a big
4 difference. Whether the word "sufficient" or "adequate" is
5 used, these are scientific principles, and we need to be
6 precise in the language that's used. The witness cannot
7 authenticate the exhibit that's been offered, so it should not
8 be received into evidence.

9 THE COURT: Mr. Burt?

10 MR. BURT: Goes to weight, not admissibility. He'd
11 be free to question her about any differences. But I think
12 she's laid a foundation that the theory is the same. So...

13 THE COURT: All right. Well, I remind the parties
14 that this is a probable cause finding. And so as it relates to
15 what's been presented, the witness has said that it looks
16 familiar. Again, I don't want to quote you. I don't remember
17 the exact phrase. But she recognized portions of it and then
18 was given the opportunity to compare it to her standing
19 operating procedure. I think she said "SOP."

20 For those reasons -- Karner 27?

21 MR. BURT: Yes.

22 THE COURT: -- is admitted and may be published.

23 MR. BURT: Thank you.

24 (Defense Exhibit Karner 27 received.)

25 Q. (BY MR. BURT) Looking at the language of this, the

1 second part of it according to AFTE says "Currently the
2 interpretation of individualization/identification is
3 subjective in nature." Do you agree with that?

4 **A.** Yes.

5 **Q.** Why is it subjective in nature?

6 **A.** The conclusions that I author are of my opinion.

7 **Q.** Of your opinion?

8 **A.** Correct.

9 **Q.** Does your --

10 You can take that down. Thank you. No. Wait a
11 minute. Go back if you would.

12 But while he's doing that, does your manual state
13 what you're looking for under this theory is correspondence of
14 individual characteristics?

15 **A.** Yes.

16 **Q.** That -- the theory is that if you see a certain level
17 of correspondence, you can make a source identification, but
18 not to the exclusion of all other firearms in the world,
19 correct?

20 **A.** Correct.

21 **Q.** Okay. And the standard at least as it's articulated
22 here is the theory as it pertains to the comparison
23 enables opinions of common origin to be made when the unique
24 surface contours of toolmarks are, quote, "in sufficient
25 agreement." And is the subjective part of that the quoted

1 part, "sufficient agreement"?

2 **A.** The subjective part of the conclusion is saying, yes,
3 the -- it is my opinion that there is or is not sufficient
4 agreement or sufficient disagreement amongst two or more
5 toolmarks.

6 **Q.** And what -- what may constitute sufficient for you
7 may be completely different from the next examiner. Fair?

8 **A.** Yes and no. I would expect any trained, competent
9 examiner to come to the same conclusion. So the threshold of
10 sufficient agreement might be different from one examiner, but
11 the conclusion I would expect to be the same.

12 **Q.** Does your manual state, your ATF manual, Section 431,
13 state that "Correspondence or lack thereof of individual
14 characteristics is not easily communicated and an observation
15 such as 'significant agreement' can mean different things to
16 each examiner. This does not serve as interpretable
17 descriptions of what was observed because the individual
18 performing the review will likely have his or her own concept
19 of the phrase based upon their training and experience and
20 knowledge"?

21 MR. MCBRIDE: Objection, your Honor. This question
22 goes to weight. I'm sorry. May I be heard?

23 THE COURT: If you're objecting, I will hear the
24 objection.

25 MR. MCBRIDE: It's a speaking objection. That's why

1 I stopped myself.

2 This goes to weight. This goes to credibility. And
3 the witness's report has already been admitted as appropriate
4 under the Utah Constitution, Rule 7(b), and Rule 1102 of the
5 rules of evidence. This is beyond the scope of preliminary
6 hearing for those reasons.

7 THE COURT: Mr. Burt?

8 MR. BURT: Number one, that's a general objection,
9 which I think has been waived. The state was privy to the
10 interview -- the prehearing interview with this witness where
11 these same questions were asked. We had a scheduled hearing
12 where the Court was going to rule on objections. The state
13 indicated in advance of that hearing that it had no objections
14 to the testimony, reserving the right to make particular
15 objections. But the objection being made is a global one.

16 And it's relevant because the state offered -- the
17 evidence I'm offering here is relevant because the state
18 offered through a hearsay declarant the meaning of this report
19 that this examiner offered. And I'm trying to inform the Court
20 on what the limitations are of the opinions expressed in the
21 report that the state offered. And it's certainly relevant to
22 the reliability issue to know that the opinion is based on a
23 subjective standard that the witness herself admits is
24 subjective. So I think it helps the Court understand what
25 weight, if any, to give to this report that the state offers.

1 THE COURT: Mr. McBride, final thought?

2 MR. MCBRIDE: That's all fine, but it's inviting the
3 Court to weigh the evidence. That's the whole point. And at
4 this point, the inferences are drawn in the state's favor and
5 the Court is not to weigh even contrary evidence.

6 THE COURT: In regards to whether objections have
7 been waived or not, the Court as the magistrate bears the
8 ultimate responsibility to ensuring that this hearing is a
9 probable cause standard. And so that's a responsibility that
10 as a magistrate I take seriously. I understand the arguments
11 from the parties. I'm going to overrule the objection.

12 But Mr. Burt, this is -- you don't need to go 100
13 miles down a path where 1 mile is where probable cause may be.
14 And so I invite you to refocus, to bring this to probable
15 cause. I'm not trying to limit what you -- your theories or
16 such, but I need to hold to probable cause.

17 MR. BURT: Absolutely. And I don't even need a
18 quarter of a mile. This is my last question and I'm going to
19 move to another topic.

20 THE COURT: All right. Thank you, Mr. Burt.

21 **Q.** (BY MR. BURT) Is that what your manual states?

22 **A.** I don't remember it verbatim, but it does sound
23 accurate.

24 **Q.** Well, could you pull up Exhibit 12, page --

25 MR. BURT: Could I approach again?

1 THE COURT: You may.

2 Q. (BY MR. BURT) Thank you. I'll give you the two
3 pages. It will be quicker. Bottom of the page. Highlighted.

4 A. I see where you were reading from, yes.

5 Q. You see --

6 A. Yes.

7 Q. Did I accurately read it?

8 A. I believe so, yes.

9 Q. Thank you.

10 MR. BURT: Can I approach again?

11 THE COURT: You may.

12 MR. BURT: Thank you.

13 Q. (BY MR. BURT) Okay. Now let's return to the report,
14 People's -- State 32. And if you would go to the second page,
15 please. You concluded here, did you not, that "The Exhibit 6A
16 bullet jacket fragment could not be identified or excluded as
17 having been fired from the Exhibit 1A based on an agreement of
18 all discernible class characteristics and neither sufficient
19 agreement nor sufficient disagreement of individual
20 characteristics. The result of the comparison was
21 inconclusive"?

22 A. Yes.

23 Q. That was your ultimate conclusion, right?

24 A. Yes.

25 Q. And on the next page, if you could go two pages in.

1 You have an appendix, do you not? Where you explain
2 what inconclusive means?

3 Next page. One more. There we go.

4 I want to ask you because I'm unclear on what
5 "inconclusive" means. You say, "Reasons for an inconclusive
6 include the presence of microscopic similarity that is
7 insufficient to form the conclusion of source identification, a
8 lack of any observed microscopic similarity, or microscopic
9 similarity that is insufficient to form the conclusion of
10 source exclusion."

11 Could you specify which of those possibilities exist
12 in this case? Was this a case where you had microscopic
13 dissimilarity, but in your opinion, it was insufficient to form
14 a conclusion of source exclusion?

15 **A.** No. My conclusion is inconclusive, just as it says
16 in the appendix. There is a lack of sufficient agreement and
17 sufficient disagreement, so I'm unable to say one way or
18 another.

19 **Q.** Okay. But I guess my question is: Were there points
20 of dissimilarity between the questioned and the known bullets?

21 **A.** Again, there was sufficient agreement and
22 sufficient -- there was not sufficient agreement or sufficient
23 disagreement. So, yes, there was times that I saw agreement in
24 the striations and the land and groove impressions. Also seen
25 disagreement. But there was also a lot of lack of microscopic

1 marks of value to see at all. So because of this lack of
2 quality and quantity of marks to be able to see, it never
3 reached the threshold of sufficient agreement nor sufficient
4 disagreement. So an identification or exclusion could not be
5 rendered.

6 Q. Okay. I think -- you and I have met before today,
7 correct?

8 A. Yes.

9 Q. Where we talked about what that term "inconclusive"
10 meant, correct?

11 A. Yes.

12 Q. And I think -- and correct me if I'm wrong, but did I
13 read to you from a -- do you recall me asking you whether you
14 agreed with this statement that an inconclusive conclusion
15 indicates that the microscopic marks in question may or may not
16 have originated from the same or known source?

17 A. I do remember you asking, yes.

18 Q. And you agreed that that was a correct definition of
19 what you concluded in this case, correct?

20 A. Correct. Yes.

21 Q. Okay. So I want to, if I could, return to 10,
22 Exhibit 10. And in Exhibit 10 -- not 10. I'm sorry. Your
23 case file again. This is the 47-page document. There we go.
24 What's the tab? 6.

25 In your case file, you have produced for us some nice

1 comparison photos of your comparisons, correct?

2 **A.** Yes.

3 **Q.** Okay. And if you would go to page 37. Is the top
4 photo depicting one test fire on the left and another test fire
5 from the same gun on the right?

6 **A.** Yes, it is.

7 **Q.** So do you see areas of agreement and areas of
8 disagreement in these two bullets fired from the same rifle?

9 **A.** I see sufficient agreement amongst the striations
10 that are in this land impression.

11 **Q.** And tell us where they are when you draw that
12 conclusion. Using this subjective theory of identification,
13 what -- show us what you're looking at.

14 **A.** Is it touchscreen?

15 **Q.** Probably --

16 THE COURT: No, it's not. I'm sorry.

17 **Q.** (BY MR. BURT) No. But we can -- if you direct us,
18 we can get there with a pointer.

19 **A.** Sure. So you can see towards maybe the last third of
20 the bullet or the land impression that -- yes. Right where
21 your cursor is, below there. That's an area of agreement with
22 that striation. It looks like it's going from the left to the
23 right. So that mark is appearing on the test fire on the left
24 and the test fire on the right.

25 Then if you look towards the top of that land

1 impression, there's going to be some more lighter colored
2 striations or lines that are moving from left to right. Those
3 areas are in agreement as well.

4 **Q.** Where is that? Not as far up as where he is,
5 correct? It's down?

6 **A.** Yes. And I believe the PowerPoint that I provided
7 does have some areas and circles of some of these marks if that
8 would help as well. But if you move your cursor up,
9 continually up -- keep going. There you go. You have a line
10 that was right there, and you have several others underneath of
11 it that looks like it's going just straight across from left to
12 right, and that shows an observed area of agreement.

13 **Q.** So that one he's got circled on the right, I see a
14 line there. Are you saying you see a line on the left that
15 it's identical to the one on the right?

16 **A.** I'm saying I see agreement amongst those striations,
17 yes.

18 **Q.** Okay. Anything other than those two areas?

19 **A.** You can really go down the entirety almost of that
20 line looking at the striations. So under the top red circle,
21 there's another area there. Yep. If you start right there and
22 you draw your circle over. Like I said, at the top of the
23 circle, there is a highlighted line on the left that goes all
24 the way to the right. If you go a little bit farther down,
25 maybe still on the top third of that circle, you can see

1 another line going from one side to the other, another area of
2 agreement as well. And then under the final third circle, in
3 the little darker area down there, there's still some lines
4 again in sufficient agreement.

5 **Q.** Okay. And again, these are comparisons between test
6 fires, so you know the rifle that you're test-firing fired
7 these two bullets, right?

8 **A.** Yes. And the purpose of those test fires was to
9 ensure that, though it was fired from the same firearm, you
10 want to make sure that those individual characteristics are
11 reproducing.

12 **Q.** Okay. So go to the photo on the bottom of that page.
13 This is the first of several comparisons between the test fire
14 on the left and 6A on the right, correct?

15 **A.** Yes.

16 **Q.** And what does the writing on the top mean? "Blue
17 index, GIMP"?

18 **A.** So that will be -- the first number there is the case
19 number, the laboratory case number. The next "1.11B" is going
20 to refer to the specific test fire that's on the picture. And
21 then "B v. 6A," so that's the evidence that's also pictured.
22 "GIMP" stands for a "groove impression." "Blue Index" means
23 that I'm specifically looking at the groove impression that I
24 have put a blue indexing mark on so that I know where I am
25 during the comparison process. "30X" refers to the

1 magnification that the photo was taken at. And then "INC"
2 refers to "inconclusive," the final conclusion.

3 **Q.** So I'm interested in the areas of disagreement. Are
4 there areas of disagreement between the known and the unknown
5 here that you can point us to?

6 **A.** So for this photo, to me I see areas of agreement on
7 the top. And then on the way down from the 6A, right after you
8 see those two highlighted lines near the top, it's -- there is
9 a lot of damage that is observed, and almost no microscopic
10 marks of value can be observed at all. So again, that lends to
11 the lack of quality and quantity of marks even to do a
12 comparison. It's almost like missing data points.

13 **Q.** Okay. Missing is not the same thing as dissimilar,
14 though, right?

15 **A.** It just means there's nothing there to call agreement
16 or disagreement.

17 **Q.** So do you see areas of disagreement here? Or no?

18 **A.** On the striations that are available to me on this
19 groove impression, I see areas of agreement. And specifically
20 talking about those two highlighted lines at the top on the
21 right.

22 **Q.** Okay. Go to the next page, please. Top photo on the
23 next page. Page 38.

24 Do you see areas of disagreement in this photo?

25 **A.** So this is the same photograph that we looked at

1 before, just at a different magnification. It's zoomed in a
2 little bit more from 30 to 40X. So again, I'm looking at the
3 two highlighted lines near the top. And then if you look down,
4 you can almost see that damage a little bit better. And
5 there's none of those striated lines that you see on the test
6 fire which you would expect to see in a land and groove
7 impression on the right at all. So again, no microscopic marks
8 of value to compare whatsoever.

9 **Q.** All right. How about the bottom photo? And again,
10 the question, areas of disagreement.

11 **A.** The possibility of an area of disagreement may be in
12 the middle. There on the 6A is a line that does not look like
13 it carries over. But just from this snapshot, I cannot say if
14 I had moved the photo a little bit different or the specimens
15 together that that area would be agreement. In this photo, it
16 does not look like it does, though.

17 **Q.** Okay.

18 And could you go to the next photo, please?

19 Same question here. Areas of disagreement.

20 **A.** The way this photo was taken is highlighting more of
21 the lack of microscopic marks of value. If I had pulled the
22 specimen that's on the left, the test fire, over, there might
23 be some agreement that could be observed. But the way the
24 photograph is now, you don't see the line on the right going
25 all the way over. But again, this is just a snapshot of one

1 particular area.

2 Q. It doesn't show areas of agreement or disagreement?

3 A. There is an area of agreement at the very bottom of
4 the photo.

5 Q. Okay.

6 A. Correct. Yes.

7 Q. Next photo, please.

8 How about this one?

9 A. This is another zoomed-in on the previous photo,
10 focusing in on that bottom area of agreement, so we went from
11 30X to 40X and just highlighting one specific area. And this
12 is showing you agreement.

13 Q. Next photo.

14 A. So, again, this area that is highlighted, the bottom
15 portion that's in focus, is showing an area of agreement. As
16 you go up, the lines are a little bit blurred on the 6A bullet
17 jacket fragment, so it's hard to say if that area was in
18 agreement or disagreement. That's not what my photo was
19 focusing on.

20 Q. All right. Next one.

21 A. So, again, this is going to show you part of the
22 groove impression at the white index. On the top, you can see
23 some striated lines -- excuse me. More of the middle of the
24 photo. The top of the groove impression from the 6A. You see
25 some lines do not appear to be on the right side either, but

1 this photo is also trying to show the lack of microscopic marks
2 at all towards the bottom of that groove impression.

3 Q. Okay. But there are in these photos areas of
4 disagreement as well as areas of agreement, correct?

5 A. In the photo that we just looked at, it could be
6 possible areas of disagreement. Again, it's just one area that
7 I'm looking at. It's hard to tell when you can't look at the
8 entirety of the land in this moment.

9 Q. Sure. Now, this -- you can take that down, please.
10 Do you keep up with the literature relevant -- scientific
11 literature relevant to your field?

12 A. I do, yes.

13 Q. And are you aware of certain criticisms that have
14 been leveled against this AFTE Theory of Identification?

15 A. I have heard -- yes, I've heard recommendations on
16 how to improve the AFTE Theory of Identification, yes.

17 Q. Well, the criticisms have gone beyond that, right?

18 A. Specifically, what are you referring to?

19 Q. Well, you know -- you're aware that the National --
20 you know the National Resource Council?

21 A. The National Academy of Science?

22 Q. National Academy of Science.

23 A. Yes.

24 Q. Is that a pretty preeminent scientific organization
25 in this country?

1 **A.** Yes.

2 **Q.** Did they conclude in 2009 that, quote, "A fundamental
3 problem with toolmark and firearm analysis is the lack of a
4 precisely defined process. As noted above, AFTE has adopted a
5 theory of identification, but it does not provide a specific
6 protocol." It says that "An examiner may offer an opinion that
7 a specific tool or firearm was the source of a specific set of
8 toolmarks or a bullet striation pattern when," quote,
9 "sufficient agreement exists in the pattern of two sets of
10 marks. It defines agreement as significant when it exceeds the
11 best agreement demonstrated between toolmarks known to have
12 been produced by different tools and is consistent with the
13 agreement demonstrated by toolmarks known as" -- "known to have
14 been produced by the same tool. A meaning of 'exceeds the best
15 agreement' and 'consistent with' are not specified, and the
16 examiner is expected to draw on his or her own experience.
17 This AFTE document, which is the best guidance available for
18 the field of toolmark identification, does not even consider,
19 let alone address, questions regarding variability,
20 reliability, repeatability, or the number of correlations
21 needed to achieve a given degree of confidence."

22 **A.** I do --

23 MR. MCBRIDE: Objection. Objection. We're now
24 firmly into 702 territory. I object on grounds of relevance to
25 the probable cause hearing and beyond the scope of the PC

1 hearing as I've previously objected.

2 THE COURT: Mr. Burt.

3 MR. BURT: I think it goes directly to reliability
4 that a group -- scientific group studied this exact process
5 that she used in this case and reached that conclusion.

6 THE COURT: If you -- so, again, I'm trying to keep
7 us on the probable cause standard. This is going a bit deep in
8 regards to it. This is citing to 2009. And so we're in 2026.
9 And, again, I'm not -- I don't want to have to dive deep into
10 areas trying to determine -- because I feel that we are exiting
11 the orbit of probable cause. If I'm having to make that
12 analysis and trying to see -- like, how is this relevant? How
13 does this apply? How does this go to probable cause? So if
14 you wish to ask this question and then move on, we certainly
15 could do that. But I --

16 MR. BURT: Sure. The only thing I wanted to do was
17 establish that this was the foundation criticism in 2009. And
18 I know when we had raised this issue with respect to one of the
19 other experts, the comeback was, "Oh, well, this was in 2009,
20 and the PCAST report was in 2016." In this particular field,
21 these criticisms have started in 2009, but they have continued
22 up to the present day and have gotten more strident. So I
23 think that's the take-home here, is that this is not some past
24 criticism that has been set aside. This is a criticism that
25 this expert is aware of and that has continued in the

1 literature up to the present time.

2 THE COURT: But I don't have that second portion of
3 what you just said in front of me, so I can't -- I can't agree
4 with you because what I have is what's before me.

5 MR. BURT: Right.

6 THE COURT: I can't go searching myself as a
7 magistrate for probable cause. I have to take what you say as
8 it is. And if I have to start searching, I've left the
9 universe of probable cause.

10 MR. BURT: I agree. And I was offering that to the
11 Court as a proffer in terms of where this line of questioning
12 is going so the Court can understand the context.

13 THE COURT: Okay.

14 MR. BURT: It isn't just an isolated criticism and
15 I'll establish with a couple of questions that it's continued
16 up to the present time.

17 THE COURT: So I will overrule the objection, but I
18 will limit you to this question. We're going to more and more
19 and more. It doesn't -- I see your point. You're -- you're
20 looking at whether this science is challenged or not. Your
21 point has been received. But anything further goes outside of
22 probable cause, so we have to get back on the path.

23 MR. BURT: Got it.

24 THE COURT: Thank you, Mr. Burt.

25 Q. (BY MR. BURT) You're aware of that criticism, right?

1 **A.** Yes, I am.

2 **Q.** And you're also aware of the criticism leveled in
3 2016 --

4 THE COURT: Counsel? I just said that we're focused
5 solely on -- I've accepted what you've said, but I said that
6 it's limited to this question and then we're moving on, because
7 anything further is going outside of probable cause.

8 MR. BURT: I misunderstood. I'm sorry. I apologize
9 to the Court.

10 THE COURT: And I apologize if I wasn't clear on
11 that. So maybe it was my error in not communicating. I've
12 accepted that coming in. I've overruled the objection. But I
13 said we're going to -- we're going to leave that where it is
14 and then move forward.

15 MR. BURT: And that's where I'm unclear. When the
16 Court says "move forward," no more questions about any further
17 criticisms beyond that one?

18 THE COURT: On this line of questioning, that's
19 correct. Because it --

20 MR. BURT: Okay.

21 THE COURT: Because it -- thank you, Mr. Burt.

22 MR. BURT: All right. I think I made the proffer in
23 terms of the relevancy.

24 THE COURT: And I accept that. So thank you,
25 Mr. Burt.

1 MR. BURT: Thank you.

2 Q. (BY MR. BURT) Then the last area is in the years
3 that you've been doing this testing, is it true that you've
4 only taken one proficiency test that involves bullet
5 comparisons?

6 A. Yes. I've only had the opportunity to take one
7 bullet proficiency test so far.

8 Q. And is it true that that was in 2023?

9 A. I don't remember the exact year, but that sounds
10 correct, yes.

11 Q. All right. And is it true that that proficiency test
12 involved a test where you had questioned bullets and then you
13 had two sets of bullets, one that was fired from one gun, not
14 the suspect gun, and then the second gun that was fired from
15 another gun.

16 A. I don't remember the exact final ground truth answers
17 that were there. No, I'm sorry. I don't remember.

18 Q. I think when you and I talked about this, you said
19 you're aware of a controversy about that particular test,
20 correct?

21 A. I was aware, yes, of the results of the proficiency
22 test, yes.

23 Q. That the -- that there was a very high error rate in
24 that particular proficiency test, right?

25 A. There was a higher error rate, yes. However, my

1 answers were satisfactory along with the five other examiners
2 at my specific laboratory that took it as well.

3 Q. Your conclusion in that case was, as in this case,
4 that it was inconclusive, correct?

5 A. Correct.

6 Q. Even though the correct answer was that the bullets
7 did not come from the questioned -- the two did not match, the
8 known and the questioned -- should have been an elimination?

9 A. The ground truth answer was, yes, they were excluded.
10 However, an inconclusive result in this comparison was
11 extremely appropriate. The lack of quality and quantity of
12 those individual characteristics never reached sufficient
13 agreement, nor did it ever reach sufficient disagreement, so
14 saying anything but inconclusive was not appropriate.

15 Q. I see. And can you have bullets fired from different
16 weapons that can have individual characteristics that look
17 pretty similar?

18 A. There is occasions, yes, that toolmarks that are made
19 by two separate tools are similar, yes.

20 Q. Could you go -- and this is my last area of
21 questioning. Exhibit 19, page 26.

22 MR. MCBRIDE: Your Honor, I'm requesting 20 minutes
23 for cross-examination. We're coming up on 4:37. That would be
24 my request, your Honor.

25 MR. BURT: This is my last question.

1 THE COURT: All right, Mr. Burt.

2 Thank you, Mr. McBride. I appreciate the heads up.

3 Q. (BY MR. BURT) In your opinion, does this -- the one
4 on the left and the right show matching individual
5 characteristics?

6 THE COURT: Counsel, has this been admitted? Because
7 it -- I see it displayed. I just want to make sure.

8 MR. BURT: It has not been admitted. And I'm asking
9 this question as a foundation for admitting it.

10 THE COURT: Okay. So that's fine. It was on another
11 screen. I wanted clarification. So it's not on any screens
12 because it hasn't been admitted, but clearly it can be on her
13 screen.

14 MR. BURT: Thank you.

15 THE COURT: So only to the witness and counsel table
16 screens.

17 MR. BURT: Exhibit 19, page 26.

18 Q. (BY MR. BURT) Does this comparison show individual
19 characteristics indicating that it was fired from the same
20 weapon?

21 A. There are individual characteristics present, but
22 without examining it in person, I don't feel comfortable making
23 a conclusion.

24 Q. Okay. How about the next page? 27. How about that
25 one?

1 **A.** Again, I see individual characteristics. On a very
2 first glance, I can see maybe one striation that is in
3 agreement, but without seeing it physically in person and
4 having an accurate representation of the entirety, I can't
5 conclude any answer.

6 **Q.** And the last one, the third photo, page 28? Exhibit
7 19, page 28. Same question.

8 **A.** I do see individual characteristics. I do see some
9 areas of agreement. Without looking at it further, I wouldn't
10 make a conclusion. It's a holistic approach when you're
11 examining items.

12 **Q.** Would it surprise you if I told you that all three of
13 those were fired from different weapons?

14 **A.** Again, I don't know any context of these photos other
15 than what you showed, so I don't feel comfortable saying one
16 way or another.

17 MR. BURT: Thank you.

18 THE COURT: All right. Mr. McBride.

19 CROSS-EXAMINATION

20 BY MR. MCBRIDE:

21 **Q.** Good afternoon.

22 **A.** Good afternoon.

23 **Q.** Those last three photos that you were shown, have
24 you -- had you seen those before?

25 **A.** I have looked at them probably back in 2024 when it

1 was published.

2 **Q.** Okay. That's a study? Is that what that is?

3 **A.** Yes.

4 **Q.** Of some sort?

5 **A.** It was a look from the Association of Firearm and
6 Toolmark Examiners. It was a volunteer of photographs of
7 people that did have an incorrect answer in that proficiency
8 test.

9 **Q.** Okay. And when you do an examination or a
10 comparison, are you limited to one photograph?

11 **A.** No.

12 **Q.** You actually have the item in front of you, correct?

13 **A.** That is correct, yes.

14 **Q.** And you can manipulate it. You can turn it. You can
15 look at every angle and every side of that item as you do the
16 comparison; is that correct?

17 **A.** Yes. That's correct.

18 **Q.** And as you're doing that process, you're looking for
19 as many characteristics that match -- or agree or disagree as
20 you can possibly find, correct?

21 **A.** Yes. It's a holistic approach. If I have a bullet
22 like this case, I'm looking at every single land, every single
23 groove impression, and doing an evaluation of each one of
24 those, looking for areas of agreement and disagreement before
25 rendering a conclusion.

1 **Q.** Would it be responsible for you to reach a conclusion
2 based on a single photograph of a very limited area of two
3 bullets?

4 **A.** I would not feel comfortable doing that, no.

5 **Q.** Okay. I want to back up. How long have you -- first
6 of all, where do you work?

7 **A.** I work at the Forensic Science Laboratory in
8 Washington for the Bureau of Alcohol, Tobacco, Firearms, and
9 Explosives.

10 **Q.** How long have you been there?

11 **A.** A little over six and a half years.

12 **Q.** Where did you come from? Where did you work before
13 that?

14 **A.** Prior to working for ATF, I was a latent fingerprint
15 technician recovering latent fingerprints from improvised
16 explosive devices. And I also worked as a crime scene
17 investigator in Winston-Salem, North Carolina, and Anne Arundel
18 County, Maryland.

19 **Q.** How long did you have that position?

20 **A.** I think cumulatively, it was about five to six years.

21 **Q.** And before that?

22 **A.** Those are the only ones. I think it was about six
23 months as a latent fingerprint technician, two years as a crime
24 scene in Winston-Salem, and three in Anne Arundel County.

25 **Q.** Do you have education and training before that

1 position?

2 **A.** Yes. I have a bachelor of science in forensic and
3 investigative science from West Virginia University and have
4 attended and graduated the National Firearms Examiner Academy
5 as well as done specific training at my laboratory.

6 **Q.** At each of the positions you've held, have you had
7 on-the-job training at the laboratories where you've worked?

8 **A.** I have, yes.

9 **Q.** And will you describe what that training is like at
10 the ATF where you are now?

11 **A.** Yes. So part of becoming a firearm and toolmark
12 examiner for ATF was attending the NFEA, the National Firearms
13 Examiner Academy, which is a yearlong intensive, comprehensive
14 training program. I learned about historical cases, figures,
15 and the evolution of firearms, fired ammunition components, and
16 manufacturing. And Phase 2, I worked 16 weeks of hands-on
17 experience assembling and disassembling firearms, using a
18 comparison microscope comparing fired ammunition components and
19 toolmarks, going on manufacturing tours, and participating in
20 moot court.

21 I worked on an independent research project in four
22 practical exercises and then presented that independent
23 research project to a panel of experts and participated in two
24 moot court sessions on two of those four practical exercises.
25 Then specifically for ATF, I still work on my training going

1 through practical exercises and competency tests, working under
2 trained firearm examiners at my laboratory, and also continued
3 learning about any manufacturing evolutions or going on
4 manufacturing tours. And I also participate in moot court for
5 every single competency test that I work. Once all of that is
6 complete, then I work on supervised case before moving on to
7 unsupervised case work.

8 **Q.** And "supervised case work" means what?

9 **A.** It means that the author of the final report will be
10 a different examiner, but I am working on all of the work side
11 by side and going through all the steps that are needed for
12 that examination.

13 **Q.** And in that process, you're having discussions and --
14 discussions about your work with a more experienced examiner?

15 **A.** Yes. It's an opportunity to work a case that has
16 come into the laboratory but still have someone there making
17 sure I feel comfortable with everything and following every
18 step necessary.

19 **Q.** How long ago was that that you had that -- that you
20 graduated from that supervised work?

21 **A.** I believe that was in 2022 or 2023. I'm not sure.

22 **Q.** Do you supervise now others?

23 **A.** I do not have a supervisor capacity, but I have had
24 the opportunity to now teach at the NFEA. I've been fortunate
25 enough to participate as an instructor in the test-firing

1 module, the mini moot court module, and the comparison of
2 bullets and cartridge cases.

3 **Q.** Are you required to undergo continuing education in
4 your position?

5 **A.** There is not a specific continuing education program.
6 However, when the opportunity to go on AFTE's annual
7 conferences and it allows it, I will go to those, as well as
8 continuing going to manufacturing tours.

9 **Q.** Is this an area of science and forensics that is
10 continuing to develop new techniques and advance in research?

11 **A.** Yes, it is.

12 **Q.** And how do you stay up on those advances?

13 **A.** Part of the way to do that is to continue my
14 membership with AFTE. Again, they do an annual training
15 seminar. Recently, just in May of 2026, here in Baltimore,
16 where there is case searches and studies that are presented,
17 different manufacturing techniques, just new and upcoming
18 research that is throughout the community, not just firearms
19 practitioners, but also standard and technology researchers
20 like those from the National Institute of Standards and
21 Technology or NIST.

22 **Q.** And I think defense counsel has asked you a little
23 bit about some of the publications that have given -- criticism
24 is how he has phrased it -- but given recommendations on how to
25 improve the science in your field. Are you aware of that?

1 **A.** I am, yes.

2 **Q.** And is there an effort to adopt those suggested
3 improvements where they have merit?

4 **A.** Yes. AFTE especially takes those recommendations
5 very seriously. If the PCAST asked for more specific design
6 test studies, they said, "Yes, we will do that." I can think
7 of just a few right off the top of my head that has satisfied
8 those asks that they wanted.

9 **Q.** Is your laboratory accredited?

10 **A.** It is, yes.

11 **Q.** What does that mean to be accredited as a laboratory?

12 **A.** An accreditation means that my laboratory is held to
13 an international standard of reporting, testimony, training,
14 and proficiency tested. We have a large audit every four years
15 through ANAB or the American National Standard Institute
16 National Accreditation Board, but we also do internal audits
17 and we make sure there is some type of audit that we are
18 staying within the accreditation limits every single year.

19 **Q.** There was mention of proficiency testing. Are you
20 required to do proficiency testing?

21 **A.** Yes, I am.

22 **Q.** And are those specific as to what type of proficiency
23 testing that you do?

24 **A.** Yes.

25 **Q.** What are some examples?

1 **A.** We are required to take proficiency tests in all
2 disciplines that our scope enables, so serial number
3 restoration and the comparison of toolmarks, bullets, and
4 cartridge cases.

5 **Q.** Are there similarities in principles that apply to
6 all aspects of toolmark analysis and comparison?

7 **A.** Can you elaborate on the question, please?

8 **Q.** Well, let's say you're comparing what we've been
9 talking about here, rifling on a bullet. Are the principles
10 that apply to that area versus that also apply in toolmarks
11 analysis, say, of impressions of a handheld tool?

12 **A.** Yes. All of those comparisons are a product of a
13 toolmark comparison. A firearm is nothing but a tool. So when
14 you are talking about a cartridge case comparison, it's still
15 looking at a tool and a toolmark. The tool in this case is the
16 firearm. The toolmark is being left on a cartridge case or a
17 bullet.

18 **Q.** I want to draw your attention to Plaintiff's Exhibit
19 32. While that's pulling up -- and this has been published.
20 It's been approved for publication at all three levels already,
21 so we can put that on the screens. While it's pulling up --
22 thank you.

23 I want to ask you first about an entry here, the
24 second -- the second sentence under "Results of Examination."
25 "Exhibit 1's rifle was test-fired and found to be in operable

1 condition."

2 Did you perform that test fire?

3 **A.** I did, yes.

4 **Q.** How did you receive this -- this firearm?

5 **A.** I received it from another physical scientist in our
6 laboratory.

7 **Q.** Okay. And did it have a scope on it?

8 **A.** Yes, it did.

9 **Q.** What did you do to determine if it was in operable
10 condition?

11 **A.** In order to determine if the firearm is in operable
12 condition, I will find ammunition that it is calibered for. In
13 this place, it was .30-06 Springfield. Load that into the
14 firearm, and then I fired any test fires into our water
15 recovery tank.

16 **Q.** Okay. And why did you choose a water recovery tank?

17 **A.** The water recovery tank is what is used to obtain
18 bullet specimens. The water is going to slow down the movement
19 from its movement so that we can actually obtain the bullet,
20 and it is supposed to cause minimal damage.

21 **Q.** Why does it matter if there's minimal damage or more
22 damage?

23 **A.** You would like minimal damage because that means that
24 there's going to be less damage on the areas that you need to
25 compare.

1 **Q.** And the evidence rounds that you -- or in the bullets
2 that you often receive in your cases, are there cases where
3 there's a lot of damages to those bullets?

4 **A.** I have received cases with lots of damaged bullets,
5 yes.

6 **Q.** In this circumstance, Exhibit 1 rifle, this Mauser 98
7 .30-06, was it an auto-loading rifle or a bolt action?

8 **A.** This was a bolt action rifle.

9 **Q.** Exhibit 2 cartridge case -- let's see here. If
10 you'll turn to page 2. And we've already read this line. I
11 think defense counsel read this line to you, the Exhibit 6A
12 paragraph there. "The result of the comparison was
13 inconclusive."

14 What -- could further testing be done to try and see
15 if there is any -- if you can come to a conclusion on this
16 round?

17 **A.** There was no further testing that I could do, no.

18 **Q.** Is there further testing that could be done in the
19 field?

20 **A.** There is the possibility of using a 3D system to
21 visualize the individual characteristics on the bullet.

22 **Q.** Do you have the capability of doing that at your lab?

23 **A.** My laboratory currently does not have that
24 capability.

25 **Q.** Do you know if the FBI lab does that have that

1 capability?

2 **A.** I believe they do.

3 **Q.** Defense counsel put up a list of potential firearms
4 that could have fired this round or this bullet. Is that list
5 comprehensive?

6 **A.** It's not an all-inclusive list.

7 **Q.** And does it mean that this round -- I'll leave it at
8 that, actually.

9 There's been some discussion about the bullet -- the
10 6A bullet jacket fragment. Will you describe what a bullet
11 jacket is?

12 **A.** Yes. I do have a demonstrative. May I use that?

13 **Q.** You have that with you?

14 **A.** Yes.

15 **Q.** Yes, please. Go ahead.

16 **A.** So this is a demonstrative of a bullet. So a bullet
17 jacket, it would refer to the outside of the bullet. Inside
18 the bullet would be the lead core. So when I'm referring to
19 the jacket, it means that I've only received that outer
20 portion. I did not receive any of the lead core intact with
21 it.

22 **Q.** In this circumstance, you received a bullet jacket --
23 a bullet jacket fragment. What does that mean that it's a
24 fragment?

25 **A.** Fragment means I don't have the entirety of that

1 jacket.

2 Q. And can you testify as to why you don't have that
3 entirety?

4 A. No, I cannot.

5 Q. And it also -- your report also says that there are
6 four lead fragments. What is -- why would you have lead
7 fragments?

8 A. So the lead fragments, the lead would be from the
9 inside of the bullet, that core. Occasionally when the bullet
10 reaches its final destination, it can split, and some of that
11 core might be pulled off of the jacket and be found where it
12 landed.

13 Q. And would you be able to gather information from
14 those lead fragments that could identify them as coming from
15 this particular firearm? Would you expect to be able to make
16 that comparison?

17 A. I would not expect to see any characteristics that
18 would help me reach a conclusion, no.

19 Q. Why not?

20 A. Because the lead core is on the inside of the bullet.
21 The land and grooves are going to be imparted onto the jacket
22 or the exterior. So when it's moving down the barrel, the
23 inside is not coming into contact with rifling whatsoever.

24 Q. In this case, do you have a verification step where
25 your work is reviewed by another analyst?

1 **A.** We do, yes.

2 **Q.** And were your conclusions in this case verified by
3 another analyst?

4 **A.** Yes, they were.

5 **Q.** Is there a potential that the testing you do can
6 destroy the evidence that you're reviewing?

7 **A.** How do you -- what do you mean?

8 **Q.** Well, prevent it from being tested in the future?

9 **A.** No. I would not expect anything that I've done to
10 prohibit more examination in the future, no.

11 **Q.** But in general. You say you peeled back the petals,
12 I think you said, of the bullet jacket because it was so
13 crumpled?

14 **A.** Yes. I think if anything, that lends to a better
15 comparison process. It is a very well-known practice amongst
16 firearm and toolmark examiners that without doing an
17 examination like that in preparation, no one's able to see the
18 marks that are needed for the comparison process.

19 **Q.** Okay. In reaching the conclusions that you did in
20 this case, did you follow protocols and practices that are
21 required by your position?

22 **A.** I did, yes.

23 MR. MCBRIDE: Nothing else.

24 THE COURT: Mr. Burt.

25 ///

REDIRECT EXAMINATION

BY MR. BURT:

Q. You said a couple of things of interest to me. One was that your work is peer-reviewed, right? There's a peer reviewer, a second reviewer?

A. It is a verification process.

Q. Verification process. And you know in this case we requested to produce the case file from your reviewer so we could see whether it was accurate or not. You're aware of that, right?

A. I am not. And the verification process does not require that the verifier has case notes. Their case notes would be within mine, and it's just an authored verification chart.

Q. Well, you wrote a memo to Mr. McBride dated May 19th, did you not, in which you said in answer to our request for the reviewer's work product that "ATF laboratories do not release materials concerning technical reviewers or verifiers," and you went on to state, did you not, that we don't even release the CVs of who the reviewers are?

A. So that is not authored by me. That is our ATF procedures and protocols. If that was an e-mail that came from me, I am just verbatim what our quality assurance manager has said.

Q. Do you think science works best when it works in

1 secret?

2 MR. MCBRIDE: Objection. Argumentative.

3 THE COURT: Counsel?

4 MR. BURT: It goes to the issue of -- that was raised
5 on cross-examination, which is "My work was peer-reviewed." So
6 how do we evaluate the strength of that assertion when they
7 refuse to hand over to us the work product that the
8 reviewers -- or even identify what their credentials are?
9 That's relevant.

10 THE COURT: Well, I'm not agreeing or disagreeing
11 with that, but the question itself was argumentative. Because
12 we can look at the question. Working in secret --

13 MR. BURT: Let me rephrase.

14 THE COURT: Okay. So I am going to sustain the
15 question. Because of the phrasing, it is inherently
16 argumentative, and it wouldn't be a question that would be able
17 to proceed in a prelim.

18 **Q.** (BY MR. BURT) Do you have an opinion on whether it
19 is scientifically defensible to rely on a peer reviewer and not
20 reveal that peer reviewer's work product?

21 **A.** I believe I understand what you're asking. However,
22 in this case, the verifier does not have any work product to
23 show. If you'd like to see their CV, I cannot testify to
24 anything about the procedures of giving their information out.
25 All I can say is that they are employed at my laboratory. They

1 are under the same scrutiny of proficiency testing, went
2 through the same training with competency and practical
3 exercises, so they are a trained and competent examiner.

4 **Q.** They don't have any work product to show, but your
5 protocol calls for, does it not, documentation of whatever it
6 is they did?

7 **A.** And that is included in my case file.

8 **Q.** Right. But not -- not the reviewer's work product?

9 **A.** The reviewer's work product is a verification sheet.
10 If you'd like, I can refer to my case notes and find that
11 specific page number, but that would be the only work product
12 that they would have in this case.

13 **Q.** I see. Now, you said two things about the PCAST
14 report on cross-examination. One was that -- if I understood
15 it, that the PCAST findings have been addressed in subsequent
16 studies. Did I hear that correctly?

17 **A.** Because one of the recommendations was to further --
18 actually, I think the recommendation was one more black box
19 study to show the foundational validity of firearm and toolmark
20 examination. And since 2016, several have been published.

21 **Q.** Right. Let's look at that for a second. First of
22 all, they didn't recommend -- they found, did they not, quote,
23 "PCAST finds that firearms analysis currently falls short of
24 the criteria for foundational validity because there is only a
25 single appropriately designed study to measure validity and

1 estimate reliability. The scientific criteria for foundational
2 validity requires more than one such study to demonstrate
3 reproducibility"? Isn't that what they found?

4 **A.** That is what their finding was. Correct.

5 **Q.** Okay. And then after that report was published, in
6 2017 they came out with a second report because people said,
7 "Oh, the literature already exists. You missed it." And they
8 said, "No, that's not true." Isn't that right?

9 **A.** They concluded --

10 MR. MCBRIDE: Objection. Relevance to the
11 preliminary hearing. We're now well into 702 argument.

12 MR. BURT: He raised this issue on cross, your Honor.
13 He clearly went beyond the 2009 reference that the Court
14 allowed and opened this area up. And I don't think it's fair
15 for him to be allowed to do that without me being able to
16 respond to it.

17 THE COURT: Thank you. On cross-examination, that
18 door was opened by the state, and so I will allow limited
19 questioning on recross or redirect, however we want to label
20 this. So you may proceed. The objection is overruled.

21 MR. BURT: Thank you.

22 **Q.** (BY MR. BURT) In 2017, they filed a second report
23 responding to assertions by people in your profession and
24 others that they had missed or the studies had already been
25 done; isn't that true?

1 **A.** Yes. PCAST did a 2017 addendum to their 2016 report
2 reiterating that they believe that the only way to properly
3 empirically test the science is through these black box studies
4 and that they would not take into consideration the
5 numerous amount of work and validation studies done over
6 decades that the firearms community has published.

7 **Q.** And a bunch of other studies were done, right?

8 **A.** Correct.

9 **Q.** And in response to those additional studies, there
10 have been continual criticisms of the methodology of those
11 studies. Isn't that fair?

12 **A.** Yes.

13 **Q.** And you've read, for instance -- well, first of all,
14 you attended -- I see a webinar by the group that did some of
15 the critiques. Do you remember that?

16 **A.** Can you -- which webinar are you referring to?

17 **Q.** You attended a webinar I believe in 2023, "Treatment
18 of Inconclusive Results and Error Rates of Firearm Studies,
19 Webinar Hosted by the Center for Statistics and Applications in
20 Forensic Evidence," 2021.

21 **A.** Correct. I did.

22 **Q.** According to you. And that group has published a
23 number of studies right up to 2026, for instance. Their study
24 in 2024 called "Methodological Problems in Every Black Box
25 Study of Forensic Firearm Comparisons" in which they concluded

1 that the field still was not reliable, despite the studies that
2 you reference. Isn't that true?

3 **A.** That is the author's opinion, correct.

4 **Q.** Right. And they're not the only ones. There have
5 been other groups of statisticians who have published articles
6 right up to 2026 saying that the studies that you referenced
7 are unreliable?

8 **A.** Yes.

9 **Q.** That their methodology of those studies is flawed and
10 cannot be relied upon to support the science of toolmark
11 comparison, correct?

12 **A.** Yes. There has been studies to say that they believe
13 there is flaws in the black box studies and stuff, but there
14 has also been plenty of research done to say the opposite.

15 **Q.** And lastly, you mentioned that -- or it was brought
16 out that you have training -- training and experience, right?

17 **A.** Correct. Yes.

18 **Q.** Do you agree with the conclusion stated in the
19 section of the report, the PCAP [sic] report, that "neither
20 experience nor professional practices can substitute for
21 foundational validity"? Do you agree with that?

22 **A.** I do, yes.

23 **Q.** Do you agree with the conclusion reached in the PCAP
24 report that a forensic science discipline that has an error
25 rate higher than 5 percent is not reliable?

1 **A.** I don't know that I have an opinion to that because I
2 think it's a little on the broadside. I don't know what you
3 would consider high as far as a percentage.

4 **Q.** Well, I'm referring to the statement at page 151
5 where they say "Methods with a high false positive rate are
6 scientifically unreliable for making important judgments in
7 court about the source of the sample. To be considered
8 reliable, the false positive rate should certainly be less than
9 5 percent, and it may be appropriate that it be considerably
10 lower depending on the intended application."

11 **A.** I would agree with that statement.

12 **Q.** You would agree with that. And you also lastly
13 reference your knowledge of the study by the AFTE of that
14 proficiency -- the one proficiency test which you have taken on
15 bullet comparisons, correct?

16 **A.** Correct.

17 **Q.** And the error rate in that particular study of
18 proficiency tests was 20.4 percent, correct?

19 **A.** Correct.

20 **Q.** -- for Item 2, 18.2 percent for Item 3, and 18.9
21 percent for Item 5.

22 **A.** I believe those were the results. However, I don't
23 agree that proficiency tests are what are used for validation
24 studies to show foundational validity. Proficiency --

25 **Q.** So if the error rates are high, then they shouldn't

1 be relied upon to show invalidity, but they should be relied
2 upon to establish that your experience means that your science
3 is valid? Is that what you're saying?

4 **A.** Foundational studies are looking at, just as PCAST
5 said, those black box studies, different test design, all of
6 which the firearm and toolmark community has conducted. We've
7 looked at cartridge cases, bullet, pristine samples, damaged
8 samples, and different firearms. Proficiency test is looking
9 at the accuracy of an examiner's results, not foundational
10 validity.

11 **Q.** But you would agree that an error rate of 20 percent
12 is unacceptable, would establish unreliability, correct?

13 **A.** I would agree that those results need to be looked at
14 to see where that error was coming from.

15 **Q.** Okay. Thank you.

16 THE COURT: Thank you. Anything further for this
17 witness?

18 MR. MCBRIDE: Yes.

19 THE COURT: And Mr. McBride, I'm going to limit you
20 because your objection to going outside and going to 702, you
21 opened the door, but I've got to close that door at some point.
22 So I will give you a limited number of questions. We need to
23 come to a close.

24 MR. MCBRIDE: I understand that.

25 ///

RECROSS-EXAMINATION

BY MR. MCBRIDE:

Q. Your science has been accepted by courts across the country, correct?

A. Correct. Yes.

Q. It's routinely admitted in courts across the country, correct?

A. That is correct, yes.

Q. Your science has been peer-reviewed and viewed favorably by numerous publications and studies across the country and across the world, correct?

A. Correct. Yes.

MR. MCBRIDE: No more questions.

THE COURT: May this witness be excused?

Thank you, Mr. Burt.

Thank you, Mr. McBride.

Thank you for being here. You're excused.

All right. That brings us to a close. Do either party wish the benefit of the record before we adjourn for the night?

MS. NESTER: Your Honor, can you just give us five minutes? And then I think we can make an announcement. Can you just give us a minute to chat?

THE COURT: Yes. You may have that. We'll stay in court for these five minutes just because it will take longer

1 to let everyone go and then come back in.

2 (Off the record from 5:09 p.m. to 5:11 p.m.)

3 THE COURT: All the parties are present except for
4 maybe one attorney.

5 Mr. Grunander, should we wait for counsel?

6 MR. GRUNANDER: Can we take maybe 30 seconds to wait
7 for Mr. McBride?

8 THE COURT: All right. We'll wait for Mr. McBride.
9 I just wanted to ensure all the attorneys are present.

10 All right. I note the presence of all attorneys.
11 Turning to Ms. Nester.

12 MS. NESTER: Thank you, your Honor. Your Honor, we
13 have just one more witness, who would be a fairly short
14 witness, not super long. So I anticipate we will be done
15 tomorrow probably by lunch I would think. So maybe if we could
16 plan that, that we'll be finished. We probably will not need
17 the entire day tomorrow, is my suggestion.

18 THE COURT: Thank you. All right.

19 Turning to the state. Obviously I'm not holding you
20 to your answer today, but just for guidance, does the state
21 anticipate rebuttal witnesses?

22 MR. GRUNANDER: Judge, we don't anticipate any
23 rebuttal evidence that needs to be presented at this hearing.
24 So I think the question would be, is are we going to argue the
25 bindover tomorrow? And the state would be prepared to argue

1 bindover tomorrow.

2 THE COURT: All right. Well, I appreciate that in
3 regards to -- we're trying to budget time here. How much time
4 does the state anticipate? Obviously there's one more witness,
5 so I'm not going to --

6 MR. GRUNANDER: If it's a short witness -- if it's a
7 short witness, Judge, I don't think it should take us the
8 entire morning, but we would be prepared to argue tomorrow
9 morning at the close of evidence or first thing in the
10 afternoon.

11 THE COURT: And how much time do you anticipate that
12 argument being? Again, rough estimate. I'm not holding you to
13 the exact number. I'm just trying to see how close are we to
14 the 5:00? Because I'm going to ask the defense the same
15 question as well.

16 MR. GRUNANDER: It wouldn't come close to the 5:00
17 hour, judge.

18 THE COURT: For just you or for both?

19 MR. GRUNANDER: For argument?

20 THE COURT: Yes.

21 MR. GRUNANDER: Both of us.

22 THE COURT: Okay. All right. Well, I'll turn --
23 thank you, Mr. Grunander.

24 MR. GRUNANDER: If we have to argue two hours apiece
25 for bindover, there's a problem. I would say that.

1 THE COURT: All right. Thank you, Mr. Grunander.

2 MR. GRUNANDER: Thank you, Judge.

3 THE COURT: To the defense. Again, I'm just getting
4 an estimate. I'm not holding you. I'm not going to time you
5 to this. But just trying to see as it relates to 5:00 and for
6 argument for bindover tomorrow afternoon.

7 MS. VISSER: Understood, your Honor. Our request,
8 the defense request, is that we be allowed to submit briefing.
9 There are some legal issues that we would like to brief for the
10 Court prior to the decision on the bindover. We're open to
11 briefing page limits, time limits, all of that, but we would
12 like that opportunity because there are some legal complexities
13 involved here.

14 THE COURT: All right. And if -- and I'm going to
15 ask the state, but if the state -- well, I'm not going to --
16 I'm not going to assume anything. Thank you.

17 MS. VISSER: I believe the state is going to object
18 to that, your Honor.

19 THE COURT: So you're -- what I hear you saying is
20 you wish to -- well, I don't want to assume. What it seems
21 like you're saying -- I want to be clear -- is you're waiving
22 oral argument and just doing briefing?

23 MS. VISSER: So generally, your Honor, in cases with
24 multiple counts that are pretty complex issues of law, I have
25 asked for briefing and the opportunity for an argument -- we

1 can set time limits on that as well -- prior to bindover. I've
2 done this in multiple other cases before Courts in Utah. And
3 that is my preference to make sure we get the law right.

4 THE COURT: And so what -- how much time -- if you're
5 asking for argument, that in addition to briefing -- I'm trying
6 to get the total universe of what's being -- what's in front of
7 me.

8 MS. VISSER: So I anticipate that -- I agree with
9 Mr. Grunander that I don't think an argument would take more
10 than a half day. It should take less than that, particularly
11 if we're briefing issues beforehand. So I don't know. Two
12 hours for argument total?

13 THE COURT: All right. Thank you, Ms. Visser.

14 Turning back to the state. What is the -- you've
15 heard from defense.

16 MR. GRUNANDER: Again, Judge, the state would prefer
17 to argue tomorrow. We think the Court has all the evidence
18 before it and could make a bindover decision after oral
19 argument tomorrow. If the Court decides that briefing is
20 necessary, I believe the court reporter could have a transcript
21 available as early as Monday of next week at an expedited -- on
22 an expedited request.

23 With that said, each side would need, you know, two
24 weeks -- we would -- we would -- we're the moving party. We
25 would prepare a motion in support of bindover. There would be

1 a response and then a reply. So we're probably six weeks out
2 before we can actually argue before bindover. We would rather
3 not wait six weeks to argue bindover. That's why we would like
4 to do it tomorrow.

5 But that's the timeline we're probably looking at, is
6 about six weeks. And then two to three hours of argument.

7 THE COURT: So are you requesting to move forward
8 with oral argument tomorrow and in addition to briefing?
9 Again, I'm just trying to see the whole universe that's before
10 me.

11 MR. GRUNANDER: Good question, Judge. If the Court
12 wants briefing, I don't believe we would argue tomorrow. We
13 would save that argument until the briefing is finished.

14 THE COURT: All right. Thank you.

15 And to defense, would you agree on the time frame for
16 briefing that's been proposed by Mr. Grunander to allow each
17 side the appropriate time, taking into consideration the
18 transcript which may or may not be needed by the parties?

19 MS. VISSER: We are also okay with simultaneous
20 briefing on this if the state prefers that. That wouldn't take
21 six weeks if that's the concern. But we have no objection to
22 the six weeks.

23 THE COURT: All right. And does your client waive
24 any speedy trial rights that may result as this request -- I
25 just want to make sure I'm addressing constitutional rights.

1 I'm also going to be addressing -- from the victim
2 representative, this goes squarely into the victim's rights to
3 speedy disposition. Again, I'm just trying to take it -- I
4 know we're late. I just want to cover all of these bases.

5 MS. VISSER: Yes. Our client will waive his right,
6 his speedy trial right, so that we can properly brief the
7 preliminary hearing issues.

8 THE COURT: All right. To the state.

9 MR. GRUNANDER: If the Court wants briefing, we would
10 not like to do simultaneous briefing. We would like to start
11 it out as the moving party. Defense would then respond. We
12 would then have the opportunity to reply before oral argument.

13 THE COURT: All right. And I'll invite Ms. Kirk's
14 attorney if you wish to be heard. This goes squarely into the
15 victim's rights as recognized in the Utah Constitution as well
16 as Utah statute as it's what's before us.

17 MR. NEIMAN: Your Honor, obviously we want swift
18 justice for Charlie here. I think we obviously know the Court
19 needs to make sure you're balancing all interests here, but I
20 think as soon as the matter can be bound over and this matter
21 can be set for trial, that's what the Kirk family would like.

22 THE COURT: Do you want to weigh in regards to
23 briefing? It sounds like it's --

24 MR. NEIMAN: Your Honor, I'm hesitant to weigh in on
25 briefing. I feel as if that is a decision which the Court

1 should decide whether or not it's necessary. And we're going
2 to take no position on briefing. We'd just -- we'd ask for
3 speed. This has been ten months coming. We've heard a lot of
4 evidence. To me, it seems rather overwhelming, but that's my
5 opinion. Obviously it doesn't matter. But -- so we'd just ask
6 for it to move quickly.

7 THE COURT: Thank you. All right.

8 All right. Having heard from the parties, I will go
9 ahead and allow -- well, I'm granting your request for briefing
10 as it relates to probable cause to allow both parties to file
11 their briefs. With defense, as you are the moving party
12 requesting briefing, when would you -- when would you like to
13 submit your brief? Or to the state.

14 MR. GRUNANDER: Judge, because we have the burden, I
15 believe it's appropriate for us to initiate the briefing --

16 THE COURT: Okay.

17 MR. GRUNANDER: -- because we're moving for the
18 bindover, and then we would have an opportunity to reply.

19 THE COURT: And that's -- okay. So let's start --
20 Mr. Grunander, when can you have your brief filed?

21 MR. GRUNANDER: Just a moment, Judge.

22 THE COURT: Thank you. And then going to defense,
23 I'll follow up with you as well.

24 MS. VISSER: Thank you.

25 THE COURT: One moment, Mr. Grunander. I'm trying to

1 get logistics so we can move this along. Mr. Grunander,
2 turning to you.

3 MR. GRUNANDER: Judge, if we're able to collect the
4 transcript Monday, if we had two weeks from Tuesday, we could
5 have our motion in. I believe that's the 28th of July.

6 THE COURT: All right. So state's brief by the 28th
7 of July assuming we can get the transcript by Monday. All
8 right. State's brief.

9 Okay. Ms. Visser?

10 MS. VISSER: We'd need two weeks after that, so
11 August 11th I believe is two weeks.

12 THE COURT: All right. And to the state? If you
13 wish to file a reply, when --

14 MR. GRUNANDER: It would be seven days after that,
15 Judge, so the 18th.

16 THE COURT: August 18th. All right. And for oral
17 argument, what I can set is September 1st in the morning. Let
18 me take a quick glance here at the calendar. I'm trying to
19 keep that close in time so we can move this along for all
20 reasons previously stated. And we can start at 10:00 a.m.
21 10:00 a.m. on September 1st? How does that look for the
22 parties?

23 MR. GRUNANDER: That works for the state.

24 MS. NESTER: Your Honor, I'm going to be in trial
25 that week, and I'd really like to be here for this argument.

1 Is there any way we could just do it the next week?

2 THE COURT: The problem is -- I'm happy to look, but
3 it is getting -- it would be very tricky. This is a fortunate
4 opening. Otherwise, I'll --

5 MS. NESTER: Got it. All right. We'll take it,
6 then.

7 THE COURT: Okay. I appreciate you accommodating the
8 Court's schedule.

9 September 1st. In person? I see the defense nodding
10 "yes."

11 MR. GRUNANDER: Yes, please.

12 THE COURT: All right. September 1st at 10:00 a.m.
13 And it sounds like up to two hours per side. And we can take
14 it from there.

15 Mr. Grunander.

16 MR. GRUNANDER: Judge, page limits. We spoke as a
17 team, and our preference would be to limit at least the initial
18 briefs on both sides to 30 pages, no longer than 30.

19 THE COURT: Defense stipulate to that?

20 MS. VISSER: I'd like to counter with 40.

21 THE COURT: Okay. Well, this is not an auction.
22 But...

23 Any final thoughts?

24 MR. GRUNANDER: We'll submit it, Judge. And then we
25 would ask for half of whatever your Honor grants for the final

1 reply.

2 THE COURT: We will set it at 35 pages. And then we
3 will go half of that, which is an odd number. 17. We'll go 17
4 pages for the reply. Parties agree?

5 MR. NOVAK: I was going to offer to round up to 18,
6 but that's fine.

7 MR. GRUNANDER: We'll take the 18, Judge.

8 THE COURT: All right. We will go with 18. So 35
9 pages for the -- for the initial filings, 18 response, and
10 September 1st at 10:00 a.m.

11 Anything further for this evening?

12 MR. GRUNANDER: Yes, Judge. I believe the Kirk
13 family -- there was a ruling that was reserved by the Court
14 with respect to publication of an exhibit that probably needs
15 to be addressed.

16 THE COURT: Yes. And -- now, my understanding is
17 what's being requested is the portion that had been altered,
18 which I believe is about one minute.

19 MR. NEIMAN: Your Honor, I believe it was enhanced
20 and that it was like zooming in and circles that were put on
21 it. We would ask for the entirety of that exhibit to be
22 displayed in the same court. So I believe it was about eight
23 minutes if I'm not mistaken. Don't hold me on the time.

24 THE COURT: All right. Any final input on that?
25 Thank you for reminding me.

1 From the defense? Any final input?

2 MR. BURT: No.

3 THE COURT: All right. What we can do is at the
4 conclusion of defense's presentation of whatever witnesses
5 they're going to do, we can address that. So the concern I
6 heard was that the victim representative wanted to see what the
7 Court would consider before bindover decision is made, and that
8 allots for that. So whether it happens right now, which the
9 hour is late, or by -- right after the conclusion of evidence,
10 that's going to happen well before I consider bindover.

11 So in the interest of justice and balancing that, I
12 don't want to take away time -- it sounds like we're going to
13 be okay, but I always want to be cautious. But I will grant
14 that request, and that will be played in open court, and we
15 will watch the totality of -- I believe it is State's Exhibit
16 12.1, which is eight, give or take two, minutes.

17 MS. NESTER: Your Honor, and just to clarify, it will
18 not be televised, correct? It's only for people in the
19 courtroom?

20 THE COURT: That is correct. Because the request was
21 made by the victim representative, who is present in court, I
22 will grant that request, and it will be played in the courtroom
23 for all present to see, but not to be broadcast on TV.

24 MS. NESTER: And we just would like a continuing
25 objection for all the reasons we raised before, your Honor.

1 THE COURT: Thank you. I appreciate you making that
2 record. I note the standing objection. That objection as it
3 relates to this request is overruled. And that will be played
4 at the conclusion of defense's presentation of evidence and
5 before the state if they do have a rebuttal witness. Please
6 remind me so that I can address it and that is taken care of.

7 Thank you to the parties. I'm hesitant to ask this.
8 Anything further? All right. Seeing no --

9 MR. GRUNANDER: Nothing further from the state.

10 THE COURT: All right. Thank you, all. I appreciate
11 your hard work today. That concludes court. We are in recess
12 until 9:00 tomorrow morning.

13 (Proceedings concluded at 5:27 p.m.)
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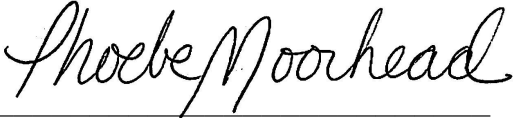
1 STATE OF UTAH)
2)
COUNTY OF SALT LAKE)

3 I, PHOEBE S. MOORHEAD, Certified Shorthand
4 Reporter for the State of Utah, certify:

5 That I received the audio recording and
6 transcribed it to the best of my ability into typewriting; that
7 a full, true, and correct transcription of said audio recording
8 so recorded and transcribed is set forth in the foregoing
9 pages.

10 I FURTHER CERTIFY that I am neither counsel
11 for nor related to any party to said action nor in anywise
12 interested in the outcome thereof.

13 Certified and dated this 12th day of July,
14 2026.

15
16 
17
18 PHOEBE S. MOORHEAD, RDR, CRR
19 Certified Shorthand Reporter
20 for the State of Utah
21
22
23
24
25

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